PART 1

This deed made on 2006

Between:

(1) **The Mayor and Burgesses of the London Borough of Camden** (the **"Council"**) of Town Hall, Judd Street, London WC1H 9LP;

(2) **The Secretary of State for Transport** (the **"Secretary of State"**) of Great Minster House, 76 Marsham Street, London SW1;

(3) **London & Continental Railways Limited** (**"LCR"**) (Company registration number 02966054) whose registered office is at Third Floor, 183 Eversholt Street, London NW1 1AY;

(4) **National Carriers Limited** (**"NCL"**) (Company registration number 942605) whose registered office is at The Merton Centre, 45 St Peters Street, Bedford MK40 2PN;

(5) **Argent (King's Cross) Limited** (the **"Developer"**) (Company registration number 03965242) whose registered office is at 5 Albany Courtyard, Piccadilly, London W1J 0HF; and

(6) **Transport for London** (**"TfL"**) of Windsor House, Victoria Street, London SW1.

Whereas:

(A) The proposed development of King's Cross Central involves a comprehensive, phased, mixed use development of former railway lands within the King's Cross Opportunity Area.

(B) The Council is the local planning authority for the area within which the Site is situated and the appropriate statutory body to enforce this Agreement for the purposes of section 106 of the 1990 Act.

(C) The Council is also the local highway authority for the purposes of the Highways Act 1980 and a local authority for the purposes of s 16 of the Greater London Council (General Powers) Act 1974 and for the purposes of s 111 of the Local Government Act 1972.

(D) The Developer submitted (on behalf of LCR, Exel PLC (as parent company of NCL) (**"Exel"**) and the Developer) the Main Site Planning Application, the Listed Building Consent Applications and the Conservation Area Consent Applications to the Council on 28 May 2004 and submitted amendments to the Main Site Planning Application on 27 September 2005.

(E) The Council, following a meeting of its General Purposes (Development Control) Sub Committee on 8 and 9 March 2006 resolved that the Planning Permission, Listed Building Consents and Conservation Area Consents be granted subject to a legal agreement being entered into making provision for the planning obligations herein contained.

(F) The Secretary of State is the Owner with freehold title absolute of those parts of the Site comprised or included in Title Numbers NGL808717, NGL645505, NGL809459 and NGL456251 registered at the Land Registry, the Registered Proprietor in relation to the Title Numbers NGL808717, NGL809459 and NGL456251 being the Secretary of State for the Environment Transport and the Regions but the freehold interest in the land comprised within the said titles now being vested in the Secretary of State by virtue of the Secretaries of State for Transport Local Government and the Regions and for the Environment, Food and Rural Affairs Order 2001 (SI2001/2568) and the Transfer of Functions (Transport, Local Government and the Regions) Order 2002 (SI2002/2626).

(G) LCR has an equitable interest in the parts of the Site referred to at Recital F and, subject to the satisfaction of certain conditions, is entitled to draw down land interests in such parts.

(H) NCL is the owner with freehold title absolute of those parts of the Site comprised in the Title Numbers NGL630321 and NGL630322 registered at the Land Registry.

(I) The Developer has an equitable interest in the Site and, subject to seeking appropriate planning permissions and the satisfaction of certain other conditions, is entitled (together with LCR and NCL) to draw down land interests and proceed to implement the Development.

(J) The Secretary of State has taken possession of the Gas Holders following the service of Notice to Treat and Notice to Enter.

(K) Sections 9(2), 9(6) and 9(7)(a) Channel Tunnel Rail Link Act 1996 conferred planning permission for up to 750 operational car parking spaces at St. Pancras within certain defined limits of deviation (which include certain parts of the Development), subject to a condition specifying siting, design, external appearance and means of access as reserved matters for the subsequent approval of the relevant planning authority, which is the Council. LCR is providing or has provided up to 335 of such car parking spaces as a two-level car park within the scheme for St Pancras International Station pursuant to the rights contained in the said Act.

(L) TfL enters into this Agreement in its capacity as statutory public transport services provider and as the highway authority responsible for certain roads in the vicinity of the Site.

(M) The Council considers it expedient in the interests of the proper planning of its area and having regard to the provisions of the Unitary Development Plan for the borough of Camden and to all other material considerations, that the Planning Permission, the Listed Building Consents and the Conservation Area Consents should be granted subject to the parties entering into this Agreement and as highway authority further considers that the highways and transport works the subject of this Agreement are of public benefit.

NOW THIS DEED WITNESSES as follows:

1. **Definitions and interpretation**

General and further definitions

1.1 In addition to the general definitions set out in clause 1.2, a series of further definitions are included in Part 2 of this Agreement which relate solely to that part of Part 2 within which they appear.

1.2 Where in this Agreement the following defined terms and expressions are used, they shall have the following respective meanings unless the context otherwise requires:

"1990 Act"	:	Town and Country Planning Act 1990 as amended.
"Category A Finish"	:	Fit-out of premises to include (unless otherwise agreed) all floor, wall and ceiling finishes, including suspended ceilings, raised access floors, carpets, life safety systems, toilets (which may be provided in shared cores), and the extension of technical and electrical services into the accommodation areas (including air conditioning, heating, solar control, lighting, fire alarms and controls) finishes to cores and receptions (which may be reception areas shared by tenants) but to exclude fit-out to the occupier's specific requirements, such as partitioning to cellular offices, enhanced finishes, fittings and services to specialist areas, for example standby power generation, data cabling, enhanced lighting and/or air conditioning.
"CIZ"	:	The Central Impact Zone shown edged and

		hatched red on Plan [ ] comprising the following wards; King's Cross, Caledonian and St Pancras and Somerstown.
"Completion Date"	:	Completion of all of the floorspace permitted within the Development.
"Conservation Area Consent Applications"	:	(i) Application reference 2004/2317/C in relation to Culross Buildings ("the Culross Buildings Application") (ii) Application reference 2004/2321/C in relation to the Western Goods Shed ("the Western Goods Shed Application") (iii) Application reference 2004/2318/C in relation to the Plimsoll Viaduct ("the Plimsoll Viaduct Application") (iv) Application reference 2004/2320/C in relation to various buildings and structures ("the Structures Application")
"Conservation Area Consents"	:	Conservation area consents pursuant to the Conservation Area Consent Applications in the form of the drafts annexed.
"Contribution"	:	a financial payment payable by the Developer to the Council pursuant to Part 2 of this Agreement.
"Development"	:	The development of the Site pursuant to the Planning Permission.
"Development Plot"	:	The relevant development plot shown on drawing KCX 005 Rev T.
"Development Zone"	:	The relevant development zone shown on drawing KCX 005 Rev T.
"Expert"	:	An independent suitably qualified third-party appointed to resolve disputes pursuant to clause 16.

"Facilities" : (i) Bicycle Storage Facility

(ii) Camley Street Natural Park Centre

(iii) Community Meeting Facilities

(iv) Construction Training Centre

(v) Indoor Sports Hall

(vi) Leisure Facility

(vii) Police Control Facility

(viii) Primary Health Care Centre

(ix) Primary Health Care Walk-In Centre

(x) Skills and Recruitment Centre

(xi) Sure Start/Children's Centre

(xii) Two Form Entry Primary School

and such other facilities as may be provided or procured by the Developer as a substitute for the above facilities.

"Facility Bond" : A bond (which may be in the form of a guarantee from a bank or other body of appropriate financial standing) in a form reasonably acceptable to the Council securing the performance of the obligation in the event of default by the Developer.

"First Occupation" : The first beneficial occupation of the relevant building but this does not include occupation for the purposes of construction, fitting out or decoration or (provided the Developer has first notified the Council in writing that the relevant building is to be used for such purposes) for the purposes of marketing or display.

"Gas Holder No 8" : The guide frame and all component parts for gas holder no 8 at King's Cross

"Gas Holders" : Gas Holder no 8 and the Linked Triplet Gas Holders

"GEA" : Gross external area measured in accordance with the RICS Code of Measuring Practice : A Guide for Surveyors and Valuers, 5th edition

"Implementation" : Implementation means the carrying out on the Site of a material operation as defined by s 56(4) of the 1990 Act in connection with the Development save that for the purposes of this Deed none of the following operations shall constitute a material operation:

(a) Archaeological or site inspections

(b) Site or soil surveys

(c) Decontamination works

(d) Demolition or site clearance

(e) Works to the existing public highways and provision of site access and temporary internal roads

(f) The laying of services

(g) The erection of a site compound

(h) The erection of temporary fences or hoardings

(i) The display of advertisements including the erection of advertisement hoardings; and

(j) Interim landscaping works

(k) Enabling works comprising:

(i) the re-alignment of Pancras Road together with the related demolition of the Northern Stanley Building and the related

demolition of two small extensions of the Great Northern Hotel, the removal of railings around the hotel and the covering of the lightwells, and

(ii) provision of the service access and potential King's Cross Station Servicing shown on drawing KXC 016 T Rev O

and **"Implement"** shall be construed accordingly.

"Index (RPI)"	:	The Retail Price Index
"Index (TPI)"	:	All In Tender Price Index (as published by the Building Costs Information Service on behalf of the Royal Institution of Chartered Surveyors).
"Index Linked"	:	The sum payable shall be increased in the same proportion as the percentage increase in the Index between the quarterly Index figure applicable on 9 March 2006 and the quarterly Index figure for the quarter immediately preceding the date of actual payment.
"King's Cross Business Forum"	:	The existing forum administered by the Council's Culture and Environment Directorate, aimed at businesses in King's Cross and providing networking opportunities, a strong business identity, a hub for information and discussion and access to business opportunities.
"LB Camden"	:	London Borough of Camden.
"LB Islington"	:	London Borough of Islington.
"Lease Acceptance"	:	A notice accepting the offer of a lease served in accordance with Schedule [ ]
"Lease Offer"	:	A notice offering the grant of a lease served in accordance with Schedule [ ]

"Listed Building Consent Applications"	:	(i) Application reference 2004/2313/L in relation to Stanley Building North ("the Stanley Building North Application") (ii) Application reference 2004/2315/L in relation to Gas Holder No 8 ("the Gas Holder No 8 Application") (iii) Application reference 2004/2316/L in relation to the Handyside Canopies ("the Handyside Canopies Application") (iv) Application reference 2004/2314/L in relation to the Great Northern Hotel ("the Great Northern Hotel Application")
"Linked Triplet Gas Holders"	:	The guide frames and all component parts for the linked triplet gas holders at King's Cross
"Listed Building Consents"	:	Listed building consents pursuant to the Listed Building Consent Applications in the form of drafts annexed.
"Local Schools"	:	Schools situated within CIZ or WIZ.
"Main Site Planning Application"	:	Application reference 2004/2307/P in relation to the land known as the Main Site at King's Cross Central
"Monitoring and Liaison Officer"	:	an officer nominated by the Council from time to time whose role shall be to act as the primary person working with the Developer to assist it in complying with and to monitor compliance with the Planning Permission and the planning obligations in this Agreement, to provide the results of such monitoring to both the Council and the Developer and to act as a liaison with the Council to ensure that the Council is enabled to comply with its obligations
"NIA"	:	Net internal area measured in accordance with the RICS Code of Measuring Practice : A Guide

		for Surveyors and Valuers, 5th edition
"Nursing Home"	:	A nursing home provided in accordance with Section OO of Part 2
"PGS"	:	Planning Gain Supplement as broadly contemplated in the Government's consultation paper dated December 2005
"Planning Permission"	:	Planning permission pursuant to the Main Site Planning Application in the form of draft annexed
"Practical Completion"	:	The practical completion of the works required to construct the relevant premises, building or Facility in accordance with the relevant building contract as properly certified in accordance with clause 28 and Practically Completed shall be construed accordingly
"Public Realm"	:	The network of spaces between buildings within the Development that can be freely accessed by the public including parks, squares, roads, pedestrian areas, cycle routes and other such open areas.
"Relevant Standards"	:	The legislation, standards, codes of practice and other appropriate guidance that a prudent local authority, health authority, police authority or other public authority (as is the appropriate authority for the Facility in question), acting properly and reasonably would apply to the design, construction and fitting out (if applicable) at its own expense of the Facility to which this agreement relates.
"Review Procedure"	:	The procedure for the review of certain documents or proposed courses of action set out in clause 15.
"Shell and Core"	:	Works to a shell and core specification which

comprises the following:

(a) enabling works

(b) demolitions

(c) substructure

(d) superstructure

(e) external cladding

(f) roof

(g) blockwork to cores

(h) drylining to cores

(i) metalwork

(j) floor, wall and ceiling finishes in the core areas

(k) ventilation and lighting installations in the core areas

(l) lift shafts

(m) doors (external and core)

(n) drainage

(o) small power to the core areas

(p) lightning protection

(q) statutory signage

(r) hard and soft landscaping

(s) basic building security

(t) sub-station if required

Services (electricity, water, drainage, gas and/or LTHW) are provided capped off.

"Site" : The land shown edged red on Plan [ ]

"Threshold"	:	Any date or figure in Part 2 of the Agreement prior to or following which a planning obligation has to be performed
"WIZ"	:	The Wider Impact Zone shown edged and hatched green on Plan [ ] comprising the following wards; Bloomsbury, Regent's Park, Cantelowes, Holloway, Barnsbury, Clerkenwell, Holborn and Covent Garden.

Interpretation

1.3 Unless the context otherwise requires:

(a) words incorporating the singular include the plural and vice versa and words importing any gender include every gender;

(b) words importing persons include firms, companies, other corporate bodies or legal entities and vice versa;

(c) references to the Council, the Secretary of State, LCR, NCL and the Developer shall include their respective statutory successors or successors in title to their respective interests in the Site and persons deriving title therefrom (except where the contrary is expressly provided including without prejudice to the generality of the foregoing in Clause 8) and permitted assigns;

(d) references to TfL will include their statutory successors in relation to statutory public transport services and as highway authority (where relevant) for certain roads in the vicinity of the Site;

(e) references to clauses, sub clauses, paragraph numbers, parts, sections, recitals, schedules and plans are unless otherwise stated references to clauses, sub clauses, paragraph numbers, parts, sections and recitals of and schedules to this Agreement and in the case of plans, plans annexed to this Agreement;

(f) words denoting an obligation on a party to do any act, matter or thing include an obligation to procure that it be done and words placing a party under a restriction include an obligation not to cause, permit or suffer any infringement of the restriction;

(g) references in this Agreement to statutes, by laws, regulations, orders and delegated legislation shall include any statute, by law, regulation, order or delegated legislation amending, re enacting or made pursuant to the same as

current and in force from time to time save that references to Use Classes within the Town and Country Planning (Use Classes) Order 1987 as amended are and shall be construed as references to such Use Classes at the date of this Agreement and such construction shall not be affected by changes to such Order after the date of this Agreement;

(h) save in respect of the Planning Permission, the Listed Building Consents or the Conservation Area Consents, in the event of any conflict between the terms, conditions and provisions of this Agreement and any document annexed hereto or referred to herein, the terms, conditions and provisions of this Agreement will prevail;

(i) references to "the parties" shall mean the parties to this Agreement excluding TfL;

(j) the Interpretation Act 1978 shall apply to this Agreement

(k) save where the context requires otherwise references to a party carrying out or performing an obligation in Part 2 shall mean that party shall bear the cost of carrying out or performing that obligation.

1.4 The clause and paragraph headings contained in this Agreement are included as an aid to interpretation, are for reference purposes only, and have no binding legal effect.

2. **Governing legal provisions**

2.1 This Agreement is executed by the parties hereto as a Deed and is made pursuant to s 106 of the 1990 Act, s 16 of the Greater London Council (General Powers) Act 1974, s 111 of the Local Government Act 1972, s 156 and Schedules 10 and 11 of the Greater London Authority Act 1999 and all other powers so enabling.

2.2 The obligations, covenants and undertakings expressed to be given on the part of the Secretary of State in this Agreement are planning obligations made pursuant to and for the purposes of s 106 of the 1990 Act and so as to bind the Secretary of State's interest in the Site as referred to in Recital (F) insofar as that is lawful and subject to clause 8.3 the said obligations, covenants and undertakings on the part of the Secretary of State are entered into with the intent that they shall be enforceable not only against the Secretary of State insofar as that is lawful but also against any successors in title or assigns of the Secretary of State and/or any person claiming through or under it an interest or estate in the Site.

2.3 The obligations, covenants and undertakings on the part of LCR in this Agreement are planning obligations made pursuant to and for the purposes of s 106 of the 1990 Act and so as to bind LCR's equitable interest in the Site as referred to in recital (G) and subject to

clause 8.3 the said obligations, covenants and undertakings on the part of LCR are entered into with the intent that they shall be enforceable not only against LCR but also against any successors in title to or assigns of LCR and/or any person claiming through or under it an interest or estate in the Site.

2.4 The obligations, covenants and undertakings on the part of NCL in this Agreement are planning obligations made pursuant to and for the purposes of s 106 of the 1990 Act and so as to bind NCL's interest in the Site as referred to in recital (H) and subject to clause 8.3 the said obligations, covenants and undertakings on the part of NCL are entered into with the intent that they shall be enforceable not only against NCL but also against any successors in title to or assigns of NCL and/or any person claiming through or under it an interest or estate in the Site.

2.5 The obligations, covenants and undertakings on the part of the Developer in this Agreement are planning obligations made pursuant to and for the purposes of s 106 of the 1990 Act and so as to bind the Developer's equitable interest in the Site as referred to in recital (I) and subject to clause 8.3 the said obligations, covenants and undertakings on the part of the Developer are entered into with the intent that they shall be enforceable not only against the Developer but also against any successors in title to or assigns of the Developer and/or any person claiming through or under it an interest or estate in the Site.

2.6 The planning obligations contained in this Agreement shall be enforceable by the Council in accordance with the terms of s 106(3) of the 1990 Act and all other enabling powers.

2.7 The obligations, covenants and undertakings on the part of the Council in this agreement are entered into with the intent that they shall be enforceable not only against the Council but also against the Council's statutory or other successors.

2.8 The Council covenants with TfL that where any obligation or covenant in this Agreement is given by the Developer to the Council and to TfL and such obligation or covenant has not been performed by the Developer within the period for performance allowed by this Agreement and the Council has not within a reasonable time brought proceedings (whether before an expert or by arbitration or by litigation in the Courts) nor enforced any judgment obtained to TfL’s reasonable satisfaction then the Council shall at the written request of TfL permit authorise and consent to TfL bringing any such proceedings in the name of the Council against the Developer and to enforce such obligation or covenant (and to have full conduct of and to prosecute compromise and settle any such proceedings as TfL shall in its discretion determine) provided always that TfL shall indemnify the Council in respect of all costs reasonably and properly incurred by the Council as a consequence of the bringing of any such proceedings.

3. **Provisions to be conditional**

3.1 It is hereby agreed between the parties that, save in respect of obligations with immediate effect, the planning obligations in Part 2 of this Agreement will have no operative effect unless and until both of the following have occurred, namely:

(a) the Planning Permission, the Listed Building Consents and the Conservation Area Consents have been duly granted; and

(b) the Planning Permission has been Implemented.

4. **Further planning permissions and judicial review**

4.1 Save as provided for in clause 4.2 nothing in this Agreement shall be construed as prohibiting or limiting the right of the Developer, LCR, NCL or the Secretary of State to develop any part of the Site in accordance with and to the extent permitted by a planning permission (other than the Planning Permission) granted by the Council or by a Secretary of State on appeal or following a reference to him either before or after the date of this Agreement.

4.2 Notwithstanding clause 4.1 and subject to the proviso at the end of this sub-clause the obligations set out in subclause (d) shall continue to bind the Site in accordance with the terms of this Agreement notwithstanding the grant of any other planning permission if the Planning Permission has been Implemented:

(a) to the extent that such obligations have not already been performed or complied with;

(b) to the extent that such other planning permission is for development of a type and description which makes it practicable for such obligations to be enforced in accordance with the terms of this Agreement; and

(c) until the parties have agreed alternative Thresholds for such obligations whether in relation to development carried out under the Planning Permission or under such other planning permission, such alternative Thresholds to be agreed so as to ensure as far as practicable the delivery of the underlying planning purpose of the original obligation at an appropriate time and in an appropriate manner;

(d)

(i) the obligations in Part 2, Section S, clauses 1 - 3, relating to the provision of BR3 and associated matters

(ii) the obligations in Part 2, Section CC, clauses 1 - 11 relating to the Gas Holders

(iii) the obligations in Part 2, Section N, relating to the completion of Public Realm to the extent only that such obligations require the Practical Completion of areas of Public Realm in accordance with a specified Threshold and to the extent only that the Developer has already commenced construction of the relevant area of Public Realm when development pursuant to such other planning permission is commenced

(iv) the provision of the following Facilities; Bicycle Storage Facility, Camley Street Natural Park Centre, Community Meeting Facilities, Indoor Sports Hall, Police Control Facility, Skills and Recruitment Centre, Sure Start/Children's Centre and Two Form Entry Primary School provided that the Developer shall be entitled to agree with the Council an alternative location for the provision of any such Facility to the location specified in this Agreement

Provided That the obligations set out in sub-clause (d) shall not continue to bind the relevant part of the Site:

(1) if PGS is introduced and

(aa) if the Developer can demonstrate to the Council's reasonable satisfaction that the reason another planning permission is being sought or has been sought is due to the adverse financial consequences of PGS, and

(bb) if the parties have not prior to the grant of such permission been able to agree a variation to this Agreement in accordance with the provisions of clause 27 in respect of the obligations set out in sub-clause (d) the Developer having used reasonable endeavours to reach such an agreement

(2) if a new planning permission is being sought or has been sought which provides a comprehensive alternative masterplan for the Site in respect of:

(aa) the area north of the Regent's Canal, or

(bb) the area south of the Regent's Canal, or

(cc) the whole of the Site

and if the relevant obligation relates to such relevant area, or

(3) if the planning purpose which underlies the relevant obligation no longer exists.

4.3 In addition to the provisions of clause 13 containing obligations to act in good faith the Developer and the Council shall be obliged to act reasonably and in good faith in relation to the obligations contained in clause 4 and in particular the Council shall have proper regard to the obligations referred to in clause 4.2(d) when determining any application for such other planning permission and shall give due weight to such obligations when determining whether such other planning permission should be subject to any additional planning obligations.

4.4 If the Planning Permission (or any extension, alteration or renewal granted pursuant to any planning application) expires without the Development having been Implemented or is revoked, this Agreement will cease to have effect insofar as it relates to such Planning Permission and upon such expiry or revocation its registration on the Register of Local Land Charges will insofar as it is lawful forthwith be cancelled.

4.5 Where the Planning Permission or any of the Listed Building Consents or any of the Conservation Area Consents is the subject of any judicial review proceedings or any other legal challenge if as a result of such judicial review proceedings or other legal challenge the Planning Permission or any of the Listed Building Consents or Conservation Area Consents are quashed and the Developer (having Implemented the Planning Permission) does not continue to Implement the Planning Permission, the Developer shall not be obliged to perform any further obligations or observe any further restrictions or conditions under this Agreement.

5. **The Secretary of State's, LCR's, NCL's and the Developer's obligations**

5.1 The Secretary of State insofar as it is lawful, LCR, NCL and the Developer on behalf of themselves and their respective successors in title to the Site each covenants with the Council, that they will jointly and severally perform the obligations in this Agreement and any reference to the Developer shall be construed as including reference to the Secretary of State, LCR and NCL for that purpose.

6. **Council's obligations**

The Council hereby covenants with each of the Secretary of State, LCR, NCL and the Developer and with the respective successors in title of each of them, that the Council will comply with the obligations on its part in this Agreement.

7. **TfL'S obligations**

7.1 TfL hereby covenants with each of the Council, the Secretary of State, LCR, NCL and the Developer and with the respective successors in title of each of them that TfL will comply with the obligations on its part in this Agreement.

7.2 TfL's approval or consent for any modification or variation of this Agreement, shall only be required in respect of any modification or variation of those obligations made directly with TfL.

7.3 The Secretary of State, LCR, NCL and the Developer on behalf of themselves and their respective successors in title to the Site each covenants with TfL that they will jointly and severally perform the obligations in this Agreement made directly with TfL and any reference to the Developer shall be construed as including reference to the Secretary of State, LCR and NCL for that purpose.

7.4 The Council hereby covenants with TfL that the Council will comply with the obligations on its part in this Agreement made directly with TfL.

8. **Enforceability Release and Certificates of Compliance**

8.1 Upon the disposal of the whole or any part of the respective interests of the Secretary of State, LCR, NCL or the Developer in the Site:

(a) the Council and TfL shall automatically be released by the disposing party; and

(b) the disposing party shall automatically be released by the Council and TfL,

from all obligations and covenants under this Agreement in relation only to that interest or the relevant part thereof (as the case may be), but without prejudice to the rights of the Council, TfL or the disposing party in relation to any antecedent breach of those obligations or covenants.

8.2 The Council hereby covenants with each of the Secretary of State, LCR, NCL and the Developer that it will upon reasonable request from any such party certify compliance or partial compliance (as and if appropriate) with the provisions of this Deed and at the cost of the Developer no more than once in any twelve (12) month period if so requested by any such party will (as and if appropriate) forthwith execute a Deed of Release or Partial Release from the relevant provision(s) of this Deed, and procure that a note thereof will be registered on the Register of Local Land Charges maintained by the Council.

8.3 Notwithstanding the provisions of clauses 2.2, 2.3, 2.4 and 2.5 this Agreement shall not be enforceable against

(a) save as provided for in Part 2 the owner, lessee or occupier of any of the individual residential units at the Development or any mortgagee or chargee of any owner, lessee or occupier or any person deriving title from them

(b) occupiers or occupational tenants of other individual units at the Development or any mortgagee or chargee of such occupier or occupational tenant or any person deriving title from them

save in relation to the following:

(a) in relation to any part of the Site where Facilities are to be provided where the rights of any owner, lessee, occupier or occupational tenant shall be subject to the continuing obligation to allow the provision of the Facility

(b) any development which exceeds a Threshold if the underlying planning obligation has not been performed

(c) any part of the Entire Public Realm

(d) Section R [Pedestrian Bridge]

(e) paragraph 4 of Section X in Part 2 [Environmental Sustainability – Energy]

(f) Section CC of Part 2 [Gas Holder Guide Frames] in relation to the land on which the Gas holders are stored proposed to be erected or erected

(g) paragraph 1 of Section EE of Part 2 [Existing Car Parking]

(h) paragraphs 8, 9 and 10 of Section FF [Green Transport

(i) paragraphs [] of Section NN [Affordable Housing]

8.4 The Council hereby covenants that it will upon the reasonable request of any occupier or occupational tenant promptly confirm in writing that obligations in this Agreement which are not intended to bind or apply to that occupier or occupational tenant, are not binding on or applicable to such occupier or occupational tenant.

9. **Council's powers and duties**

Nothing contained in this Agreement shall fetter the statutory rights, powers or duties of the Council nor require it to act in any way inconsistent with such rights, powers or duties.

10. **TfL'S powers and duties**

Nothing contained in this Agreement shall fetter the statutory rights, powers or duties of TfL nor require it to act in any way inconsistent with such rights, powers or duties.

11. **Local Land Charge**

The Council will promptly after the date of this Agreement register it as a Local Land Charge for the purposes of the Local Land Charges Act 1975.

12. **VAT**

12.1 All sums and amounts referred to in this Agreement are exclusive of VAT (if any) due or payable in any circumstances save or otherwise provided.

12.2 VAT shall only be payable on production of a valid VAT invoice.

13. **Good faith and good practice**

13.1 The parties agree with one another to act reasonably and in good faith in the fulfilment of their respective obligations under this Agreement.

13.2 The parties shall at all times use reasonable endeavours to ensure that the planning purpose underlying their respective obligations under this Agreement are achieved and are carried out in accordance with good industry practice at the time of performance provided that this clause shall not imply or create any obligation upon either party which is additional to the obligations contained in this Agreement.

13.3 [Where there is a reasonable endeavours obligation in this Agreement and the party responsible cannot fulfil the objective of the obligation then on request that party shall provide an explanation of the steps it has undertaken in carrying out its reasonable endeavours obligations.]

14. **Approvals, expressions of satisfaction**

Where any approval, agreement, consent, confirmation or an expression of satisfaction is required under the terms of this Agreement, such approval, agreement, consent, confirmation or expression of satisfaction shall be given in writing and shall not be unreasonably withheld or delayed.

15. **Review Procedure**

15.1 Any proposed document or proposed course of action on the part of the Developer which, under the terms of this Agreement, is required to be submitted to the Review Procedure shall be dealt with in accordance with the provisions of this Clause.

15.2 All submissions shall be copied to the Monitoring and Liaison Officer at the same time as they are submitted to the Council.

15.3 The Council shall respond to such submission so that the Developer receives such response within 20 working days of receipt of the submission, unless any of the provisions of Part 2 of this Agreement stipulate a different period for response in which case the Council shall respond so that the Developer receives such response within such stipulated period.

15.4 If the Council responds within the 20 working days or alternative stipulated period with comments on the submission or with a request for additional information such response shall be taken to be a due response on the submission for the purposes of clause 15.2.

15.5 If the Council does not respond within the period stated in clause 15.2 it shall be deemed to have approved such submission.

15.6 If the Council responds pursuant to clause 15.1 with comments on the submission and if the Developer amends the submission in accordance with such comments it need not be re-submitted to the Council for approval provided that the Developer shall within 20 working days provide a clean copy of the submission amended to take account of the comments.

15.7 If:

(a) the Council does not approve the submission, or

(b) is not deemed to have approved the submission pursuant to clause 15.5, or

(c) clause 15.6 does not apply

the Developer shall re-submit the relevant proposed document or proposed course of action and the procedure set out in clause 15 shall apply to such re-submission.

16. **Resolution of disputes**

16.1 The parties agree that they will resolve any dispute arising out of or in connection with this Agreement in accordance with the provisions of this clause 16.

16.2 Any party may serve written notice of any dispute arising out of or in connection with this Agreement on all other parties with an interest in the outcome of the dispute ("the Notice of Dispute"). The Notice of Dispute must specify the nature, basis and brief description of the dispute and the clause or paragraph of this Agreement pursuant to which the dispute has arisen.

16.3 The parties agree that, following service of a Notice of Dispute, the parties will first attempt to resolve the dispute by negotiations which shall be conducted in good faith. Those negotiations shall include at least one meeting between representatives of the

parties ("the Settlement Meeting"). The Settlement Meeting shall take place within ten (10) working days of the Notice of Dispute being served. The representatives who attend the Settlement Meeting on behalf of each party shall include at least one representative who is vested with authority to settle the dispute on behalf of the party that he or she represents.

16.4 If the dispute between the parties has not been resolved within ten (10) working days of the Notice of Dispute having been served and unless the parties agree that mediation is not an appropriate means of resolving the dispute (in which case either party shall be entitled to serve a Further Notice of Dispute in accordance with clause 16.5 which shall trigger the procedure for the determination of the dispute by an Expert) the parties will attempt to settle the dispute by mediation in accordance with the CEDR Model Mediation Procedure. Either party may start the mediation process by writing to the other party proposing the names of three mediators, and the date of that letter shall be regarded as the "Mediation Start Date". If the parties cannot agree upon the identity of a mediator within five (5) working days of the Mediation Start Date, then a mediator will be nominated by CEDR and that mediator will be appointed by the parties. The parties agree that the mediation process shall be completed within the period of twenty (20) working days following the Mediation Start Date and such period shall be notified to and shall be a term of the appointment of the relevant mediator.

16.5 If the dispute has not been settled at the end of the mediation process any party shall be entitled to serve a further written notice of the dispute ("the Further Notice of Dispute") which shall trigger the procedure for the determination of the dispute by an Expert.

16.6 The Further Notice of Dispute shall be served on all other parties with an interest in the outcome of the dispute and shall specify:

(a) the nature, basis and brief description of the dispute

(b) the clause or paragraph of this Agreement pursuant to which the dispute has arisen; and

(c) the proposed Expert.

16.7 The Expert shall act as an expert and not as an arbitrator and his decision will (in the absence of manifest error) be final and binding on the parties hereto and at whose cost shall be at his discretion or in the event that he makes no determination, such costs will be borne by the parties to the dispute in equal shares.

16.8 The Expert will be appointed subject to an express requirement that he reaches his decision and communicates it to the parties within the minimum practicable timescale

allowing for the nature and complexity of the dispute and in any event not more than twenty (20) working days from the date of his appointment to act.

16.9 The Expert will be required to give notice to each of the said parties inviting each of them to submit to him within ten (10) working days written submissions and supporting material and will afford to each of the said parties an opportunity to make counter submissions within a five (5) working days in respect of any such submission and material.

16.10 The parties shall agree at the time of the relevant dispute whether the individual appointed as the Expert shall be:

(a) A Solicitor (who shall be a Member of The Law Society with a minimum of ten (10) years' recent and relevant experience in the subject matter of the dispute);

(b) Leading Conveyancing or Leading Landlord and Tenant Counsel;

(c) A specialist Chartered Surveyor (who shall be a Fellow of the Royal Institution of Chartered Surveyors with a minimum of ten (10) years' recent and relevant experience in the subject matter of the dispute);

(d) A Chartered Civil Engineer (who shall be a member of the Institution of Civil Engineers with a minimum of ten (10) years' recent and relevant experience in the public or private sector).

16.11 If the parties are able to agree upon the qualification of the Expert in accordance with clause 16.10 but are unable to agree upon the identity of the individual to be appointed as the Expert the parties shall apply for nomination of an individual to:

(a) In the case of clause 16.10(a) the President of The Law Society;

(b) in the case of clause 16.10(b) the Chairman of the Bar Counsel;

(c) in the case of clause 16.10(c) the President of the Royal Institution of Chartered Surveyors;

(d) in the case of clause 16.10(d) the President of the Institution of Civil Engineers.

16.12 If the parties are unable to agree upon the qualification of the Expert in accordance with clause 16.10, the matter shall be referred to the President of The Law Society who shall determine the appropriate qualification for the Expert from the list set out in clause 16.10 and the President of The Law Society, having determined the qualification of the Expert, shall nominate an individual in the case of a Solicitor or shall refer the matter to the Chairman of the appropriate body as set out in clause 16.11 if he has decided that the

matter should be determined by someone with the qualifications set out in clause 16.10(b), (c) or (d).

17. **Third Party Rights**

17.1 Save where otherwise specified in this Agreement no person who is not a party to the Agreement shall have any rights under the Contracts (Rights of Third Parties) Act 1999 to enforce any terms of or otherwise in relation to this Agreement.

18. **Notices**

18.1 Any notice to be delivered to a party under this Agreement must be in writing and be sent to it at the fax number or address and marked for the attention of the person, and copied to the person(s), identified below or instead, to such alternatives as may be substituted for them from time to time by written notification from the party making such substitution.

The Council:

Fax Number: [ ]

Address: Town Hall, Judd Street, London WC1H 9LP

FAO: [ ]

Copy to: [ ]

The Secretary of State:

Fax Number: 020 7944 2158

Address: Zone 5/25, Great Minster House, 76 Marsham Street, London SW1P 4DR

FAO: Graham Dalton, Director of Rail Projects, Department for Transport

Copy to: Michael Hurn

LCR:

Fax Number: 020 7391 4400

Address: Third Floor, 183 Eversholt Street, London NW1 1AY

FAO: Roger Groom

Copy to: The Company Secretary

NCL:

Fax Number: [ ]

Address: [ ]

FAO: [ ]

Copy to: The Company Secretary

The Developer:

Fax Number: 020 7734 4474

Address: 5 Albany Courtyard, Piccadilly, London W1J 0HF

FAO: Robert Evans

Copy to: The Company Secretary

TfL:

Fax Number: [ ]

Address: Windsor House, Victoria Street, London SW1

FAO: [ ]

Copy to: [ ]

Metropolitan Police:

Fax Number: [ ]

Address: [ ]

FAO: [ ]

Copy to: [ ]

Primary Health Care Trust:

Fax Number: [ ]

Address: [ ]

FAO: [ ]

Copy to: [ ]

London Wildlife Trust:

Fax Number: [ ]

Address: [ ]

FAO: [ ]

Copy to: [ ]

18.2 Any such notice must be delivered by hand or sent by fax or pre paid first class post and if delivered by hand, will conclusively be deemed to have been received on the next working day after the date of delivery, if sent by fax on the date of despatch or, if that is not a working day, on the next working day and if sent by post and posted within the United Kingdom will conclusively be deemed to have been received two (2) working days after the date of posting.

18.3 If a notice is sent by fax, a copy must be sent on the same day by pre paid first class post, but for the avoidance of doubt, the date of service of such notice will be the date of despatch of the fax.

19. **Standards for Facilities**

19.1 Each of the Facilities shall be provided in accordance with the relevant legislation and national standards applicable at the time at which construction of the Facility commences.

19.2 Each of the Facilities shall be provided in accordance with other Relevant Standards applicable on the date of the Lease Offer or the approval of the final reserved matters application relating to the scale and appearance of that Facility, whichever is the later.

19.3 The Developer shall only be required to provide additional floorspace above that specified in the Agreement for each of the Facilities:

(a) as a result of changes in legislation or national standards after the date of this Agreement but prior to commencement of construction of the relevant Facility, properly and reasonably applied to the relevant Facility, or

(b) as a result of changes in other Relevant Standards after the date of this Agreement but prior to the date of the Lease Offer or the final application for reserved matters approval in relation to that Facility, whichever is the later, such that the local authority, health authority, police authority or other public authority (as is the appropriate authority for the facility) would reasonably refuse to take a transfer or lease of the relevant Facility without such additional floorspace.

19.4 The Council shall notify the Developer in writing as soon as it becomes aware of the requirement for such additional floorspace (and in any event prior to the making of the relevant Lease Offer) such notification to include a full explanation of the reasons for the additional floorspace by reference to the provisions of clause 19.2

19.5 The reserved matters application in relation to the design of the relevant Facility and any material changes to the design approved pursuant to such reserved matters application shall be prepared in consultation with the party intended to take the lease of the Facility.

19.6 The Facilities shall be constructed to comply with the relevant building regulations requirements.

20. **Indexing of Contributions**

20.1 The financial payments payable by the Developer shall be Index Linked in accordance with this clause.

20.2 The financial payments which are to be Index Linked and the basis of indexation are set out in Schedule [ ].

21. **Lease Offer**

21.1 In relation to all Facilities the Developer shall serve a Lease Offer:

(a) not more than five (5) years prior to the intended date of Practical Completion of the relevant Facility (and shall provide such evidence as the Council may reasonably require that the period before the Practical Completion of the relevant Facility is no more than five (5) years); and

(b) provided that there has been adequate consultation in accordance with clause 19.5 prior to that date, not less than twenty (20) working days prior to the submission for approval of reserved matters or other details (whichever is first submitted) in relation to the relevant Facility

22. **Alternatives to provision of Facilities**

22.1 If at any time prior to the service of a Lease Offer (or in respect of the MUGA which is not subject to a lease, prior to the submission of reserved matters/details related to the MUGA) the Council or the proposed tenant of the relevant Facility reasonably considers that there has been a material change in the planning purpose which underlies the provision of the relevant Facility the Council shall notify the Developer in writing as soon as it becomes aware of such change and at the same time (or as soon as practicable thereafter) shall provide to the Developer in writing full details of such change. The Developer and the Council shall review such change (in consultation with the proposed

tenant) and shall use reasonable endeavours to agree and implement an alternative means of meeting the relevant planning purpose provided that where the process in this clause has been validly triggered and as a result of such material change in the relevant planning purpose such planning purpose no longer exists the Developer shall be under no further obligation to agree and implement an alternative means of meeting the relevant planning purpose.

22.2 If the Council or the proposed tenant of the relevant Facility does not serve a Lease Acceptance within the requisite period after service of the relevant Lease Offer, the Developer and the Council shall review and use reasonable endeavours to agree and implement an alternative means of meeting the planning purpose which underlies the provision of the relevant Facility and an appropriate alternative Threshold by which the alternative means of provision will be provided.

22.3 If:

(a) an alternative means of meeting the planning purpose has been agreed, and

(b) an alternative Threshold for the alternative means of provision has not been agreed or such alternative Threshold is later than First Occupation (or anticipated First Occupation) of more than ninety per cent (90%) of the permitted floorspace within the Development

the Developer shall in relation to the Facilities listed in clause 22.4 provide the relevant Facility Bond for the relevant amount also set out in clause 22.4 and the relevant Facility Bond shall be provided no later than the date of the original Threshold applicable to the relevant Facility. The relevant Facility Bond shall be released upon the alternative means of provision having been complied with provided that if such planning purpose no longer exists the Developer shall be under no further obligation to agree and implement an alternative means of meeting the relevant planning purpose.

22.4 The relevant Facilities and the amount of the Facility Bond for each such Facility are as follows:

(a) Bicycle Storage Facility : £26,150

(b) Camley Street Natural Park Centre : £176,550

(c) Community Meeting Facilities : £448,500

(d) Construction Training Centre : £625,000

(e) Indoor Sports Hall : £1,485,000

(f) Leisure Facility : £3,927,000

(g) Police Control Facility : £248,250

(h) Primary Health Care Centre : £250,000

(i) Primary Health Care Walk In Centre : £150,000

(j) Skills and Recruitment Centre : £339,100

(k) Sure Start/Children's Centre : £927,600

(l) Two Form Entry Primary School : £2,680,000

22.5 If the provisions in clauses 22.1 or 22.2 are validly triggered and if the alternative means of meeting the relevant planning purpose in respect of the relevant Facility is not reasonably capable of being achieved prior to the relevant occupancy restriction related to such facility then such occupancy restrictions shall no longer apply.

22.6 The obligation on the part of the Developer to use reasonable endeavours in clauses 22.1 and 22.2 shall not require the Developer to incur costs or financial obligations which it can demonstrate are materially above those which would have been incurred in providing the relevant Facility and in calculating such costs or financial obligations the Developer shall be entitled to include the anticipated cost of providing the relevant Facility Bond.

23. **Contracts for specified works**

23.1 Under:

(a) Conditions 53(b) and 54(d) of the Planning Permission

(b) Condition 2 of the consent pursuant to the Stanley Building North Application

(c) Condition 2 of the consent pursuant to the Gas Holder No 8 Application

(d) Condition 2 of the consent pursuant to the Handyside Canopies Application

(e) Condition 2 of the consent pursuant to the Great Northern Hotel Application

(f) Condition 2 of the consent pursuant to the Culross Buildings Application

(g) Condition 2 of the consent pursuant to the Western Goods Shed Application

(h) Condition 2 of the consent pursuant to the Plimsoll Viaduct Application

(i) Condition 2 of the consent pursuant to the Structures Application

there is a requirement for contracts to be placed in respect of works to the specified buildings and structures.

23.2 In order to evidence to the Council that such contracts have been placed the Developer shall either provide to the Council:

(a) a copy of such contract (save that financial information may be excluded), or

(b) certification from a solicitor appointed by the Developer that such contract:

(i) does not contain conditions such as would prevent the carrying out of the relevant works;

(ii) is not terminable other than in the case of the non performance by the appointed contractor; and

(iii) is entered into in good faith with the objective of securing the specified work in accordance with the agreed method statement or programme.

24. **Legal fees and monitoring costs**

24.1 The Developer agrees to pay the Council its proper and reasonable legal costs incurred in preparing this Agreement on or prior to the date of completion of the Agreement.

24.2 On Implementation and on each anniversary of Implementation for the next fourteen (14) years the Developer shall pay to the Council the sum of £7,500 Indexed (RPI) in relation to the Council's costs of monitoring the Developer's obligations under this Agreement provided that this obligation shall be suspended and the period for payment extended by a year if in any year after Implementation no development pursuant to the Planning Permission has taken place in the twelve (12) months preceding the relevant anniversary.

25. **Remedies**

25.1 The Developer shall notify the Council of the occurrence of any breach of its obligations under this Agreement as soon as practicable after it becomes aware of such matter and in any event within ten (10) working days of such matter becoming apparent to the Developer.

25.2 Where the Council becomes aware of a breach or non-compliance with a provision of this Agreement the Council shall be entitled to serve notice of such breach upon the Developer and the notice of breach shall state the nature of the breach, the steps required to remedy the breach and a reasonable timescale for remedying the breach.

25.3 The Developer shall within ten (10) working days of receiving the said notice give written notification to the Council of its response to the notice including any claim that it will

remedy the breach within the stated timescale, that the timescale is too short or that it rejects the notice for the reason that no breach has occurred.

25.4 The Council and the Developer shall hold discussions about the notice of breach where either party so requests.

25.5 In the event of a dispute arising regarding the notice of breach the matter shall be determined under clause 16.

25.6 Save in circumstances where the notice of breach is either still the subject of discussions between the parties or is the subject of dispute determination under clause 16, if the Developer has not complied with a notice of breach the Council shall be entitled to pursue legal remedies.

25.7 The Developer agrees that it shall observe and perform the conditions restrictions and other matters mentioned in this Agreement and shall indemnify the Council for any expenses or costs incurred by the Council in respect of any breach by the Developer of any obligations herein contained save to the extent that any act or omission of the Council its employees or agents has caused or contributed to such expenses or costs.

25.8 If the Developer persistently and deliberately fails to comply with material obligations under this Agreement the Council shall forthwith serve on the Developer written notice of such failure. If the Developer does not accept such notice it shall be entitled to invoke the dispute resolution provisions in clause 16. If the Developer has not invoked such dispute resolution provisions or if the Council's notice has been upheld following such dispute resolution provisions having been invoked, the Council shall be entitled to increase the level of its monitoring of the Developer's obligations for a period of 6 months following each such failure and the Developer shall pay to the Council at the end of such six month period the proper and reasonable costs of such increased monitoring.

26. **Notice / monitoring**

26.1 The Developer shall give written notice to the Council on or prior to the Implementation Date specifying that Implementation of the Development has taken or is about to take place.

26.2 Within fifteen (15) working days following any Threshold the Developer shall certify in writing to the Council hereof quoting the date upon which the relevant Threshold was met.

27. **Planning Gain Supplement**

27.1 If PGS is introduced the parties will use reasonable endeavours to agree such variations to this Agreement with the intent that :

(a) the planning benefits secured by this Agreement should continue to be secured and delivered;

(b) the Secretary of State, LCR, NCL and the Developer should not be in a position where they are:

(i) required to pay PGS and to perform planning obligations under this Agreement in relation to matters covered by PGS; and

(ii) in a financially worse position than is presently contemplated as a consequence of paying PGS and performing the obligations under this Agreement;

(c) the Council will as soon as reasonably practicable upon receipt of PGS payments agree with the Secretary of State, LCR, NCL and the Developer the relevant proportion of the cost of performing any planning obligation under this Agreement in relation to matters covered by PGS;

(cc) the Council will pay the Secretary of State, LCR, NCL and the Developer the relevant proportion of the cost of performing any planning obligation under this Agreement on the later of the receipt of PGS payments and the performance of the planning obligation under this Agreement;

(d) the Council cannot be required to make any payment to any party unless and until it receives a payment in relation to PGS;

(e) the relevant proportion in respect of which the Council is obliged to compensate the Developer is either:

(i) where the amount of PGS received by the Council can be calculated directly by reference to the Development, the amount received by the Council as a consequence of payment of PGS in relation to the Development, not exceeding the total cost to the Developer of performing the relevant planning obligations under this Agreement; or

(ii) where the PGS received by the Council also relates to PGS referable to other developments and as a consequence the amount of PGS received by the Council cannot be calculated directly by reference to the Development, either:

(1) the proportion that the amount received by the Council as a consequence of payment of PGS in relation to the Development bears to the total amounts received by the Council over an appropriate period; or

(2) the proportion that the total cost of performing those obligations under this Agreement to which PGS is referable bears to the amount received by the Council as a consequence of payment of PGS in relation to the development;

(f) no allowance will be made for purposes of compensation for the provision of land within the Site as a cost of performing the planning obligation under this Agreement

(g) no variation to this Agreement will be made that would result in any party or combination of parties being cumulatively paid more than the cost of performing the planning obligation under this Agreement in relation to which the relevant proportion of PGS is being paid

(h) where a planning permission is obtained in relation to the Site and clause 4.2 applies requiring specified planning obligations under this Agreement to continue to be performed then the provisions of this clause shall apply in relation to any PGS paid in relation to that planning permission

28. **Certification of Practical Completion**

28.1 For the purposes of this Agreement Practical Completion of the following facilities or infrastructure shall be made as follows:

(a) The Developer shall self-certify Practical Completion of all matters which are the subject of Thresholds save for those listed in clause 28.1(b).

(b) The Developer shall procure independent certification (which may comprise certification by any employed agent of the Developer) of Practical Completion of:

(i) the Facilities;

(ii) the Small Business Space;

(iii) the MUGA

29. **Application and Repayment of Financial Contributions**

29.1 The Council shall use reasonable endeavours to spend any Contribution on the stated purpose for which it has been paid to the Council within 4 years of receipt of the Contribution.

29.2 Subject to clause 30 and any alternative provisions within Part 2, any Contribution which has not been spent on the stated purpose for which it has been paid to the Council by the

final date upon which it may be so spent, shall be repaid to the party which paid the Contribution within 3 months of such final date.

30. **Use of Payments towards Alternative Purposes**

30.1 The clauses in Part 2 of the Agreement referred to in Schedule [ ] provide for sums to be paid to the Council for various prescribed purposes and the Council is obliged to apply those sums to such prescribed purposes as listed in the Schedule or to repay those sums (or parts of them) to the Developer in specified circumstances.

30.2 The Council may apply up to £1,500,000 of the aggregate of the sums towards one or more alternative purposes(s) provided :

(a) the original purpose for which the relevant payment is stated to be made has already been fulfilled or is still capable of being fulfilled in any event; and

(b) either :

(i) the alternative purpose(s) is or are purposes for which payments are being made by the Developer under the paragraphs listed below; or

(ii) with the approval of the Developer to the proposal, the alternative purpose has a planning purpose directly related to the Development and the securing of its regeneration benefits;

30.3 Any sum unspent on either its primary purpose or on an alternative purpose shall be repaid to the Developer no later than twenty (20) working days following the expiry of ten (10) years after receipt of such payment.

30.4 The Council shall report annually to the Developer on an annual basis identifying all expenditure to date for each of the following :

(a) prescribed purposes outlined below;

(b) alternative purposes.

30.5 The Council may apply further sums above the said £1,500,000 figure towards one or more alternative purpose(s) subject to the prior written consent of the Developer and subject to any sum unspent on such agreed alternative purpose being repaid no later than ten (10) years after receipt of such payment.

31. **Termination of Obligations**

31.1 In respect of the Developer's obligations in this Agreement which do not have an end date the Developer shall be entitled to apply to the Council for the Council's written approval to terminate any of such obligations on the later of:

(a) twenty-five (25) years following the Implementation date, or;

(b) five (5) years after 75% of the total permitted floor space within the Development has been Practically Completed

31.2 The Council shall give such written approval in circumstances where:

(a) the Developer has complied in all material respects with the obligation, and

(b) the planning purpose underlying the obligation can reasonably be said to have been met, and

(c) the cost to the Developer of continuing to comply with the obligation does not justify the obligation continuing in effect.

31.3 Upon the termination of obligations pursuant to this clause the Developer shall be released from all or any further liability in respect of such obligations.

In Witness whereof this Deed has been executed and delivered by the parties hereto on the date which appears at the head of this document.

Schedule [ ] [*clause 20.2 refers*]

King's Cross Central: Indexation of Financial Sums or Financial Value 30.06.06

RPI = Retail Price Index
TPI = Building Cost Information Service (BCIS) Tender Price Index
All clause numbers refer to Lovells draft

	Basis of Indexation
Employment and Training Construction	
Clause 15 £ 750,000 "to support the activities of the Construction Training Centre"	RPI
Employment and Training Post Construction	
Clause 4 £ 1,350,000 "to support the activities of the Skills and Recruitment Centre"	RPI
Clause 5 £ 40,000 "towards the SRC Operating Costs"	RPI
Clause 6 £ 360,000 "towards the SRC Operating Costs"	RPI
Clause 7 £ 75,000 "marketing initiatives in relation to the Skills and Recruitment Centre"	RPI
Clause 11 £ 50,000 "procuring professional advice"	RPI
Community Enterprise	
Clause 1 £ 25,000 "procuring professional advice to establish CUCDFI"	RPI
Clause 1 £ 300,000 "the establishment and operation of the CUCDFI"	RPI
Local Business Support and Local Purchasing Strategy	
Clause 5 £ 25,000 "towards helping the King's Cross Business Forum engage with incoming businesses"	RPI
Social and Community Fund	
Clause 1 £ 100,000 "towards the Social and Community Fund"	RPI
Clause 2 £ 900,000 "towards the Social and Community Fund"	RPI
Education	
Clause 5 £ 1,500,000 "The Secondary School Contribution"	TPI
Supporting Local Schools	
Clause 2 £ 100,000 "to provide the Floating Classroom"	TPI

Public Realm and Development Estate Realm Areas

Clause 9 £ 50,000 "investigating the viability of establishing [an] Academy [for Public Realm Management"	RPI

Adjacent Street Improvements

Clause 2 £ 400,000 "cost of the upgrading of the paving and lighting along Camley Street"	TPI
Clause 3 £ 190,000 ""towards the provision of better access…between Camley St and Agar Grove"	TPI
Clause 4 £ 800,000 "cost of the upgrading of the paving and lighting along York Way"	TPI
Clause 5 £ 500,000 "towards the carrying out of Safe Routes to School Measures…within Islington"	TPI
Clause 6 £ 445,000 "cost of the...resurfacing and environmental enhancement of Copenhagen St…"	TPI
Clause 7 £ 275,000 "cost of the…resurfacing and environmental enhancement of Wharfdale Road…"	TPI

Improvement to Adjacent/Local Open Spaces

Clause 1 £ 75,000 "cost of…upgrading of landscaping and enhancement of open spaces at Purchase Street"	TPI
Clause 2 £ 50,000 "cost of…works to create step free access between Camley St and St Pancras Gardens"	TPI

Water Features and Public Art

Clause 1 £ 1,750,000 "sculptures and other public art within the Public Realm"	TPI

Camley Street Natural Park

Clause 3 £ 50,000 "tree planting, re-scultping of site levels and other conservation works"	TPI
Clause 6 £ 100,000 "expansion by LWT...of its local public participation and educational work"	RPI
Clause 7 purchase corporate memberships of the LWT	no indexation

Canal and Waterspace Enhancement Works

Clause 1 £ 750,000 Implement Canal and Waterspace Enhancement Works along south side of Regent's Canal	TPI
Clause 2 £ 5,250,000 Implement Canal and Waterspace Enhancement Works along north side of Regent's Canal	TPI
Clause 3 £ 125,000 Implement Access Improvement works at Camley Street steps	TPI

Carbon Fund

Clause 1 £ 500,000 "into the Carbon Fund" TPI

Green Travel Initiatives

Clause 11 £ 100,000 "funding for the extension of the… Camden shopmobility scheme…."	RPI

Improvements to Bus Services

Clause 1 £ 1,620,000 Route 390 Improvements (£540,000 x 3)	RPI
Clause 2 £ 498,000 Route 63 Improvements (£166,000 x 3)	RPI
Clause 3 £ 1,215,000 Route 394 Improvements (£405,000 x 3)	RPI
Clause 4 £ 915,000 Route 214 Improvements (£305,000 x 3)	RPI

Maiden Lane Station on North London Line

Clause 1 £ 30,000 "feasibility study into the provision of a new Maiden Lane Station"	RPI

Affordable Housing

Clause 8 see Schedule Affordable Housing Transfer Prices	TPI

Schedule [ ] [*clause 30.4 refers*]

Subject and paragraph in Agreement	Amount	Prescribed Purpose
Employment and Training Construction - Paragraph 15	£750,000	"to support the activities of the Construction Training Centre"
Employment and Training Post Construction - Paragraph 4	£1,350,000	"to support the activities of the Skills and Recruitment Centre"
Employment and Training Post Construction - Paragraph 5	£40,000	"to support SRC Operating Costs"
Employment and Training Post Construction - Paragraph 6	£360,000	"to support SRC Operating Costs"
Employment and Training Post Construction - Paragraph 7	£75,000	"marketing initiatives in relation to the Skills and Recruitment Centre"
Employment and Training Post Construction - Paragraph 11	£50,000	"procuring professional advice" on SRC continuing eg as trust
Community Enterprise – Paragraph 1	£325,000	"towards….CUCDFI"
Local Business Support and Local Purchasing Strategy – Paragraph 5	£25,000	"towards helping the King's Cross Business Forum engage with incoming businesses"
Education - "The Secondary School Contribution"	£1,500,000	"towards the expansion/upgrading of one or more local secondary schools"
Supporting Local Schools – Paragraph 2	£100,000	"provide the Floating Classroom"
Adjacent Street Improvements - Paragraph 2	not more than £400,000	"cost of the upgrading of the paving and lighting"

Subject and paragraph in Agreement	Amount	Prescribed Purpose
Adjacent Street Improvements – Paragraph 3	£190,000	“better access and connectivity between Camley Street and Agar Grove”
Adjacent Street Improvements - Paragraph 4	not more than £800,000	"cost of the upgrading of the paving and lighting"
Adjacent Street Improvements - Paragraph 5	£500,000	“Safe Routes to School Measures”
Adjacent Street Improvements - Paragraph 6	not more than £445,000	“environmental enhancement of Copenhagen Street”
Adjacent Street Improvements - Paragraph 7	not more than £275,000	“environmental enhancement of Wharfdale Road”
Improvement to Adjacent/Local Open Spaces - Paragraph 1	not more than £75,000	"cost of … upgrading of landscaping and enhancement of… Purchese Street "
Improvement to Adjacent/Local Open Spaces - Paragraph 2	not more than £50,000	"cost of … works to create step free access"
Maiden Lane Station on North London Line - Paragraph 1	£30,000	"feasibility study"
Existing Car Parking Rights – Paragraph 5	£75,000	“cost of…. Controlled Parking Zone”
Existing Car Parking Rights – Paragraph 6	£300,000	“varying… Islington Controlled Parking Zones…”

PART 2

SPECIFIC OBLIGATIONS

A: Employment & Training - Construction

DEFINITIONS

"Agreed Targets" : The following targets achieved by using traditional construction techniques:-

(a) seven and a half per cent (7.5%) of the person-weeks of employment used in the on-site construction of the Development to be provided by trainees/apprentices recruited via the Construction Training Centre or other facilities and programmes targeting training (usually employed-status) at residents within the CIZ and WIZ;

(b) two thirds of the seven and a half per cent (7.5%) referred to in (a) above to be trainees/apprentices working towards an NVQ, the balance to include specialist and customised short-course training leading to industry-recognised qualifications and training under the Construction Skills Certification Scheme, the split between these various components to be agreed between the Developer and the Council on a rolling basis, every two years; and

(c) appropriate supervision and support, wherever possible by a qualified trade assessor, to be provided by construction employers on the Development.

the parties acknowledge the use of off-site prefabrication and other modern methods of construction may lead to these targets being varied by agreement with the Council.

"CTC Lease" : A lease of the Construction Training Centre at a peppercorn rent to be granted by the Developer to the Council in accordance with the heads of terms annexed at Schedule [ ].

"CTC Support Plan" : A plan setting out how the Developer will support the operation of the Construction Training Centre and assist in the meeting of the Agreed Targets in relation to:

(a) The initial split within the Agreed Targets between the components referred to in sub-para (b) of the definition of "Agreed Targets";

(b) details of the specific steps the Developer shall take (with its contractors and principal sub-contractors) to assist the CTC Workplace/Construction Co ordinator to:

(i) co-ordinate methods of recruitment; give early warnings of need and opportunity; register all vacancies with the CTC and co

ordinate interviews, employment and training offers, job brokerage, advertising and signposting, and working with schools;

(ii) report to the King's Cross Construction Impact Group and other stakeholders annually;

(c) the provision for obtaining and supplying to the Council (at agreed intervals) to the extent it lawfully can, monitoring information from its contractors on the delivery of Agreed Targets jobs and training including (but not limited to) monitoring by address postcode gender age job description ethnicity disability and previous employment status provided that the Council shall comply with such confidentiality restrictions as the Developer reasonably imposes in relation to such information; and

(d) details of any further steps to be taken to support the local employment of the construction workforce in order to achieve the target employment of at least fifteen per cent (15%) local employment from the CIZ and WIZ.

(e) Details of any further steps to be taken to support the local employment of the construction workforce in order to achieve the aspirational target of thirty per cent (30%) local employment from the CIZ and WIZ the parties acknowledging that this is an ambitious target.

"CTC Relocation Strategy" : A strategy setting the measures to be undertaken by the Developer at its own expense to relocate the Construction Training Centre to another location within the Site for the provision of a new Construction Training Centre in relation to:

(a) details of how the relocation of the Construction Training Centre will be undertaken to ensure the services provided by the Construction Training Centre will not be unreasonably disrupted including provision for relocation at a time that suits the occupier and is reasonable having regard to the needs of the Developer;

(b) provision for meeting the reasonable cost of the relocation in full including transporting equipment furniture and any other property from its current location to the new site; and

(c) details of planned advertising publicity and communications to inform those with an interest in the Construction Training Centre of the relocation within a reasonable time setting out key dates.

"CTC Termination Date" : The date on which at least two of the following three conditions are met:

(i) eighty per cent (80%) of the Development measured by permitted floorspace is Practically Completed;

(ii) development on 35 of the 44 (ie 80%) Development Plots shown on plan KXC005 is Practically Completed;

(iii) twelve (12) years have passed since the grant of the first CTC Lease.

"CTC Workplace/Construction Co ordinator" An appropriately qualified person appointed by the Developer to lead and co ordinate the activities within the Construction Training Centre including the Development's construction training and recruitment agenda, pilot training initiatives, working with local schools, assisting the Developer in relation to the support of Local Businesses and the operation of the Contractors' Forum further details of which are contained at [Schedule A, Part 2].

"Construction Training Centre" : A centre to be constructed by the Developer in accordance with (i) to (vi) below comprising a centre to address the difficulties experienced by local people in finding and sustaining employment within the construction industries and the requirements of contractors for a suitably trained and experienced workforce which must meet the following minimum specification and in respect of which further details are contained at [Schedule A, Part 1]

(i) one or two storey premises of not less than 600 square metres GEA;

(iii) sited within the Kings Cross Opportunity Area. The location to be approved by the Council before Implementation of the same, a response to be made by the Council in accordance with the Review Procedure;

(iv) not less than 500 sq m outdoor space to be used contiguously with the centre including appropriate landscaping of the outdoor space having regard to its use which (if unable to be provided adjacent to the Centre) shall be not more than 250 metres from the centre;

(v) WCs kitchen offices conference rooms training rooms and other ancillary facilities contained within and reasonably necessary for the use of the Construction Training Centre such facilities to be approved in advance by the Council in accordance with the

Review Procedure; and

(vi) fitting out of the Construction Training Centre to a Category A Finish.

"Contractors' Forum" : A forum to enable the Developer, the Developer's contractors and principal sub-contractors the Council and occupiers of the Development using construction contractors to co ordinate the delivery of construction employment and training initiatives within the Development with a view inter alia to improve employment and training opportunities for local people across both LB Camden and LB Islington.

"Contractors' Forum Strategy" : A strategy prepared by the Developer detailing how the Contractors' Forum will be formed and operate to be approved by the Council in relation to:

(a) the specific steps the Developer shall take to ensure its contractors and principal sub-contractors attend the Contractors' Forum and co-operate with and facilitate the Construction Training Centre activities;

(b) the specific steps the Developer will take to ensure its contractors and principal sub-contractors assist in the meeting of the Agreed Targets; and

(c) provision for the publication of a register of vacancies at regular intervals to be agreed with the Council.

"Match Funding" : Funding to be secured from a range of organisations including JobCentre Plus, the Learning and Skills Council, Construction Industry Training Board, London Development Agency and Building London Creating Futures Programme or their successor bodies or other bodies offering match funding opportunities including [in the order of] [£5.8 million] to assist the Developer and the Council in the meeting of the Agreed Targets for NVQ-based training.

OBLIGATIONS

Construction Training Centre

1. Subject to the provisions of Clause [X] and the Council having served a Lease Acceptance and subject also to paragraph 5, no later than three (3) months following the Implementation Date:

   (a) the Developer shall have Practically Completed the Construction Training Centre; and

   (b)

2. Subject to paragraph 5 if the Construction Training Centre has not been Practically Completed in accordance with paragraph 1 (save in respect of matters demonstrably beyond the Developer's reasonable control) the Developer shall not carry out or permit to be carried out any further works of construction on Site (save for those necessary to provide the Construction Training Centre) until such time as paragraph 1 has been complied with.

3. No later than three (3) months following Practical Completion of the Construction Training Centre the Developer shall grant the CTC Lease [and pay to the Council the cost of equipping the Construction Training Centre notified under paragraph 1(b), provided that the Developer shall not be required to pay more than £31,000.]

4. If the CTC Lease has not been granted in accordance with paragraph 3 due only to the default of the Developer or where the only outstanding actions are on the part of and entirely within the control of the Developer the Developer shall not carry out or permit to be carried out any further works of construction on the Site until such time as paragraph 3 has been complied with.

Temporary Construction Training Centre

5. The Developer may (as an alternative to constructing new premises for the Construction Training Centre) for a period no longer than three (3) years beginning with the Implementation Date provide such facility within the existing CTRL construction training centre shown on Plan [1] upon terms agreed in writing with the Council (such terms to replicate as far as possible the terms which would apply if the Construction Training Centre had been built in accordance with the terms of this Agreement).

6. At the request of the Developer, the Council shall use reasonable endeavours to make the CTRL construction training centre available to the Developer at no cost to the Developer provided that:

   (a) should the Council be unable to procure use of the CTRL construction training centre at no cost it shall not be liable for any costs incurred by the Developer in the use of the CTRL construction training centre as an alternative Construction Training Centre; and

   (b) should the Council be unable to procure use of the existing CTRL construction training centre and the Developer not be able to procure such use the requirement on the Developer to carry out and complete the Construction Training Centre under paragraph 1 shall remain in place.

Relocation of the Construction Training Centre

7. The Developer may move the location of the Construction Training Centre during the carrying out of the Development to another location within the Development provided that:

   (a) prior to such relocation the Developer has submitted the CTC Relocation Strategy to the Council for approval and the Council has approved the CTC Relocation Strategy a response to be made by the Council in accordance with the Review Procedure;

   (b) the replacement Construction Training Centre is completed and fitted out to the same specification and standard as required for the Construction Training Centre under the terms of this Agreement;

   (c) if reasonably practicable, the replacement Construction Training Centre is sited such that the accommodation is capable of later extension (any such extension to be at the Council's expense);

   (d) either the CTC Lease of the replacement Construction Training Centre has been granted to the Council on the same terms as the CTC Lease provided that the term of such lease shall be the unexpired residue of the term of the CTC Lease or the parties have agreed that the existing CTC Lease will apply in respect of the replacement Construction Training Centre;

   (e) any reasonable costs and expenses incurred by the Council in relation to any relocation of the Construction Training Centre under this paragraph shall be borne by the Developer.

End of Use of Construction Training Centre and Handover

8. Within two (2) months following the CTC Termination Date or the moving of the Construction Training Centre pursuant to paragraph 7 (unless the parties have agreed that the CTC Lease continues to apply) the Council shall at the request of the Developer surrender to the Developer the CTC Lease in accordance with the lease provisions.

9. Unless otherwise agreed by the Council the Developer shall remove the Construction Training Centre at the CTC Termination Date and carry out appropriate works of reinstatement or remedial work having regard to the Developer's proposed future use of the Site.

10. The Developer will use reasonable endeavours to ensure that the termination of the obligations relating to the Construction Training Centre, the CTC Workplace/Construction Co ordinator and the Contractor's Forum is carried out in a manner that provides the Council with the opportunity to continue to provide training and employment services of a similar nature provided always that:

    (a) if the Council can demonstrate that the Developer has not used such reasonable endeavours the CTC Lease shall not terminate until the Developer's obligations have been fulfilled;

    (b) nothing in this paragraph 10 shall imply a requirement on the Developer to grant a new lease or renew the existing lease; and

    (c) the non-termination of the CTC Lease shall not require the Developer to provide the CTC Workplace/Construction Co-ordinator or to manage the Contractor’s Forum.

CTC Support Plan

11. On or prior to the Implementation Date the Developer shall submit to the Council for approval the CTC Support Plan. The Council shall use reasonable endeavours to make a substantive written response to the Developer with the Council's initial views and comments on the CTC Support Plan within 20 working days of receipt.

12. The Developer shall not Implement nor permit Implementation of the Development until such time as the Council has approved the CTC Support Plan, a response to be made by the Council within 30 working days of a submission made in accordance with the Review Procedure.

13. The Developer and the Council shall review every twelve (12) months (or such other period as shall be agreed between the Developer and the Council) the effectiveness of the CTC Support Plan.

14. The Developer and the Council shall allow and facilitate outside assessors to assess the effectiveness of work based learning taking place at the Construction Training Centre.

CTC Workplace/Construction Co ordinator

15. For a period beginning three (3) months following the Implementation Date until the CTC Termination Date the Developer shall provide at its own expense the CTC Workplace/Construction Co ordinator and shall implement the CTC Support Plan.

16. In relation to the selection and employment of the CTC Workplace/Construction Co ordinator:

    (a) the Developer shall not enter into the employment contract with the CTC Workplace/Construction Co ordinator unless the Council has first approved the following elements of the contract: (i) job description, (ii) annual salary (iii) term of the contract and (iv) notice provisions. Those elements of the employment contract shall not subsequently be varied without the agreement of the Council;

    (b) the employment contract shall specify the role and responsibilities that will be undertaken in working to support the Construction Training Centre and the Contractor's Forum in meeting their objectives

    (c) the employment contract shall provide that following the Implementation Date the employment shall be full time, unless otherwise agreed in writing by the Council.

    (d) the Developer shall consult with the Council in selecting a short list of potential employees under the employment contract. The Council shall be entitled to take part in any interviews of potential employees and approve a short-list of at least 3 candidates and thereafter the Developer shall select the employee at its discretion.

    (e) the Council shall be entitled to take part in formal annual performance appraisals of the CTC Workplace/Construction Co ordinator.

    (f) the Developer shall notify the Council of disciplinary issues or proceedings affecting the employee provided that such notification shall not be required where confidentiality obligations upon the Developer prevent such notification or the Developer reasonably considers such issues or proceedings to be commercially sensitive.

    (g) the Developer shall provide to the CTC Workplace/Construction Co ordinator an adequate level of administration support commensurate with the support provided to the Developer's other comparable employees and shall cover the CTC

Workplace/Construction Co ordinator's reasonable work-related expenses in accordance with its normal Employment Policy;

(h) the Developer and the Council shall review every twelve (12) months (or such other period as shall be agreed between the Developer and the Council) the effectiveness of the role being carried out by the CTC Workplace/Construction Co ordinator.

17. If the CTC Workplace/Construction Co ordinator has not been provided by the Developer in accordance with paragraph 14 (save as may be agreed in advance with the Council), the Developer shall not carry out or permit to be carried out any further works of construction on the Site until such time as paragraph 14 has been complied with (save in respect of matters beyond the Developer's reasonable control).

18. The Developer shall ensure that the role of the CTC Workplace/Construction Co-ordinator is not vacant for more than three (3) months at any time provided that in complying with such obligation the Developer shall be entitled to fill the role by a temporary employee until such time as a permanent employee can be employed under the provisions above.

Contractors' Forum

19. On or prior to the Implementation Date the Developer shall submit to the Council for approval a draft of the Contractors' Forum Strategy.

20. The Developer shall not Implement nor permit Implementation of the Development until such time as the Council has approved the Contractors' Forum Strategy, a response to be made by the Council in accordance with the Review Procedure.

21. No later than six (6) months following the Implementation Date the Developer shall have convened and thereafter shall at its own expense continue to operate the Contractors' Forum and shall carry out the following operations in the running of the Contractors' Forum:

(a) to invite the following to become initial members of the Contractors' Forum :

(i) the Developer's construction director;

(ii) the Developer's contractors and principal sub-contractors;

(iii) representatives of construction contractors working for occupiers of the Development;

(iv) any other person or persons having a direct interest in the construction aspects of the Development and being a representative of one of the organisations listed in the definition of Match Funding;

(b) to ensure that the CTC Workplace/Construction Co ordinator shall be a member of the Contractors' Forum and shall attend all meetings of the Contractors' Forum all such meetings to take place in the Construction Training Centre unless otherwise agreed by the Contractors' Forum;

(c) to procure that the CTC Workplace/Construction Co ordinator shall be responsible for convening the Contractors' Forum and liaising with the members of the Contractors' Forum about the operation of the Contractors' Forum with the objective of assisting in the meeting of the Agreed Targets;

(d) to give or request the CTC Workplace/Construction Co ordinator to give a minimum of seven (7) days written notice of the time and place and date of each meeting of the Contractors' Forum to all members of the Contractors' Forum;

(e) to ensure that meetings of the Contractor's Forum shall take place at least once every four (4) months provided always that the Developer or the Council shall be entitled on reasonable grounds by giving written notice of not less than fourteen (14) days to the CTC Workplace/Construction Co ordinator to convene a meeting of the Contractors' Forum and a meeting of the Contractors' Forum so convened shall consider matters specified in the notice as requiring discussion

(f) to ensure that an accurate written minute is kept of each meeting of the Contractors' Forum recording discussion and any decisions taken by the Contractors' Forum (such minute to be circulated by the CTC Workplace/Construction Co ordinator or the Developer's representative to all members of the Contractors' Forum within fourteen (14) days of each meeting)

22. The Developer will ensure that the Contractors' Forum is operated in accordance with the approved Contractors' Forum Strategy (subject to such variations as the Council may approve from time to time).

23. The obligation upon the Developer in paragraphs 13 to 22 shall cease upon the CTC Termination Date unless otherwise agreed in writing between the parties.

24. The Council shall provide reasonable assistance to the Developer and shall work with it to improve employment and training opportunities for local people across both LB Camden and LB Islington and in particular shall:

(a) assist the Construction Training Centre and CTC Workplace/Construction Co ordinator in co-ordinating methods of recruitment, early warnings of need and opportunity, interviews, employment and training offers, job brokerage co-ordination, advertising and signposting and working with Local Schools;

(b) assist the Construction Training Centre and CTC Workplace/Construction Co ordinator in reporting to the King's Cross Construction Import Group or its successor body and other stakeholders annually.

Reporting

25. Following the Implementation Date the Developer shall provide to the Council forward projections of the Developer's construction employment requirements for the carrying out of the Development on the following terms:

(a) the first projection shall be provided to the Council within three (3) months following the placing of construction contracts for (i) enabling works and (ii) infrastructure works and (iii) building works with a cumulative total contract value of more than £25 million;

(b) thereafter projections shall be provided no later than every calendar year following provision of the first projection until the Completion Date.

26. The Developer shall provide to the Council a statement of Agreed Targets met during the previous financial year including the numbers of trainee-weeks provided in each twelve (12)-month period such statement shall be provided no later than 4 weeks following the expiry of every calendar year following the Implementation Date.

27. For the purposes of assessing the achievement of the Agreed Targets any of the following completed qualifications secured by a construction trainee or apprentice [resident within the CIZ and the WIZ] shall be treated as having completed the identified number of training weeks :

(a)	NVQ based training:	104 weeks
(b)	Specialist and customised short-course training	20 weeks
(c)	CSCS Training	4 weeks]

Co-operation from Occupiers

28. The Developer shall use reasonable endeavours to encourage occupiers using construction contractors within the Development to co-operate with and facilitate the Construction Training Centre activities and use the Construction Training Centre in providing training and placing job seekers in construction employment within the Development this to include the following specific steps:-

(a) the Developer shall provide information about the Construction Training Centre activities, its benefits and importance to the Development to occupiers of the

Development using construction contractors within the Development with the intention of securing their support to the aims of the Construction Training Centre;

(b) the Developer shall require the CTC Workplace/Construction Co ordinator to seek to obtain from such occupiers and their contractors information regarding the names and numbers of trainee-person weeks provided such information to be collated and presented within the annual statement referred to in paragraph 23.

Training Payments and Match Funding

29. During the carrying out of the Development the Developer shall pay to the Council the following amounts to support the activities of the Construction Training Centre such payments to be made within twenty eight (28) days of the relevant approval or contract completion:

(a) £100,000 on or prior to approval of all reserved matters which will enable the Developer to build out 15,000 square metres GEA of buildings;

(b) £100,000 when one or more construction contracts have been placed for enabling infrastructure and/or building works with a total contract value of more than £25 million ALWAYS PROVIDED that notwithstanding the requirements of this paragraph the Developer shall pay £100k to the Council within twenty four (24) months from the Implementation Date;

(c) £100,000 at approval of all reserved matters for 50,000 sq m GEA of buildings;

(d) £100,000 at approval of all reserved matters for 100,000 sq m GEA of buildings;

(e) £100,000 at approval of all reserved matters for 200,000 sq m GEA of buildings;

(f) £50,000 at approval of all reserved matters for 300,000 sq m GEA of buildings;

(g) £50,000 at approval of all reserved matters for 400,000 sq m GEA of buildings;

(h) £50,000 at approval of all reserved matters for 500,000 sq m GEA of buildings;

(i) £50,000 at approval of all reserved matters for 600,000 sq m GEA of buildings;

(j) £50,000 at approval of all reserved matters for 650,000 sq m GEA of buildings;

ALWAYS PROVIDED that the commencement of any building on the Development Site taking the level above the relevant threshold shall for the purposes of this paragraph be treated instead as the approval of all reserved matters

30. The Council shall use reasonable endeavours to obtain Match Funding to assist in the meeting of Agreed Targets and the Developer shall provide reasonable assistance and support for such endeavours.

31. If Match Funding cannot be obtained by the Council, or the levels of prefabrication off site means that anticipated training opportunities are reduced, the Agreed Targets will be adjusted by agreement between the Council and the Developer to take account of the Match Funding available always provided that the Developer and the Council acknowledge that an underlying intent of these provisions is to maximise the number of person weeks of employment for trainees.

32. At the request of the Council the Developer will make financial contributions under this section up to 6 months earlier than the due date if:

    (a) The conditions in paragraph 32 are met; and

    (b) The Council and the Developer reach agreement on reducing the contribution or future contributions by an amount that reflects the cost to the Developer of bringing forward the contribution.

33. In order to make a request pursuant to paragraph 31 the Council must demonstrate that bringing forward any financial contribution due in accordance with this section will:

    (a) secure Matching Funding that would not be obtainable if payment is made on the due date; and

    (b) make a material contribution towards achieving the objectives of this section.

Employment & training - construction

Schedule a

Part 1

Further details of the Construction Training Centre ("CTC")

1. The CTC shall include facilities for assessing, teaching and meeting trainees and students, office and interviewing space.

2. The CTC shall assist job seekers into construction employment within the Development by:

   (a) Maintaining a register of vacancies

   (b) Holding in depth discussions with individuals about their strengths and career objectives

   (c) Helping candidates through initial registration, with advice, interview preparations and training into full time employment

   (d) Staying in regular contact and helping with career progressing

   (e) Working with those traditionally underrepresented in the construction industry, for example, women and black and ethnic minorities

   (f) Helping candidates through the national construction skills certification scheme ("cscs")

   (g) Offering assistance for national vocational qualifications ("nvqs"), study and other trade courses

   (h) Supporting employees to make the transition into full-time employment as easy as possible, for example, through the provision of small scale grants for protective clothing, travel and childcare costs.

3. The CTC shall assist employers (contractors) by:

   (a) Screening and matching candidates

   (b) Collaborative working to match people to jobs

   (c) Assistance with job descriptions, person specifications, interviews and selections

   (d) Support with job placements to select or fill a vacancy permanently

   (e) Offering support to new employees in the settling-in period

(f) Assisting with customised or vocational training including on-site assessment leading to qualifications for selected job seekers or existing employees.

4. The CTC shall support relevant construction initiatives, which may include the building London creating futures project (which targets disadvantaged groups) and the government's ambition : construction scheme (which targets the long term unemployed).

Part 2

Further details of the CTC Workplace/Construction Co ordinator

1. The CTC Workplace/Construction Co ordinator shall be responsible for identifying and meeting additional CTC staffing requirements, within the funding available and shall develop and maintain a database of skilled construction workers from all disciplines and match these to vacancies notified by contractors.

2. The CTC Workplace/Construction Co ordinator shall work with contractors to identify suitable training programmes where skills shortages exist and promote the provision of work experience for trainees.

3. The CTC Workplace/Construction Co ordinator shall be responsible for convening and operating the Contractors' Forum to enable the Developer, occupiers, lead contractors and others to co-ordinate their ideas on construction employment and training initiatives across King's Cross Central.

B : EMPLOYMENT & TRAINING POST-CONSTRUCTION

Definitions

"Employment Liaison Officer"	:	An appropriately qualified person appointed by the Developer at its own expense to promote the business advantages of local recruitment through the Skills and Recruitment Centre to occupiers and to ensure that the service is employer led further details of which are contained at [Schedule B, Part 2].
"Labour Market Model"	:	High quality information about the likely forthcoming job opportunities within the Development to be provided to the Council and to include details of the following:- (i) skills known or anticipated to be required within the Development; (ii) incoming occupiers contact details (the timing of which may be subject to the approval of those incoming occupiers, for reasons of commercial confidentiality); (iii) the known or anticipated employment profiles of incoming occupiers (iv) the known or anticipated recruitment and training needs of occupiers of the Development including the Developer; (v) the profile of vacancies, including entry-level vacancies, known or anticipated to be required to be filled by the occupiers of the Development, including the Developer
"Match Funding"	:	Funding to be secured from a range of organisations including JobCentre Plus, the Learning and Skills Council the London Development Agency and Building London Creating Futures Programme or their successor bodies or other bodies offering match funding opportunities to assist in the meeting of the Local Employment Objective Target.

"SRC Lease"	:	A lease of the Skills and Recruitment Centre at a peppercorn rent to be granted by the Developer to the Council in accordance with the heads of terms annexed at Schedule [ ].
"Local Employment Objective Targets"	:	(a) The provision of high levels of local employment within the end-use workforce the target of which shall be at least fifteen per cent (15%) of end use employees to be local residents from the CIZ and WIZ. (b) The aspirational target shall be thirty per cent (30%) of end use employees to be local residents from the CIZ and WIZ and the parties acknowledge that this is an ambitious target.
"SRC Operating Costs"	:	The proper costs of operating the Skills and Recruitment Centre.
SRC Support Plan"	:	A plan setting out how the Developer will support the operations of the Skills and Recruitment Centre identified in Schedule B Part 1 paragraph 2 and to include (but not be limited to) the following:- (a) details on how the Developer will use reasonable endeavours to encourage occupiers of the Development to develop a close working relationship with the Skills and Recruitment Centre and to facilitate its operations and activities, including registration of vacancies with the SRC (b) details of how the Developer will use reasonable endeavours to work closely with the Skills and Recruitment Centre in relation to estate management employment opportunities, to provide local people with a range of opportunities for structured training, appropriate qualifications and skills, employment and career progression within the estate management of the Development (c) details of how the Developer will use reasonable

		endeavours to work closely with the Skills and Recruitment Centre, to make new occupiers of the Development aware of the initiatives being promoted by the Skills and Recruitment Centre and the benefits of such initiatives (d) details of the internet website the Developer shall provide for the Skills and Recruitment Centre, advertising the skills and employees available through the Skills and Recruitment Centre with a view inter alia to promoting the Centre to the occupiers of the Development, including details of how that web site shall be maintained and how its content shall be sourced, approved and updated.
"SRC Termination Date"	:	The earlier of: i. The date upon which ninety per cent (90%) of the development measured by permitted floorspace has been First Occupied; or ii. The date upon which development on 40 of the 44 (ie 90%) Development Plots shown on plan KXC005 is Practically Completed.
"Skills and Recruitment Centre"	:	A centre to be constructed by the Developer in accordance with (i) to (iii) below comprising a centre to offer recruitment and skills services to employers, employees and job-seekers and other business support as may be agreed between the Developer and the Council in order to develop a qualified local workforce with the objective of securing the Local Employment Objective Target. The centre must meet the following minimum specification and in respect of which further details are contained at [Schedule B, Part 1]:- (i) Premises comprising not less than 250 square metres NIA; (ii) sited in a reasonably prominent location within the Development such location to be approved by the

		Council before Implementation of the same, a response to be made by the Council in accordance with the Review Procedure; (iii) fitting out of the centre to be to a Category A Finish

EMPLOYMENT & TRAINING POST-CONSTRUCTION

OBLIGATIONS

Skills and Recruitment Centre

1. Subject to the provisions of Clause [21] and the Council having served a Lease Acceptance, no floorspace within the Development shall be First Occupied for B1 purposes until the Skills and Recruitment Centre has been Practically Completed.

2. No later than three (3) months following Practical Completion of the Skills and Recruitment Centre the Developer shall grant the SRC Lease.

3. If the SRC Lease has not been granted in accordance with paragraph 2 due only to the default of the Developer or where the only outstanding actions are on the part of and entirely within the control of the Developer the Developer shall not carry out or permit to be carried out any further works of construction on the Site beyond the laying of foundation slabs until such time as paragraph 2 has been complied with.

SRC Payments

4. During the carrying out of the Development the Developer shall pay to the Council the following amounts to support the activities of the Skills and Recruitment Centre such payments to be made within twenty eight (28) days of the relevant contract completion or event of Practical Completion:

   (b) £150,000 when one or more construction contracts have been placed for enabling infrastructure and/or building works with a total contract value of more than £25 million ALWAYS PROVIDED that notwithstanding the requirements of the paragraph the Developer shall pay £150,000 to the Council within [twenty four (24)] months from the Implementation Date;

   (c) £50,000 when 50,000 sq m GEA of buildings have been Practically Completed;

   (d) £75,000 when 100,000 sq m GEA of buildings have been Practically Completed;

   (e) £100,000 when 200,000 sq m GEA of buildings have been Practically Completed;

   (f) £150,000 when 300,000 sq m GEA of buildings have been Practically Completed;

   (g) £175,000 when 400,000 sq m GEA of buildings have been Practically Completed;

(h) £200,000 when 500,000 sq m GEA of buildings have been Practically Completed;

(i) £200,000 when 600,000 sq m GEA of buildings have been Practically Completed;

(j) £250,000 when 650,000 sq m GEA of buildings have been Practically Completed.

5. Prior to First Occupation for B1 purposes of any floorspace within the Development the Developer shall pay to the Council £40,000 towards the SRC Operating Costs.

6. Upon each of the first to ninth anniversaries following the date of the payment made under paragraph 5 the Developer shall pay to the Council £40,000 towards the SRC Operating Costs.

7. If at any time the payments in paragraphs 4, 5, and 6 have not been paid in accordance with the terms of this Agreement the Developer shall not carry out or permit to be carried out any further works of construction on Site until such time as the payments have been made.

Marketing Assistance

8. On or prior to Practical Completion of 100,000 square metres GEA of buildings on the Site the Developer shall provide the Council with marketing assistance in relation to the Skills and Recruitment Centre by way of the following:-

(k) a payment not exceeding £75,000 towards the costs expended or anticipated to be expended by the Council (evidence of such costs and anticipated costs to be provided to the Developer by the Council should the Developer request the same) in marketing initiatives in relation to the Skills and Recruitment Centre, or

(l) provided that a notice to the effect that such services are to be provided has been given before 50,000 square metres of GEA of development on the Site are Occupied, services to a value not exceeding £75,000 in assisting in the marketing of the Skills and Recruitment Centre

always provided that the Developer has fully consulted the Council and the Council has approved the form of assistance to be provided by the Developer under paragraph 8(b), taking into account its budgets, its prior commitments and its expenditure at the time of consultation.

Labour Market Model

9. Following the Implementation Date the Developer shall provide to the Council and the Skills and Recruitment Centre the Labour Market Model on the following terms:-

(a) the first Labour Market Model shall be provided to the Council no later than six (6) months following the Implementation Date;

(b) updated Labour Market Models shall be provided by the Developer to the Council and the Skills and Recruitment Centre every twelve (12) months thereafter until the SRC Termination Date provided that the Council may request updates more regularly (but not more than twice in any calendar year) provided such updates are properly required by the Council.

SRC Support Plan

10. On or prior to the Practical Completion of the Skills and Recruitment Centre the Developer shall submit to the Council for approval the SRC Support Plan. The Council shall use reasonable endeavours to make a substantive written response to the Developer with the Council's initial views and comments on the SRC Support Plan within 20 working days of receipt.

11. The Developer shall not Occupy or permit Occupation of any B1 floorspace within the Development until the SRC Support Plan has been approved by the Council, a response to be made by the Council within 30 working days of a submission made in accordance with the Review Procedure .

12. Following the completion of the SRC Lease and upon approval of the SRC Support Plan the Developer shall:

(a) use reasonable endeavours to comply with the provisions of the SRC Support Plan;

(b) provide at its own expense the Employment Liaison Officer to assist in the implementation of the SRC Support Plan;

(c) use reasonable endeavours to provide adequate support to the Employment Liaison Officer to enable him to effectively and successfully carry out his roles and responsibilities aimed towards achieving the Local Employment Objective Target;

(d) provide and thereafter maintain an appropriate website for the Skills and Recruitment Centre in accordance with the SRC Support Plan.

13. The Developer and the Council shall review annually (or at other such period or interval as shall be agreed between the Developer and the Council) the effectiveness of the SRC Support Plan.

14. The obligations upon the Developer in paragraphs 12 and 13 shall cease and terminate upon the SRC Termination Date.

Employment Liaison Officer

15. On completion of the SRC Lease until the SRC Termination Date the Developer shall provide at its own expense the Employment Liaison Officer who shall assist in the implementation of the SRC Support Plan with the objective of securing the Local Employment Objective Target.

16. In relation to the selection and employment of the Employment Liaison Officer:

    (a) The Developer shall not enter into the employment contract with the Employment Liaison Officer unless the Council has first approved the following elements of the contract: (i) job description (ii) annual salary (iii) term of the contract and (iv) notice provisions. Those elements of the employment contract shall not subsequently be varied without the written agreement of the Council;

    (b) the employment contract shall specify the role and responsibilities that will be undertaken in working to support the Skills and Recruitment Centre in meeting their objectives;

    (c) the contract shall provide that the employment shall be full time, unless otherwise agreed in writing by the Council;

    (d) the Developer shall consult with the Council in selecting a short list of potential employees under the contract. The Council shall be entitled to take part in any interviews of potential employees and approve a short-list of at least 3 candidates and thereafter the Developer shall select the employee at its discretion. The Council shall similarly be entitled to approve the shortlist for any subsequent candidate(s) for the position;

    (e) the Council shall be entitled to take part in formal annual performance appraisals of the employee;

    (f) the Developer shall notify the Council of disciplinary issues or proceedings affecting the employee provided that such notification shall not be required where confidentiality obligations upon the Developer prevent such notification or the Developer reasonably considers such issues or proceedings to be commercially sensitive;

    (g) the Developer shall provide the Employment Liaison Officer with an adequate level of administration support commensurate with the support provided to the Developer's other comparable employees and shall cover the Employment Liaison Officer's reasonable work-related expenses in accordance with its normal Employment Policy;

(h) the Developer and the Council shall review every twelve (12) months (or such other period as shall be agreed between the Developer and the Council) the effectiveness of the role being carried out by the Employment Liaison Officer.

17. If the Employment Liaison Officer has not been provided by the Developer in accordance with paragraph 15 and 16 (save as may be agreed in advance in writing by the Council), the Developer shall not carry out or permit to be carried out any further works of construction on the Site until such time as paragraph 15 and 16 have been complied with (save in respect of matters beyond the Developer's reasonable control)

18. The Developer shall ensure that the role of the Employment Liaison Officer is not vacant for more than three (3) months at any time provided that in complying with such obligation the Developer shall be entitled to fill the role by a temporary employee until such time as a permanent candidate can be employed under the provisions above.

SRC Continuation

19. On or prior to the date that eighty per cent (80%) of the Development measured by permitted floorspace is Practically Completed the Developer shall pay to the Council £50,000 to be applied by the Council towards the procurement of professional advice as to the viability of continuing to provide a Skills and Recruitment Centre under new arrangements after the SRC Termination Date;

20. The Developer will use reasonable endeavours to ensure that the termination of the obligations relating to the Skills and Recruitment Centre and the Employment Liaison Officer are carried out in a manner that provides the Council with the opportunity to continue to provide training and employment services of a similar nature under new arrangements provided always that:

(a) if the Council can demonstrate that the Developer has not used such reasonable endeavours the SRC Lease shall not terminate until the Developer's obligations have been fulfilled;

(b) nothing in this paragraph 21 shall imply a requirement on the Developer to grant a new lease or renew the existing lease; and

(c) the non-termination of the SRC Lease shall not require the Developer to provide the Employment Liaison Officer.

General Obligations

21. The Developer and the Council shall work together to assist the Skills and Recruitment Centre and the Employment Liaison Officer:-

(a) to improve employment and training opportunities for local people across both LB Camden and LB Islington;

(b) to develop a qualified local workforce with the objective of securing the Local Employment Objective Target;

(c) to monitor and record information on the delivery by the Skills and Recruitment Centre of jobs and training within the Development and the Local Employment Objective Target including (but not limited to) monitoring by address, postcode, gender, age, job description, ethnicity, disability and previous employment status, provided that the Developer and the Council shall comply with confidentiality restrictions as may reasonably be imposed in relation to such information;

(d) to report such information annually to those organisations which have provided Match Funding.

22. The Developer and the Council shall work together to allow outside assessors to assess work based learning and the working of the Skills and Recruitment Centre.

23. The Developer shall assist the Skills and Recruitment Centre to support the Small Business Space through the provision of those Services identified at Schedule B Part 1 paragraph 2 and in particular sub-paragraphs a, c, e, h, j and p.

24. The Council shall use reasonable endeavours to obtain Match Funding equivalent to the sums to be paid to the Council under this part of the Agreement and the Developer shall provide reasonable assistance and support for such endeavours.

25. At the request on the Council the Developer will make financial contributions under this section up to 6 months earlier than the due date if:

(a) The conditions in paragraph 26 are met; and

(b) The Council and the Developer reach agreement on reducing the contribution or future contributions by an amount that reflects the cost to the Developer of bringing forward the contribution.

26. In order to make a request pursuant to paragraph 25 the Council must demonstrate that bringing forward any financial contribution due in accordance with this section will:

(a) secure Matching Funding that would not be obtainable if payment is made on the due date; and

(b) make a material contribution towards achieving the objectives of this section.

EMPLOYMENT & TRAINING POST-CONSTRUCTION

Schedule B

Part 1

Further details of the Skills and Recruitment Centre ("SRC")

1. [Accommodation schedule to be provided by Camden]

2. The SRC shall provide facilities to develop a qualified local workforce with the objective of securing the Local Employment Objective Target.

3. The SRC shall respond to the needs of employers in two ways: filling immediate vacancies and working with training providers and partner agencies to address skills shortages. The SRC shall work with local training providers to establish training programmes that ensure that there is a ready supply of skilled local labour.

4. The SRC shall offer a wide range of recruitment and skills services to employers, employees and job seekers. Example services include:

   (a) a recruitment service for employers within the Development and adjacent areas

   (b) maintaining an expanding database of local labour

   (c) attracting, matching and screening candidates prior to interview

   (d) the organisation of recruitment events, which may include family fun days for Women Returners and outreach services (see (k) below), as well as traditional recruitment fairs

   (e) the provision of interview facilities

   (f) following up placements to ensure employer satisfaction

   (g) working with employers to identify future vacancy needs, skills gaps and training opportunities

   (h) advice on training for employers and businesses

   (i) working closely with schools and colleges to develop skills and place newly qualified people into employment

(j) help with application forms, interview techniques and advice on training courses for jobseekers and employees

(k) outreach to support local jobseekers in their communities. This would be targeted at key wards with the highest rates of unemployment and multiple deprivation

(l) support for those who wish to enhance their use of written and spoken English

(m) support for school leavers and those returning to work after long-term unemployment

(n) working with local colleges to provide training for new entrants and with employers to offer on-site experience

(o) assistance with/support for Modern Apprenticeships

(p) assistance and support for those wishing to start their own business locally, including the provision of information about local initiatives to support new enterprise

(q) the development of links with colleges, course providers and employers within the wider area, to provide nationally accredited training at all levels.

PART 2

FURTHER DETAILS OF THE EMPLOYMENT LIAISON OFFICER

1. The Employment Liaison Officer will lead the Skills and Recruitment Centre and shall be responsible for all liaison between:

   (a) the Developer and development occupiers, and

   (b) the Skills and Recruitment Centre/training providers.

2. The Employment Liaison Officer shall:

   (a) establish relationships and secure new business with employers

   (b) implement an appropriate Service Level Agreement with Job Centre Plus and other agencies

   (c) work with local training providers to access appropriate training programmes

   (d) capture vacancies

   (e) negotiate an 'exclusive' period within which to match local jobseekers to new vacancies, before they are advertised more widely

   (f) identify potential skills gaps

   (g) Lead on the monitoring and recording of information on the delivery of jobs and training within the Development by the Skills and Recruitment Centre including (but not limited to) monitoring by address, postcode, gender, age, job description, ethnicity, disability and previous employment status

   (h) use reasonable endeavours to monitor and record information on jobs and training opportunities within the Development including (but not limited to) monitoring by address, postcode, gender, age, job description, ethnicity, disability and previous employment status

   (i) identify and meet SRC staffing requirements, e.g. for account manager, outreach and/or support workers, within the funding available.

C: Community Enterprise

Definitions

"CUCDFI"	:	Credit Union and Community Development Finance Initiatives offered to communities within the Development and CIZ and WIZ.

OBLIGATIONS

1. The Developer shall pay to the Council:

   (i) a contribution towards the Council's costs in procuring professional advice to establish CUCDFI up to a maximum amount of £25,000 prior to First Occupation for B1 purposes of 100,000 sq m GEA floorspace within the Development;

   (ii) £50,000 prior to First Occupation for B1 purposes of 100,000 sq m GEA floorspace within the Development;

   (iii) £50,000 on each of the first, second and third anniversaries of the date of the payment made under paragraph 1(ii);

   (iv) £40,000 on the fourth anniversary of the date of the payment made under paragraph 1(ii);

   (v) £30,000 on the fifth anniversary of the date of the payment made under paragraph 1(ii);

   (vi) £20,000 on the sixth anniversary of the date of the payment made under paragraph 1(ii);

   (vii) £10,000 on the seventh anniversary of the date of the payment made under paragraph 1(ii).

2. The Council shall apply all sums paid by the Developer under paragraph 1 (ii) - (vii) towards the establishment and operation of CUCDFI and this may include the provision by CUCDFI of loans to eligible persons which, when repaid, may be redeployed for other CUCDFI, provided that any such sums not initially so applied within four (4) years of receipt shall be paid into the Social and Community Fund.

D: Small Business Space

DEFINITIONS

"Small Business Space"	:	B1 business space of individual units each not exceeding 350 sq m GEA including 500 sq m GEA for Voluntary Sector Space.
"Small Business Space Letting Terms"	:	The terms on which the Small Business Space shall be made available for letting, namely: (i) on commercial terms for a maximum of twelve (12) months with the tenant's ability to determine on one (1) month's written notice; (ii) exempt from security of tenure under the Landlord and Tenant Act 1954; (iii) to be let to businesses which have traded for less than two (2) years at the point of letting and not to be let to subsidiaries of larger companies or businesses which have been trading for two (2) years or more; (iv) to be let such that no more than fifty per cent (50%) of the space is occupied by businesses with more than one of the small business units provided.
"Voluntary Sector Space"		B1 office space for voluntary sector organisations delivering services primarily to residents and occupants within the Development.

OBLIGATIONS

1. Not more than 250,000 sq m GEA of B1 floorspace (excluding the Small Business Space) within the Development shall be First Occupied until the Developer has provided:

   (a) a minimum of 3,500 sq m GEA of B1 floorspace within the Development as Small Business Space, such floorspace to be Practically Completed and available for letting on the Small Business Space Letting Terms; and

   (b) a minimum of 500 sq m GEA of B1 floorspace within the Development as Voluntary Sector Space, such floorspace to be Practically Completed and available for letting on commercial terms.

2. The proposed location for and specification of the Small Business Space and Voluntary Sector Space shall be submitted to the Council in accordance with the Review Procedure, before the construction of such space is commenced.

3. The Council may from time to time propose criteria for establishing the priority of proposed users of the Small Business Space and Voluntary Sector Space. The Developer and the Council will use reasonable endeavours to agree such criteria having regard in particular to:

   (a) any borough-wide planning or economic development or diversity policy adopted by the Council on such issues;

   (b) the demand for such Small Business Space and Voluntary Sector Space from users satisfying the criteria;

   (c) the ability of users satisfying the criteria to pay local market rents appropriate for, in the case of the Small Business Space, the Small Business Space Letting Terms and approved specification and, in the case of the Voluntary Sector Space, the terms referred to in paragraph 1(b) and approved specification; and

   (d) the desirability of ensuring use of the Small Business Space and Voluntary Sector Space.

4. Where such criteria have been agreed in accordance with paragraph 3 the Developer shall use reasonable endeavours to ensure that the Small Business Space units and Voluntary Sector Space are made available and are let in accordance with agreed criteria.

5. The Developer shall use reasonable endeavours to let the Small Business Space units and the Voluntary Sector Space.

6. The Developer shall provide to the Council on written request reasonable monitoring information regarding lettings, rents, voids, turnover rate, types of business, numbers of staff employed and relevant demographic data.

7. Once constructed the Small Business Space shall not be used for any purpose other than on the Small Business Space Letting Terms and the Voluntary Sector Space shall not be used for any purpose other than that stated in the definition of Voluntary Sector Space.

8. Subject to paragraph 9, the obligations in this Section D shall cease at the earlier of:

   (a) the implementation of a planning permission granted by the Council for the redevelopment of the Small Business Space or Voluntary Sector Space as appropriate;

   (b) twenty five (25) years from Practical Completion of the Small Business Space or Voluntary Sector Space as appropriate.

9. Prior to the date which is twenty years from Practical Completion of the Voluntary Sector Space the Developer shall submit to the Council a proposed mechanism for continued provision of the Voluntary Sector Space within the Development after the period referred to be paragraph 8(b) and the Developer and the Council shall both use reasonable endeavours to agree such mechanism, always provided that there is a continuing demand for such premises from voluntary sector organisations delivering services primarily to residents and occupants within the Development in accordance with paragraph 3(b).

E: Local Business Support and Local Purchasing Strategy

Definitions

"Approved Local Suppliers List"	:	A list of suppliers whose businesses are within CIZ and/or WIZ and who are approved by the Developer for the provision of goods and services in respect of the estate management of the Development.
"Local Businesses"	:	Businesses within CIZ and/or WIZ.

Obligations

General Obligations

1. The Developer shall use reasonable endeavours to ensure that Local Businesses benefit directly from the opportunities arising from the Development and the growth of a new commercial cluster at King's Cross Central by undertaking inter alia the steps identified in this part.

2. The Developer shall use reasonable endeavours to:

   (a) identify any actions that are required in order to overcome known barriers to Local Businesses to strengthening the local supply chain in respect of the construction and estate management of the Development;

   (b) where such barriers are reasonably capable of being overcome through agreed action seek to agree the actions with representatives of Local Businesses such as the King's Cross Business Forum;

   (c) where the actions are agreed to work with representatives of Local Businesses such as the King's Cross Business Forum to implement the agreed actions.

3. The Developer shall liaise with and provide marketing assistance to the King's Cross Business Forum or its successor body including hosting regular networking and other appropriate events.

4. The Developer shall prior to First Occupation for B1 purposes of 100,000 sq m GEA of buildings pay to the Council a contribution not exceeding £25,000 towards helping the King's Cross Business Forum engage with incoming businesses.

5. The Developer shall thereafter use the Employment Liaison Officer to prepare an annual report on the anniversary of First Occupation for B1 purposes of 100,000 sq m GEA of

buildings within the Development identifying the specific steps that it has undertaken to ensure that Local Businesses benefit from the opportunities arising from the Development including reference to each of the obligations in this part.

Estate Management

6. The Developer shall use reasonable endeavours to provide opportunities for Local Businesses to bid/tender for the provision of estate management goods and services

7. The Developer shall use reasonable endeavours to use Local Businesses for the provision of estate management goods and services in particular through the operation of the Approved Local Suppliers List.

8. The Council shall use reasonable endeavours to use Local Businesses for the provision of estate management goods and services for those parts of the Development in respect of which the Council has responsibility for obtaining such goods and services.

9. The Developer shall use reasonable endeavours to:

   (a) provide information to Local Businesses regarding procurement and supply chain opportunities as part of the estate management at King's Cross Central; and

   (b) assist Local Businesses in responding to such opportunities.

Approved Suppliers

10. Prior to the First Occupation for B1 purposes of 100,000 sq m GEA of buildings the Developer shall prepare an Approved Local Suppliers List and shall thereafter use reasonable endeavours to maintain it. The Developer shall consult the Council about the Approved Suppliers list. Local Businesses who apply to be on the Approved Supplier List shall only be refused with good reasons and shall be provided with a note of those reasons.

11. The Developer will make the Approved Suppliers List available to occupiers within the Development and will use reasonable endeavours to encourage them to use Local Businesses from the Approved Suppliers List for the supply of estate management goods and services.

F: Business Volunteering

DEFINITIONS

"Business Volunteer" : a volunteer who may be an employer or employee in a business and who commits a certain number of volunteer hours each year towards activities included in the Business Volunteering Programme

"Business Volunteering Programme" : A programme run by the Council, the Skills and Recruitment Centre or the King's Cross Business Forum or another appropriate body approved jointly by the Developer and the Council to assist with:

(a) the integration of new occupants into the wider community by acting as a broker between potential Business Volunteers and receiving voluntary organisations, including Local Schools and the London Wildlife Trust at Camley Street Natural Park;

(b) assisting the local voluntary, community and education sectors to work in partnership with the private sector; and

(c) the facilitation of work experience opportunities for residents of the local community.

OBLIGATIONS

1. Until the Completion Date the Council will use reasonable endeavours to run or procure the running of a Business Volunteering Programme within the Kings Cross area.

2. The Council and the Developer will meet at regular intervals to agree the focus and targets of the Business Volunteering Programme in the Kings Cross area with the intent of focussing resources on those businesses most likely to participate and to make a contribution.

3. The Developer shall provide the Council with reasonable assistance to establish the Business Volunteering Programme, including:

   (a) identifying and using reasonable endeavours to identify and help pursue opportunities to broker relationships between the local voluntary, community and education sectors and the private sector; and

   (b) working with the Council to jointly design and produce an information pack setting out the objectives of the Business Volunteering Programme, the sorts of activities

that can be supported by Business Volunteers and contact details of all local volunteering organisations (Business Volunteering Programme “Welcome Pack”).

4. Until the Completion Date the Developer shall continue to provide reasonable assistance to the Council and other organisations wishing to work with volunteers to enable the Business Volunteering Programme to achieve its objectives, including:

   (a) working with the Council to update from time to time the Business Volunteering Programme "Welcome Pack";

   (b) encouraging all businesses identified pursuant to paragraph 2 to nominate a Business Volunteer coordinator to promote the Business Volunteering Programme to employees of that business;

   (c) providing all businesses identified pursuant to paragraph 2 within a reasonable time following First Occupation a copy or copies of the Business Volunteering Programme “Welcome Pack”;

   (d) promoting and advertising the Business Volunteering Programme within the Development Site and in the local community, including at appropriate conferences, industry days and other similar corporate or community events;

   (e) participating in and encouraging businesses within the Development Site to provide work experience opportunities.

5. No more than 50,000 sq m GEA of B1 floorspace shall be First Occupied until the Developer has at its own cost established an appropriately high quality and user-friendly Business Volunteering Programme Website, the content of which is to be the subject of consultation with the Council.

6. Until the Completion Date the Developer shall at its own expense update and maintain, in consultation with the Council, the Business Volunteering Programme Website to a high standard so that it assists all stakeholders in fulfilling the objectives of the Business Volunteering Programme.

G: Social and Community Fund

DEFINITIONS

"**Social and Community Fund**" : A fund whose purpose is to provide grants or loans to projects which mitigate the effects of the Development and/or enhance its benefits administered by the Council or as may otherwise be agreed between the parties.

OBLIGATIONS

1. No more than 100,000 sq m GEA floorspace within the Development shall be First Occupied for B1 and A1-A5 purposes until the Developer has paid the Council £100,000 towards the Social and Community Fund.

2. No more than ninety per cent (90%) of the permitted B1 or A1 - A5 floorspace within the Development or 40 of the 44 Development Plots shall be First Occupied until the Developer has paid the Council £900,000 (less any amounts previously paid pursuant to Clauses 3 and 4) towards the Social and Community Fund.

3. If no payment has been made to the Council pursuant to Clause 2 then prior to 15 (fifteen) years after Implementation the Developer shall pay to the Council a sum representing the percentage of the Development that has been Practically Completed multiplied by £900,000.

4. The Developer and the Council shall both use reasonable endeavours to agree the criteria and decision making process for awarding grants from the Social and Community Fund.

5. If the Developer and the Council cannot agree the criteria and decision making process within a reasonable time the Council shall settle the relevant criteria and process having proper regard to the purposes of the Social and Community Fund as defined and shall forthwith notify the Developer accordingly.

H: Community Meeting Facilities

DEFINITIONS

"Community Meeting Facilities"	:	Accommodation of not less than 370 sq m GEA to a specification to be agreed between the parties capable of providing a high quality and readily accessible community facility available for the use of the local community.
"Community Meeting Facilities Lease"	:	A long lease of the Community Meeting Facilities at a peppercorn rent to be granted by the Developer to the Council in accordance with the heads of terms set out in Appendix [ ]

OBLIGATIONS

1. Prior to First Occupation of 875 residential units (excluding student housing) the Developer shall submit to the Council a proposed specification of the Community Meeting Facilities a response to be made by the Council in accordance with the Review Procedure.

2. Subject to Clause 21 and the Council having served a Lease Acceptance, no more than 975 residential units (excluding student housing) shall be First Occupied until the Developer has completed the construction of the Community Meeting Facilities to a Category A Finish.

3. No later than three (3) months following Practical Completion of the Community Meeting Facilities the Developer shall grant the Community Meeting Facilities Lease to the Council.

4. The Developer may propose to provide an alternative community meeting facility which the Council will accept if:

   (a) it would be capable of serving the community at least as well as the proposed Community Meeting Facility;

   (b) there would be no additional cost to the Council or the community in such substitute facility.

   provided at all times that such alternative facilities shall be completed prior to the First Occupation of 975 residential units (excluding student housing).

5. If the Developer and the Council agree in writing prior to Practical Completion of the Community Meeting Facilities that an alternative body is appropriate to accept the

Community Meeting Facilities Lease and such body has served a Lease Acceptance the Developer shall grant the lease to such body.

I: Community Safety

DEFINITIONS

"Police Control Facility"	:	Accommodation of not less than 150 sq m net internal area for use as a police control/IT room and public help desk.
"Police Control Facility Lease"	:	A lease of the Police Control Facility between the Developer and the Metropolitan Police in accordance with the heads of terms annexed at Schedule [ ].

Obligations

1. Subject to Clause 21 and the Metropolitan Police having served a Lease Acceptance, no more than 200,000 sq m GEA of buildings (excluding the Police Control Facility) shall be First Occupied until the construction of the Police Control Facility to Shell and Core has been Practically Completed.

2. No later than three (3) months following Practical Completion of the Police Control Facility the Developer shall grant to the Metropolitan Police the Police Control Facility Lease.

3. The Developer and the Council shall use reasonable endeavours to agree before First Occupation of any floorspace for B1 purposes:

   (a) a strategy, including a timetable, objectives and measures (including a process for review) for those objectives, for integrating the Development's public safety/warden teams with other such security and policing teams within the CIZ such that those teams meet effectively the safety and security needs of a broad cross-section of those living within, working at or visiting the Development or its immediate environs (a **"public safety strategy"**);

   (b) a strategy, including a timetable, objectives and measures (including a process for review) for those objectives, for integrating any CCTV system installed within the Development with other local CCTV systems, such integration to include a method for the Developer, Council and Metropolitan Police to have access to the digital feed from each others' cameras (a **"CCTV strategy"**).

4. The Council will implement the agreed public safety strategy and the CCTV strategy.

5. The Developer will offer such reasonable assistance to the Council as may be required to implement the public safety strategy and the CCTV strategy.

6. The Developer and the Council shall use reasonable endeavours to agree with the Metropolitan Police and British Transport Police prior to the grant of the Police Control Facility Lease arrangements for consulting and joint working with the Metropolitan Police and British Transport Police, including a timetable, objectives and measures (including a process for review) for those objectives, on:

   (a) management and policing of the Estate Realm Areas and the Public Realm Areas including staff training;

   (b) emergency planning;

   (c) the application of the principles contained in the document "Secured by Design" dated June 2004 published by ACPO CPI or such later standards as may apply from time to time,

   (the **"MPC/BTP strategy"**).

7. The Council and the Developer will implement the agreed MPC/BTP strategy.

8. Every three (3) years the Developer and the Council shall review how the public safety strategy, the CCTV strategy and the MPC/BTP strategy are working in practice, the progress towards achieving the specified objectives and any recommendations for change. The Council and the Developer shall use reasonable endeavours to agree any changes which the Council will then implement with the assistance of the Developer.

J: Education

Definitions

"Secondary School Contribution"	:	A contribution in the sum of £1.5 million to be paid by the Developer to the Council, such contribution to assist with the Council's programme of expansion and or upgrading of one or more local secondary schools within LB Camden to accommodate one or more additional forms of entry.
"Sure Start/Children's Centre"	:	Premises of not less than 643 sq m GIA to Shell and Core suitable for fitting out as a sure start/children's centre with rights to controlled use of no less than 360 square metres of a secure outdoor area adjoining the building comprising soft, hard and associated landscaping, consistent with the details contained at Schedule [C], Part 1 and to be located within Development Plot T1 or another location first agreed in writing with the Council.
"Sure Start/Children's Centre Lease	:	A lease of the Sure Start/Children's Centre at a peppercorn rent to be granted by the Developer to the Council in accordance with the heads of terms annexed at Schedule [ ].
"Two Form Entry Primary School"	:	Premises of not less than 2,100 sq m GIA to Shell and Core (including a lift if the floorspace is arranged over more than one floor) suitable for fitting out as a two form entry primary school consistent with the details contained at Schedule [C], Part 2 with an outdoor playground and play decks all within Development Plot P1 or another location first agreed in writing with the Council.

"Two Form Entry Primary School Lease"	:	A lease of the Two Form Entry Primary School at a peppercorn rent to be granted by the Developer to the Council in accordance with the heads of terms annexed at Schedule [ ].

Obligations

1. Subject to clause [21] and the Council having served a Lease Acceptance the Developer shall not First Occupy more than 800 residential units (excluding Student Housing) within the Development until the Two Form Entry Primary School has been Practically Completed to Shell and Core level.

2. No later than three (3) months following Practical Completion of the Two Form Entry Primary School the Developer shall grant the Two Form Entry Primary School Lease.

3. The Developer shall use all reasonable endeavours to provide at least 1,075 sq m of outdoor space, to include a playground and external play decks, directly adjoining or within the Two Form Entry Primary School and over which the School shall have exclusive control and if the Developer proposes to provide less than 1,075 sq m then it may only do so having satisfied the Council with such evidence as may be reasonably necessary that it has used all reasonable endeavours to do so.

4. Subject to clause 21 of Part 1 of this Agreement and the Council having served a Lease Acceptance the Developer shall not First Occupy more than 1,150 residential units (excluding Student Housing) within the Development until the Sure Start/Children's Centre has been Practically Completed to Shell and Core.

5. No later than three (3) months following Practical Completion of the Sure Start/Children's Centre the Developer shall grant the Sure Start/Children's Centre Lease.

6. The Developer may discharge its obligations in paragraphs 1, 2 and 3 such that construction activities continue on the floors above the Two Form Entry Primary School (the **"Continuing Works"**) after the Developer grants the Two Form Entry Primary School Lease to the Council provided that:

   (a) the Continuing Works do not prevent the beneficial use for teaching purposes of the Two Form Entry Primary School; and

   (b) the Developer uses all reasonable endeavours at all times to ensure that:

      (i) the Continuing Works do not materially impact on the Council's programme of works to fit out and subsequently use the Two Form Entry Primary School for its intended purposes. The Council to provide such

programme of works within [two (2)] months of the Developer providing written notice of the anticipated date of Practical Completion of the Two Form Entry Primary School;

(ii) the Continuing Works are completed as soon as practicable;

(iii) the Continuing Works do not continue for more than twelve (12) months after the later of either

(1) the date of commencement of beneficial use for educational purposes of the Two Form Entry Primary School, or

(2) the date which is [6] months after Practical Completion of the Two Form Entry Primary School; and

(iv) the effects of the Continuing Works are minimised in respect of the use for educational purposes of the Two Form Entry Primary School.

7. No more than 1,550 residential units (excluding Student Housing) shall be First Occupied until the Developer has paid the Secondary School Contribution .

8. If on the 10th anniversary of the Implementation Date the Secondary School Contribution has not been paid and the Council has committed funds to the provision of educational services in the Borough to satisfy an increased demand for places at Secondary Schools arising from the Development the Developer shall pay a proportion of the Secondary School Contribution to be calculated accordingly:

(£1.5 million / 1,550) x Number of residential units constructed and or First Occupied

9. If on the 15th 20th and 25th anniversary of the Implementation Date any part of the Secondary School Contribution has not been paid in full and the Council has committed funds to the provision of educational services in the Borough to satisfy the increased demand for places at Secondary Schools arising from the Development then the Developer shall pay an outstanding proportion of the Secondary School Contribution to be calculated accordingly:

(£1.5 million / 1,550) x Number of residential units constructed and or First Occupied less any previous payment of the Secondary School Contribution

10. The Council shall apply the Secondary School Contribution towards the purposes set out in the definition of Secondary School Contribution.

11. The Council shall be responsible for all costs associated with the fitting- out and running of the Two Form Entry Primary School and Sure Start/Children's Centre.

12. Provided always that:

    (a) the Developer has given to the Council not less than six (6) months prior written notice of the anticipated date of Practical Completion of the Two Form Entry Primary School and Sure Start Children's Centre; and

    (b) the Continuing Works do not prevent fitting out within the period referred to below,

    the Council shall complete such fitting-out within eighteen (18) months following the completion of the Two Form Entry Primary School Lease and/or the Sure Start/Children's Centre Lease respectively, provided further that the Council shall be entitled to seek the Developer's agreement to a variation of such period subject to proper justification for such variation.

13. The Developer and the Council shall agree the reasonable hours during the school day and such other occasions when the Two Form Entry Primary School shall have priority access to the following open spaces within the Development as soon as they are Practically Completed:

    (a) the MUGA; and

    (b) Flux Park within Gas Holder number 8;

    always provided that such priority access shall be controlled, secure and at no cost to the School or to anyone using it for school related educational purposes.

14. For the avoidance of doubt, access to the open spaces referred to in paragraph 15 are to be provided in addition to the playground and play deck outdoor areas to be provided under paragraph 3.

Schedule [C]

Part 1

Details of ROOM FUNCTIONS FOR CHILDREN'S CENTRE (INCLUDING 66 PLACE NURSERY) DERIVED FROM BUILDING BULLETIN 98 AND SURE START: BUILDING FOR SURE START CLIENT GUIDE AND DESIGN GUIDE AND CHILDREN'S CENTRE GOOD PRACTICE GUIDELINES

1) CHILDREN'S MEDICAL CENTRE

i) Reception

ii) Medical/Clinic Room

iii) Toilets

iv) **Drop in Creche**

- Drop in room
- Buggies
- Crèche
- Toilets
- Interview

v) **Children's centre activities**

- Staff room
- Kitchen/kitchenette
- Sure Start office
- Admin Office
- Manager's Office

Total for children's/medical centre of 228 square metres net

2) 66 PLACE NURSERY

i) Nursery class 0-2

ii) Nursery class 2-3

iii) Nursery class 3-4

iv) Learning resources

v) Staff and admin

vi) Storage

vii) Dining and social

Total for 66 place nursery of 256.8 square metres net

3) **CIRCULATION**

4) **PLANT**

5) **PARTITIONS**

6) **EXTERNAL DROP IN AREA**

Part 2

DETAILS OF ROOM FUNCTIONS FOR TWO FORM ENTRY PRIMARY SCHOOL (14 CLASSES FOR 420 PUPILS) DERIVED FROM DFES BUILDING BULLETIN 99

1) BASIC TEACHING

i) Reception classes

ii) Infant classbases

iii) Junior classbases

iv) **Specialist practical**

- Food/science/D&T rooms
- ICT suite

2) HALLS

i) Main hall (used for dining)

ii) Small hall

iii) Studio

3) LEARNING RESOURCE AREAS

i) Library resource area

ii) Small group room (SENco)

iii) Small group rooms

Total teaching area (1+2+3) of 1216 square metres net

4) STAFF AND ADMIN

i) Head's office/meeting room

ii) Senior management offices

iii) Staff room

iv) General Office

v) Sick bay (adjacent to office)

vi) Entrance/reception

vii) Copier/reprographics

viii) SENco/MI/group room

ix) Interview/social services

x) [Parent/Community rooms]

5) STORAGE

i) Class storage (reception)

ii) Class storage (infant and junior)

iii) Specialist stores

iv) PE store (adjacent to hall)

v) PE store (external)

vi) **Non teaching storage**

- Central stock
- Cloakrooms/lunch box storage
- Chair store
- Staging/appliance store
- Community store
- Caretakers/maintenance store
- Cleaners store

Total for staff, admin and storage (4+5) of 284 square metres net

6) CATERING

i) Kitchen

7) TOILETS AND PERSONAL CARE

i) Reception toilets

ii) Other pupil toilets

iii) Accessible toilets/hygiene facilities

iv) Staff toilets

8) **CIRCULATION**

9) **PLANT (INCL. SERVER)**

10) **PARTITIONS**

K: Supporting Local Schools

Definitions

"Exploratory Centre"	:	A temporary building or other premises of no less than 100 square metres GIA within the Development comprising a temporary centre for visitors to explore issues of education, sustainability and building, to facilitate links between schools, higher education and employers within the Development, to provide opportunities for visual demonstrations of such issues and to encourage continuing interest in such issues.
"Floating Classroom"	:	A vessel comprising a floating classroom using moorings in the vicinity of the Development

OBLIGATIONS

1. From the date of First Occupation of 100,000 sq m GEA of B1 floorspace the Developer shall use reasonable endeavours to ensure that Local Schools have the opportunity to hold visits to the Development and to encourage direct curriculum input from occupiers within the Development in the areas of:

   (a) financial literacy;

   (b) design processes;

   (c) the development and construction industry; and

   (d) other measures as may be agreed by the Council and the Developer from time to time,

   such obligation to cease upon the Completion Date.

2. No more than 100,000 sq m GEA of B1 floorspace shall be First Occupied until the Developer has paid to the Council £100,000 to be used to provide and thereafter maintain the Floating Classroom or such other facility or facilities as the Council and the Developer agree will bring most educational benefit to children living in or close to the Development.

3. The Council shall apply the sum received under paragraph 2 towards the provision of the Floating Classroom or such other facility or facilities as the Council and the Developer may agree.

4. The Council shall use reasonable endeavours to ensure that the Floating Classroom, once provided, is available for use by Local Schools within LB Camden and LB Islington, the London Wildlife Trust or its successor at Camley Natural Park and the Business Volunteering Programme and available for hire by the Developer and other appropriate bodies for corporate and community events.

5. The Developer shall use reasonable endeavours to provide the Exploratory Centre within five (5) years following the Implementation Date and shall use reasonable endeavours to maintain its provision (if provided) for at least five (5) years following its first provision.

6. If the Exploratory Centre has not been provided 4 years following the Implementation Date the Developer shall provide a written report to the Council setting out:

   (a) the reasonable endeavours taken by the Developer up to that date to provide the Exploratory Centre;

   (b) any constraints to the provision of the Exploratory Centre;

   (c) the steps taken by the Developer to overcome such constraints; and

   (d) when the Developer anticipates the Exploratory Centre may be provided.

7. During the fifth year following the Implementation Date the Developer shall keep the Council reasonably informed regarding the reasonable endeavours taken to provide the Exploratory Centre (if not already provided).

8. Prior to commencing the provision of the Exploratory Centre the Developer shall provide to the Council a written specification containing details of the proposed location, size and design of the Exploratory Centre; and the general means by which it is proposed the Exploratory Centre shall fulfil its proposed role. The Developer shall pay due regard to the Council's response to such specification in the provision of the Exploratory Centre, a response to be made by the Council within 30 working days of a submission made in accordance with the Review Procedure.

9. The Developer shall use reasonable endeavours through its relations with business occupiers of the Development to ensure they are:

   (a) well-informed about the activities of the Camden Education Business Partnership (**"EBP"**); and

   (b) encouraged to work with the EBP to facilitate practical connections with local schools.

L: Leisure

DEFINITIONS

"Indoor Sports Hall"	:	A public indoor sports facility of not less than 1,500 sq m GIA (unless otherwise agreed in writing by the Council) to be constructed and fitted out to Sports England Standards with 8 metres clear internal height capable of providing or which could be configured to provide space capable of accommodating an overlaid combination of : 4 x standard badminton courts and 1 basketball court and 1 volleyball court and 1 x 5-a-side football pitch, with reception, changing, circulation and related facilities.
“LAP”	:	A high quality Local Area for Play of no less than 100 sq m to include no less than four (4) features that enable children to identify the space as their own domain, for example a footprint trail, a mushroom style seat or a model of an animal or insect and some individual seats for parents or carers.
“LEAP”	:	a high quality Local Equipped Area for Play of no less than 400 sq m to include no less than six (6) pieces of play equipment
"Leisure Facility"	:	Public health and fitness facility of not less than 3,000 sq m GIA (unless otherwise agreed in writing by the Council) to be constructed and fitted out to Sports England Standards incorporating a 5 lane 25 metre public swimming pool and a 15 metre learning pool. The facility to be capable of providing additionally a gym/fitness suite of approximately 750 sq m; studio space of approximately 350 sq m; solar/treatment rooms and changing facilities.

"Minimum Level of Services"	:	Services, management and maintenance at least comparable in quality, range and accessibility to best of class for indoor facilities of broadly similar size owned or operated by or on behalf of local authorities in Central London including LB Camden. The equipment and services provided within the Leisure Facility to include at least two swimming pools, 50 aerobic fitness machines and 50 weight machines and adequate staff to ensure that users are supervised to ensure safety and can be assisted in developing their health and fitness.
"Minimum Opening Hours"	:	7.30 am to 9.00 pm Monday to Saturday and such minimum opening hours as apply from time to time at other comparable LBC owned or operated leisure facilities on Sunday and, save in exceptional circumstances, open a minimum of 350 days per year
“MUGA”		An external Multi Use Games Area of not less than 630 sqm built in accordance with the Relevant Standards

OBLIGATIONS

LEISURE FACILITY and INDOOR SPORTS HALL

1. Subject to clause X and the Council having served a Lease Acceptance, no more than 20,000 sq m GEA of B1 floorspace within Plot B3 shall be First Occupied until the Developer has Practically Completed the construction of the Leisure Facility to a Shell and Core specification at its own cost, such that it is suitable for fitting-out for such use, within Plot B3 at lower ground and basement levels.

2. Subject to clause 21 and the Council having served a Lease Acceptance, no more than 975 residential units (excluding student housing) shall be First Occupied until the Developer has Practically Completed the construction of the Indoor Sports Hall to a Shell and Core specification at its own cost, such that it is suitable for fitting-out for such use, within Plot Q2.

3. The Council shall at its own cost fit out the Leisure Facility and the Indoor Sports Hall. Prior to undertaking the fit out works of the Leisure Facility and the Indoor Sports Hall, the

Council shall inform the Developer in writing as to (i) the proper capital cost of the fit out works and (ii) details of the terms (including the interest rate) upon which a sum to cover such capital cost has been or will be borrowed.

4. The Leisure Facility and the Indoor Sports Hall shall be subject to leases granted by the Developer to the Council in accordance with the heads of terms annexed at Schedule [ ].

5. The Developer shall grant the Leisure Facility and Indoor Sports Hall Leases no later than three (3) months from the date of Practical Completion of each of the facilities.

6. The Council shall not be obliged to open either the Leisure Facility or the Indoor Sports Hall until such time as the works of construction in the relevant plot in which the facility is being provided have been Practically Completed.

7. The Council shall use all reasonable endeavours to ensure the Leisure Facility and Indoor Sports Hall shall provide the Minimum Level of Services and shall use all reasonable endeavours to ensure that the Leisure Facility and Indoor Sports Hall are open for the Minimum Opening Hours.

8. The Council shall apply any net annual operating revenue generated by the Leisure Facility and Indoor Sports Hall in the following order of priority:

   (a) an amount necessary to repay the capital cost incurred by the Council in fitting out the Leisure Facility and the Indoor Sports Hall and cover the annual interest charges, as notified under paragraph 3, within a period of no less than twenty (20) years from the date of First Occupation of the Leisure Facility or Indoor Sports Hall provided that it is acknowledged by the Parties that such an amount may vary from year to year depending upon the terms upon which the capital sum has been borrowed;

   (b) a sinking fund of a level certified by a qualified auditor as necessary to provide a prudent balance for major or long term refurbishment works to the Leisure Facility and the Indoor Sports Hall provided that the annual allocation to such a fund will be no more than ten per cent (10%) per cent of the total gross operating revenues and provided that such fund shall only be used for the stated purpose; and

   (c) any residual net operating revenue to be deposited into the Carbon Fund.

9. The Council shall make available for the Developer's inspection the full financial records of the Leisure Facility and Indoor Sports Hall within a reasonable period of time following the end of each financial year.

10. The Council shall pay to the Developer an Estate Service Charge in respect of the Leisure Facility in each financial year which:

(a) in the first five years does not exceed £10,000 Index Linked to Index (RPI), and

(b) thereafter does not exceed an amount per square metre which is thirty three per cent (33%) of the average Estate Service Charge per square metre for the B1 offices within the Development south of the Regent's Canal.

11. There shall be no Estate Service Charge for the Indoor Sports Hall.

MUGA

12. No more than 975 residential units (excluding student housing) shall be First Occupied or no more than 150,000 sq m GEA of B1 floorspace shall be First Occupied, whichever is the earlier, until the Developer has completed the MUGA to the agreed specification.

13. The Developer shall construct and fit out the MUGA at roof level within Plot T1 and shall at all times thereafter:

(a) provide and maintain wheelchair lift access to the MUGA; and

(b) maintain, manage, operate and secure the MUGA at its own cost.

14. The Developer shall be entitled to provide a temporary (interim) MUGA:

(a) to an equivalent specification as the MUGA;

(b) in an appropriate alternative location; and

(c) otherwise in accordance with the requirement of paragraph 13 above

subject to the written approval of the location by the Council.

LAP and LEAP

15. The Developer shall complete before the Practical Completion of built development within Development Zones J and K:

(a) a LEAP within the southern part of the Handyside Park; and

(b) a LAP within the central part of the Handyside Park.

16. The Developer shall at all times be responsible at its own cost for the following in relation to the LEAP and the LAP:

(a) operational management including general and disabled access arrangements;

(b) management and maintenance; and

(c) security.

M: Health

HEALTH

DEFINITIONS

	:	
“Group 2 items”	;	Equipment and fittings hard wired or fixed to the structure of the accommodation as are generally in accordance with the appropriate Activity DataBase published by the Department for Health Estates and Facilities Directorate, the said equipment and fittings to be provided by and at the cost of the Primary Health Care Trust but to be fitted by the Developer
“NHS”	:	National Health Service or its successor bodies
"Primary Care Trust Specification"	:	The specification for the design and construction of the Primary Health Care Centre and Primary Health Care Walk In Centre respectively as agreed by the Developer and the Council pursuant to clause 1 or 5 such specification to: (i) conform to NHS Health Building Notice 36 and associated Health Technical Memoranda and have regard to the Primary Health Care Trust’s “General Practitioner Practice Premises: General Briefing Notes, 2005”; and (ii) identify the Group 2 items.
"Primary Health Care Centre"	:	A centre to be constructed by the Developer in accordance with the Primary Care Trust Specification and (i) to (iii)

		below and consistent with the details at Schedule [ ] comprising a centre available primarily for residents and occupiers of the CIZ and WIZ to obtain health care in the form of a surgery clinic or primary health care centre for the provision of medical services under the NHS or any other ancillary primary community health and social care purposes: (i) Accommodation of not less than 1,250 square metres GIA (unless otherwise agreed in writing by the Council); (ii) Sited within Plot T2 or such other location as may otherwise be agreed in writing by the Council; (iii) Fitted out to a Category A Finish together with any other items required by the Primary Care Trust Specification.
"Primary Health Care Walk-In Centre"	:	A centre to be constructed by the Developer in accordance with the Primary Care Trust Specification and (i) to (iii) below and consistent with the details at Schedule [ ] comprising a centre available primarily for residents and occupiers of the CIZ and WIZ to obtain improved access to and convenience of primary care providing nurse-led care for minor injuries and illnesses and general health advice: (i) Accommodation of not less than 750 square metres GIA (unless otherwise agreed in writing by the Council); (ii) Sited within Zone E or such other location as may otherwise be

		agreed in writing by the Council; (iii) Fitted out to a Category A Finish together with any other items required by the Primary Care Trust Specification.
"Primary Health Care Trust"	:	Camden Primary Health Care Trust or any other body nominated by the Council whose function is the provision of NHS primary health services
"Primary Health Care Trust Lease"	:	A lease of the Primary Health Care Centre to be granted by the Developer to the Primary Health Care Trust in accordance with the heads of terms annexed at Schedule [ ]
"Primary Health Care Walk-In Centre Lease"	:	A lease of the Primary Health Care Walk-in Centre to be granted by the Developer to the Primary Health Care Trust in accordance with the heads of terms annexed at Schedule [ ]

OBLIGATIONS

The Primary Health Care Centre

1. Prior to serving any Lease Offer, the Developer shall ask the Primary Health Care Trust to provide a draft Primary Care Trust Specification. Following receipt of such draft specification the Developer and the Council shall both use reasonable endeavours to agree the Primary Care Trust Specification in respect of the Primary Health Care Centre.

2. Subject to Clause 21 and the Primary Health Care Trust having served a Lease Acceptance the Developer shall not First Occupy more than 975 residential units (excluding Student Housing) within the Development unless it has Practically Completed the Primary Heath Care Centre.

3. The Group 2 items required by the Primary Care Trust Specification shall be provided by and at the cost of the Primary Health Care Trust but fitted by the Developer.

4. No later than three (3) months following Practical Completion of the Primary Health Centre the Developer shall grant to the Primary Health Care Trust the Primary Health Care Centre Lease.

The Primary Health Care Walk-In Centre

5. Prior to serving any Lease Offer, the Developer shall ask the Primary Health Care Trust to provide a draft Primary Care Trust Specification. Following receipt of such draft specification the Developer and the Council shall both use reasonable endeavours to agree the Primary Care Trust Specification in respect of the Primary Health Care Walk-In Centre.

6. Subject to Clause 21 and the Primary Health Care Trust having served a Lease Acceptance no more than 50,000 sq m GEA of buildings within Development Zones A - F shall be First Occupied unless it has the Primary Health Care Walk-In Centre has been Practically Completed in accordance with the Primary Care Trust Specification.

7. The Group 2 items required by the Primary Care Trust Specification shall be provided by and at the cost of the Primary Health Care Trust but fitted by the Developer.

8. No later than three (3) months following Practical Completion of the Primary Health Care Trust Walk-In Centre the Developer shall grant to the Primary Health Care Trust the Primary Health Care Walk-in Centre Lease.

Schedule [ ]

Schedule of Accommodation for the Primary Health Care Centre

Room description	room	Area sqm	Total sqm
Public Zone			
Lobby	1	15	15
Waiting area	1	60	60
Reception/Records	1	50	50
Tea making facilities at reception	1	4	4
Secure Interview Room	3	12	36
Counselling room	1	12	12
Patient toilets	3	3	9
Disabeld toilets	1	6	6
Baby Change/breastfeeding	1	6	6
Multi purpose meeting room	1	40	40
Education room	1	30	30
1 sessional room	1	15	15
Clinical Zone			
Consult/exam rooms	7	14	98
Trainee consulting room	2	18	36
1 sessional consulting room	2	14	28
Treatment room including minor surgery procedures	2	18	36
Recovery room	1	10	10
Clean Utility room	1	20	20
Dirty utility room	2	10	20
Specimen WC	1	6	6
Staff toilet	2	3	6
Staff only areas			
Comms room	1	15	15
Practice Manager	1	15	15
Duputy Practice Manager office	1	15	15
Administration office	1	30	30
Photocopier, etc	1	15	15
Staff rest room and kitchenette	1	50	50

Library	1	30	30
Resource Room	1	15	15
meeting room	1	40	40
small meeting room	1	15	15
Staff toilets	2	6	12
Disabled staff toilet	1	6	6
Bulk store	2	20	40
plant	1	20	20
Social Services tbc		50	50
Community Nursing offices tbc		50	50
Sub total		758	961
Circulation space @ 30%			288.6
Total			**1249.6**

Schedule [ ]

Schedule of Accommodation for the Primary Health Care Walk In Centre

Room Description	**Room**	**M² area**	**M² total**
Public Zone			
Lobby		15	15
Waiting		40	40
Reception/Records		50	50
Secure Interview Room	3	12	36
Patients Toilets	2	3	6
Disabled Toilet		6	6
Baby Change / Breastfeeding		6	6
Subtotal			**159**
Clinical Zone			
Consult / Exam	6	14	84
Treatment Room	2	18	36
Recovery Room		10	10
Specimen WC	1	6	6
Physiotherapy Room	2	18	36
Dirty Utility		6	6
Clean Utility		15	15
Staff Toilet	1	3	3
Subtotal			**196**
Staff Only Areas			
IT Server		15	15
Practice Manager Office		15	15
Admin Office		30	30
Photocopier, etc.		15	15
Staff Rest Room		25	25
Library		30	30
Staff Toilets	2	3	6
Disabled Toilet		6	6
Bulk Store		15	15
Plant		20	20

Pharmacy Consult		14	14
Pharmacy Store		20	20
Pharmacy Office		12	12
Social Services	2	20	40
Subtotal			**229**
Circulation			
Total			**750m²**

N: Public Realm Areas and Development Estate Realm Areas

Definitions

"Academy "	:	An academy for the management of the public realm to showcase best practice in the management of public realm areas and to offer training for estate management staff employed within the Development and such staff employed by the London Boroughs of Camden and Islington and other appropriate London Boroughs.
"Adoptable Standard"	:	The standard to which the Public Realm Areas must be constructed in order to be adopted such standard to be agreed from time to time in accordance with paragraph 2.
Adoption Agreement	:	An agreement pursuant to section 38 of the Highways Act 1980 or such other type of agreement as the Council may from time to time properly be using for the adoption of highways in the Borough.
"Development Estate Realm Areas"	:	Areas of public realm provided within the Development which are not Public Realm Areas including Pancras Square, the Goods Yard areas, Gas Holders Zone, Cubitt Square, Cubitt Park, Handyside Park, Station Square, Canal Square, York Square, Holder Street and Wharf Road in each case as identified on Plan ***, the principles for the management of which are set out in Schedule F.
Entire Public Realm	:	The Public Realm Areas and the Development Estate Realm Areas [and such other areas to which the public have a right of access]
"Public Realm Areas"	:	The principal street network and associated public realm which may be adopted by the Council, details of which are set out in [Schedule G].
"Public Realm Strategy"	:	The document titled King's Cross Central Public Realm Strategy dated April 2004 submitted with the Main Site Planning Application together with such amendments as may be agreed between the Developer and the Council.

OBLIGATIONS

1. The Developer shall at all times carry out the Development, and the Developer and the Council shall manage the Entire Public Realm, in each case having due regard to the contents of the Public Realm Strategy to the extent it provides guiding principles and

suggest mechanisms for how the Developer and the Council shall fulfil the obligations in this part

2. Prior to the commencement of any works on any part or phase of the Public Realm Areas the Developer shall propose the Adoptable Standard for that part or phase in terms of material, finishes, layout, maintenance and other relevant matters. No works in the Public Realm Areas shall take place other than in accordance with the plans permitted as part of and pursuant to the Planning Permission and thereafter the Adoptable Standards as approved and in general accordance with the Public Realm Strategy.

3. The Council may elect (in its absolute discretion) not to agree any proposed Adoptable Standard in which case the part or phase of the Public Realm Areas shall instead be treated as Development Estate Realm Areas.

4. All parts of the Public Realm Areas shall be adopted pursuant to an Adoption Agreement.

5. The Developer and the Council will each use reasonable endeavours to settle a Adoption Agreement in relation to each part of the Public Realm Areas.

6. In relation to the Public Realm Areas prior to entering into any Adoption Agreement the Developer and the Council shall agree the lighting and other street furniture, road markings and parking control of streets.

7. Within two (2) months following the completion of construction of a Development Zone and the Public Realm Areas associated with and built at the same time as that Development Zone the Developer shall notify the Council in writing of the completion of such Public Realm Areas in accordance with the Adoption Agreement.

8. Within two (2) months of receipt of such written notice pursuant to paragraph 7 and the Adoption Agreement the Council shall carry out a final inspection of the completed Public Realm Areas and issue the Developer with written notice of any outstanding works to bring the Public Realm Areas up to the Adoptable Standard.

9. Subject to the terms of the Adoption Agreement and paragraph 10, once twelve (12) months have elapsed following the completion of all outstanding works to the Public Realm Areas properly required by the Council pursuant to paragraph 8 the Council shall adopt the relevant part or phase of the Public Realm Areas.

10. The Council may elect to defer the adoption of any part of the Public Realm Areas if the nature of any continuing or programmed work in or adjacent to the Public Realm Areas would materially increase the maintenance cost to the Council provided always that the Council shall adopt the relevant part or phase as soon as reasonably practicable after the date on which it can properly and reasonably be adopted.

11. The Developer and the Council shall use reasonable endeavours to agree how any bye-laws which may apply to the Public Realm Areas from time to time following their Adoption may also apply to completed Development Estate Realm Areas provided always that the Council shall not be required to adopt any bye-laws that would require or impose costs on the Council.

12. From the date of the Adoption of Public Realm Areas the Council shall manage and maintain such Public Realm Areas in accordance with the details set out in [Schedule G] which includes the minimum requirements which the Council shall meet in relation to the litter clearing, sweeping and cleaning of the Public Realm Areas. With the agreement of the Developer the Council may make changes to such minimum requirements from time to time if such changes are required to reflect best practice provided that such changes deliver at least an equivalent standard in terms of management and maintenance of the Public Realm Areas.

13. Following Adoption of Public Realm Areas, the Developer and the Council shall co-ordinate parking and pricing and enforcement of parking across the areas so adopted and adjacent Development Estate Realm Areas, and shall use reasonable endeavours to enforce such proposals as may be agreed.

14. The Developer shall:

    (a) manage the Development Estate Realm Areas in accordance with the principles set out in [Schedule F].

    (b) meet minimum requirements in relation to the litter clearing, sweeping and cleaning of completed Development Estate Realm Areas commensurate with those specified in Schedule G for Public Realm Areas adopted by the Council.

Academy for Public Realm Management

15. No more than 100,000 sq m GEA of B1 floorspace shall be Practically Completed unless the Developer is able to demonstrate that it has:

    (a) investigated the viability of establishing the Academy;

    (b) judged the viability or otherwise of establishing the Academy;

    (c) prepared a business plan for the Academy if appropriate;

    (d) consulted on any draft business plan for the Academy;

    (e) spent not less than £50,000 investigating the viability of establishing the Academy in respect of the matters set out at (b) - (d) above.

16. The Council may at any time up until the Practical Completion of 100,000 sq m GEA of B1 floorspace within the Development, but not more than once in any twelve (12) month period, request that the Developer demonstrates that it is fulfilling its obligations under paragraph 15.

PUBLIC REALM DELIVERY

OBLIGATIONS

17. The Developer shall use reasonable endeavours to:

    (a) Practically Complete Station Square and Pancras Square no later than the completion of built development within Development Zone B

    (b) Practically Complete the Boulevard no later than the completion of built development within Development Zone A

    (c) lay out, establish and Practically Complete as much as practicable of Granary Square no later than the completion of refurbishment works to the Granary building within Development Zone L

    (d) Practically Complete the public realm within and around the re-erected gas holder guide frames in Development Zone N no later than the completion of the scheme for the re-erection and re-use of the linked triplet of gasholder guide frames alongside new residential and other uses shown in drawing KXC 020 Rev E

    (e) Practically Complete as much as practicable of Handyside Park before the completion of built development within Development Zones J and K

    (f) Practically Complete as much as practicable of Cubitt Square and Cubitt Park before the completion of 1,000 residential units (excluding student housing).

18. The Developer shall at all times ensure that the Council is aware of the aware of any reason that might lead to the programme date not being met and/or if the level of works that can practicably be completed becomes materially more limited.

19. The Developer, having commenced development, shall use reasonable endeavours to work with those other stakeholders within the King's Cross Strategic Forum to provide a high quality, legible and attractive interchange for people travelling to and from the 2012 Olympic Games by taking actions including:

    a) providing a nominated liaison for events, information and displays;

    b) providing a neat, clean and attractive appearance to the Developer's site hoardings visible site equipment, and instructions to contractors about

appropriate appearance and conduct under the Construction Code of Practice provisions in Part DD;

c) co-ordinating signage, community safety and security arrangements with the council, the police and other responsible bodies

d) facilitating agreed Olympics-related cultural and information events and schools activities

e) assisting the Council to secure additional funding to enhance the visitor experience

PUBLIC REALM AND DEVELOPMENT ESTATE REALM AREAS

SCHEDULE F

PRINCIPLES FOR THE MANAGEMENT OF THE DEVELOPMENT ESTATE REALM AREAS

The Development Estate Realm Areas shall be managed by the Developer in accordance with the following principles:

1. The Developer shall allow the public at large the right of passage on foot along the footpaths and open spaces and on bicycle along appropriate areas within the Development Estate Realm Areas (except for those within the curtilages of the buildings to be erected within the Development) from the date on which the relevant Development Estate Realm Areas have been completed.

2. The Developer shall manage and maintain the completed Development Estate Realm Areas in accordance with the key criteria for the Green Flag Awards Scheme or its successor and otherwise the highest prevailing standards at the time in respect of comparable open spaces within major developments in Central London.

3. The Developer or any person, firm or other body authorised by the Developer shall be entitled:

   (a) to close the Development Estate Realm Areas or any of them where they pass over land in the ownership or adjacent to land within the control of any person requiring closure in the case of emergency or for the purposes of maintenance, repair, decoration or alterations to any building or land abutting the Development Estate Realm Areas as may be required to carry out and complete the said maintenance, repairs, decorations or alterations

   (b) subject to obtaining any necessary planning permissions to place structures and furniture including hard landscaping, soft landscaping, gates and seats in the Development Estate Realm Areas or to alter the position of such structures and furniture as are provided within the Development

   (c) to work from the Development Estate Realm Areas as necessary in connection with the maintenance, repair, decoration or alterations of the Development or any part of parts thereof

   (d) to erect scaffolding on the Development Estate Realm Areas for any purpose connected with the works specified in paragraph (c)

   (e) to exhibit upon or abutting the Development Estate Realm Areas lighting notices, signs and advertising material

(f) to cleanse the Development Estate Realm Areas from time to time

(g) to prevent public access to the Development Estate Realm Areas and in such a manner so as to prevent the Development Estate Realm Areas from becoming public highway by prescription

(h) to eject from or refuse access to the Development Estate Realm Areas to any persons conducting themselves in any excessively noisy or disorderly manner or indecently behaving or causing any significant nuisance or annoyance to other members of the public

provided that in each case any constraints on access to the public or any of them are minimised as far as possible, are reasonable and do not materially detract from the sense of the space being part of the public realm

PUBLIC REALM AND DEVELOPMENT ESTATE REALM AREAS

SCHEDULE G

PRINCIPLES FOR THE MANAGEMENT OF THE PUBLIC REALM AREAS

1. The provisions/table set out details of certain minimum standards of management and maintenance that will be applied by the Council in respect of the Public Realm Areas.

2. References to Grade A Standard are to the definition for Grade A in the Code of Practice on Litter and Refuse issued under S 89 of the Environmental Protection Act 1990 ie "no litter or refuse".

3. The Council shall manage and maintain the adopted Public Realm Areas in accordance with the key criteria for the Green Flag Awards Scheme or its successor.

Zone	Minimum standard of management and maintenance	Relevant public Realm Areas (from Parameter Plan KXC007 Rev S)
A	A Grade A Standard shall be achieved after street sweeping and if falling to any other grade it shall be rectified to Grade A within 30 minutes between the hours of 0800 Hrs - 2200 Hrs on a 7 day week basis. All streets shall be at Grade A by 0800 Hrs each day.	SS1
B	Streets in Zone B shall be swept and cleaned on three occasions daily at fixed frequencies on a 7 day week basis between 0630 Hrs - 2200 Hrs. A Grade A Standard shall be achieved after each street sweeping.	BLV, CS2, TS1
1	Streets in Zone 1 shall be swept and cleaned on two occasions daily at fixed frequencies on a 7 day week basis between 0630 Hrs - 2200 Hrs. A Grade A Standard shall be achieved after each street sweeping.	MS1, LP1
2	Streets in Zone 2 shall be swept and cleaned on a once daily Monday - Friday between 0630 Hrs - 1800 Hrs. A Grade A Standard shall be achieved after each street sweeping.	GSE, GSW, CA1, NS1, P1, YS, R1, R2, R3, S1, S2, S3, R3, CAM1

NB The minimum standards of management and maintenance for the Existing Highways of Pancras Road, Goods Way and York Way (ie PRS, PRC, PRN, GWW, CS1, GWE and YW on KXC007 Rev S) to be added to the table.

O: ADJACENT STREET IMPROVEMENTS

OBLIGATIONS

1. No more than seventy five per cent (75%) of the floorspace of the Development may be First Occupied until the Developer has provided or procured a detailed highways scheme, such scheme to provide for the construction and completion of the works in accordance with a programme, approved by the relevant highway authority in respect of the following existing adopted highways:

   (a) York Way between Crinan Street Road and Junction JN1 in accordance with the principles reflected in the illustrative proposals shown on drawings 7111 and 7112 within the Illustrative Highway Proposals Drawing Album dated September 2005;

   (b) Goods Way between Pancras Road and York Way in accordance with the principles reflected in the illustrative proposals shown on drawing 7113 within the Illustrative Highway Proposals Drawing Album dated September 2005;

   (c) Pancras Road between the Euston Road and Goods Way in accordance with the principles reflected in the illustrative proposals shown on drawings 7411 and 7412 within the Illustrative Highway Proposals Drawing Album dated September 2005.

2. For the avoidance of doubt, the Council shall not be required to procure works of a greater value than the amount it has received from the Developer for any of the works set out in paragraphs 4, 6 and 9.

3. The Developer must give no less than six (6) months written notice to the Council prior to the anticipated date of the Practical Completion of the Camley Street Bridge BR3 or First Occupation of seventy five per cent (75%) of the floorspace of the Development (whichever is likely to be the earlier).

4. Subject to receipt of the written notice as set out in paragraph 3 the Council shall, within five (5) months, notify the Developer in writing of the contract price for the relevant works set out in paragraph 1 and the Developer shall not Practically Complete the Camley Street Bridge BR3 or First Occupy more than seventy five per cent (75%) of the Development until it has paid to the Council:

   (a) the estimated contract price of the upgrading of the paving and lighting along Camley Street, from the junction with Goods Way to the steps into St Pancras Gardens provided that the Developer shall not be required to pay more than £400,000 for such works; and

   (b) a contribution of £190,000 towards the provision of better access and connectivity between Camley Street and Agar Grove. The Council may apply the sum paid

towards a new pedestrian and cycle bridge but shall not do so without first giving due regard to the potential regeneration benefits and deliverability of a more substantial street connection.

5. The Developer must give no less than six (6) months written notice to the Council prior to the anticipated date of the Practical Completion of junction JN1.

6. Subject to receipt of the written notice set out in paragraph 5 the Council shall, within five (5) months, notify the Developer in writing of the contract price for the relevant works set out in this paragraph 5 and the Developer shall not Practically Complete junction JN1 in its final configuration until it has paid to the Council the estimated contract price of the upgrading of the paving and lighting along York Way to a standard reasonably required by the Council (but as close as possible to the standard of similar works to be carried out as part of the Development) between proposed new junction JN1 and Agar Grove provided that the Developer shall not be required to pay more than £800,000 for such works.

7. No more than 1,200 Residential Units may be First Occupied within the Development until the Developer has paid £500,000 to the Council towards the carrying out of Safe Routes to School Measures and other highway mitigation, pedestrian and cycle improvement and streetscape enhancement measures within the Islington Vale Royal, Bingfield New Quarter and Bemerton Area Action Plan Areas.

8. The Developer must give no less than six (6) months written notice to the Council prior to the anticipated date of Practical Completion of Goods Street East and Goods Street West or the First Occupation of 350,000 sq m of buildings (whichever is anticipated to be the earlier).

9. Subject to receipt of the written notice set out in paragraph 8 the Council shall, within five (5) months, notify the Developer in writing of the estimated contract price for the relevant works set out in paragraph 7 and the Developer shall not Practically Complete Goods Street East and Goods Street West or First Occupy more than 350,000 sq m of buildings within the Development until it has paid to the Council:

   (a) the estimated contract price of the works for the resurfacing and environmental enhancement of Copenhagen Street and Safe Routes to Schools Measures for Copenhagen Primary School and/or Blessed Sacrament Primary School, provided that the Developer shall not be required to pay more than £445,000 for such works; and

   (b) the estimated contract price of the works for the resurfacing and environmental enhancement of Wharfdale Road provided that the Developer shall not be required to pay more than £275,000 for such works.

10. In applying the sums received from the Developer under this part towards the relevant works the Council shall be entitled to apply such sums towards the proper costs incurred in meeting the costs associated with any interference with apparatus of statutory undertakers and any claims made under the Land Compensation Act 1973 associated with the above paragraphs provided that the Council shall as far as is reasonably practicable minimise such costs and any deductions in respect of such costs shall be supported by such reasonable supporting information as the Developer may require.

11. If the final contract price for any of the works set out paragraphs 4, 6 and 9 is greater than the estimated contract price the Council shall be entitled to produce a written notice containing the final contract price and the Developer, upon receipt of such notice, shall be required to pay the difference between the estimated contract price and the final contract price provided always that:

    (a) the final contract price has been properly incurred; and

    (b) the Developer shall not be required to pay more than the capped amounts referred to in paragraphs 4, 6 and 9 respectively.

12. Prior to applying the sums received from the Developer under this part towards the relevant works and prior to designing and commissioning such works the Council shall consult with the Developer on the Council's proposed specification for the works and shall pay due regard to the Developer's response when designing such works.

P: Improvement to Adjacent/Local Open Spaces

OBLIGATIONS

1. The Developer must give no less than six (6) months written notice to the Council prior to the anticipated date of First Occupation of sixty per cent (60%) of the Development.

2. Subject to receipt of the written notice set out in paragraph 1 the Council shall, within five (5) months, notify in writing to the Developer the contract price for the relevant works set out in paragraph 2 and the Developer will not Occupy or permit Occupation of more than sixty per cent (60%) of the Development until it has paid to the Council the estimated contract price of the works for the upgrading of landscaping and enhancement of the open spaces at Purchase Street provided that the Developer shall not be required to pay more than £75,000 for such works.

3. The Developer must give no less than six (6) months written notice to the Council prior to the anticipated date of the Practical Completion of the Camley Street Bridge BR3 or First Occupation of seventy five per cent (75%) of the Development (whichever is likely to be the earlier).

4. Subject to receipt of the written notice as set out in paragraph 3 the Council shall, within five (5) months, notify the Developer in writing of the contract price for the relevant works set out in paragraph 3 and the Developer shall not Practically Complete the Camley Street Bridge BR3 or First Occupy more than seventy five per cent (75%) of the Development until it has paid to the Council the estimated contract price of the works to create step free access between Camley Street and St Pancras Gardens provided that the Developer shall not be required to pay more than £50,000 for such works.

5. The Council shall consult with the Developer in relation to the proposed design and specification of the works set out in paragraphs 2 and 4 of this part and shall have due regard to the Developer's response prior to designing and commissioning such works.

6. If the final contract price for any of the works set out paragraphs 2 and 4 is greater than the estimated contract price, the Council shall be entitled to produce a written notice containing the final contract price and the Developer, upon receipt of such notice, shall be required to pay the difference between the estimated contract price and the final contract price provided always that

   (a) the final contract price has been properly incurred; and

   (b) the Developer shall not be required to pay more than the capped amounts referred to in paragraphs 2 and 4 respectively.

Q: Public Art

OBLIGATIONS

1. The Developer shall undertake the commissioning and programming of public art within the Public Realm:

   (a) in an open and collaborative manner;

   (b) in consultation with the Council and other appropriate third parties identified by the Council; and

   (c) using reasonable endeavours to ensure that such public art pays due regard to the objectives of any borough wide art plan in either Camden or Islington at the relevant time

   provided always that the Developer shall not commission or programme any item of public art costing more than £100,000 until it has first demonstrated in writing to the Council's reasonable written satisfaction that it has fulfilled its obligations set out in this paragraph.

2. Prior to commissioning and programming the public art to be provided within the Public Realm Areas, the Developer shall submit for the Council's written approval details (including details of artist, cost, location and specification) of such proposed public art provided that at the time the Developer is ready to commission the public art for such areas, it has been determined in accordance with Section N of the Agreement that the Council will be adopting such areas.

3. Subject to paragraph 4 the Developer shall not Practically Complete more than ninety per cent (90%) of the Development by permitted floorspace or 40 of the 44 Development Plots shown on KXC005 Rev T (whichever is the earlier) until it has spent or committed to spend not less than £1,750,000 on public art within the Public Realm such figure to exclude:

   (a) expenditure on water features identified in the Landscape Proposals Plans LPP101 – LPP120;

   (b) any sum in excess of £50,000 on fees paid other than:

      (i) fees paid to artists or other individuals or organisations who make or produce the public art, or

      (ii) fees paid in respect of the materials required for such public art.

4. If the Developer has not spent or committed to the expenditure of £1,750,000 it shall prior to the Practical Completion of more than ninety per cent (90%) of the Development by permitted floorspace or 40 of the 44 Development Plots shown on KXC005 Rev T

(whichever is the earlier) deposit the unspent and uncommitted balance with the Council to be drawn down within three (3) years of the date of payment by the Developer for expenditure on public art within the Development.

5. The Developer shall be responsible for the long term maintenance and insurance of all public art within the Development Estate Realm Areas. The Council shall be responsible for the long term maintenance and insurance of all public art within the adopted Public Realm Areas.

6. The Developer will provide the water features identified in the Landscape Proposals Plans LPP101 – LPP120 or within such alternative areas as may be agreed in writing with the Council before the Practical Completion of more than ninety per cent (90%) of the Development by floorspace or 40 of the 44 Development Plots shown on KXC005 Rev T (whichever is the earlier).

7. Within 42 days of the Practical Completion of each of the Principal Public Realm areas identified in the Landscape Proposals Plans LPP101 – LPP120 the Developer shall confirm in writing to the Council:

   (a) the sums of money spent within that Principal Public Realm area on sculptures and other public art;

   (b) the nature of the public art installed; and

   (c) the cumulative total of all sums to date on public art within the Development.

R: Pedestrian Bridge - Wharfdale Road to Boulevard

Obligations

1. The Reserved Matters applications for Development Plots A3 and A4 shall include design, technical and cost provision for the construction of the pedestrian/cycle route A1, provided that such obligation only applies if, at the time of submission of such Reserved Matters applications, the Council has either constructed, or is able to demonstrate to the reasonable satisfaction of the Developer a reasonable prospect of constructing within a reasonable period, the connecting bridge WR1 to provide a link between the Boulevard and Wharfdale Road.

2. If the Council constructs or procures the construction of the connecting bridge WR1 to provide a link between the Boulevard and Wharfdale Road the Developer will provide such reasonable assistance as is necessary to allow the Council or its nominee to construct the link and the pedestrian/cycle route and once constructed shall allow the route to be used by pedestrians/cyclists pursuant to an appropriate form of access agreement to be entered into between the Developer and the Council.

3. If by 31 December 2012 the Council has not secured the necessary permission and consents and the funding for the construction of the connecting bridge WR1 the obligation upon the Developer in paragraph 1 shall cease and determine.

S: Camley Street Natural Park

Definitions

"CSNP" :	:	Camley Street Natural Park
"CSNP Centre"	:	Accommodation of not less than 100 sq m NIA within Development Zone H, I, M or N for use by LWT as a CSNP visitor/interpretation centre.
"CSNP Centre Lease"	:	A long lease of the CSNP Centre at a peppercorn rent in accordance with the heads of terms annexed at Schedule [ ].
"LWT"	:	London Wildlife Trust or such other party responsible for management of the CSNP as may be nominated by the Council
"BR3"	:	Bridge BR3 on CSNP shown on Plan [KXC007 Rev S]

Obligations

1. Prior to procuring any detailed design in relation to BR3 the Developer shall use reasonable endeavours to agree a design brief for BR3 with the Council and LWT. The design brief shall have due regard to design options for :

   (a) a lightweight, slender structure; and

   (b) a ‘green’ bridge.

2. The Developer shall ensure that the detailed design for BR3 shall as far as reasonably practicable:

   (a) go through the northern end of CSNP;

   (b) have due regard to the nature conservation interests, community value and security of CSNP which may be affected by such detailed design including lighting;

   (c) have due regard to the opportunities to accommodate biodiversity features within or beneath the bridge structures; and

   (d) have due regard to the opportunities to accommodate storage for conservation equipment and toilet facilities within the western bridge abutment.

3. Subject to any alternative Threshold being agreed under clause 5 of Section T, no more than seventy five per cent (75%) of the permitted floorspace within the Development or

more than 35 out of the 44 Development Plots shown on KXC005 Rev T shall be First Occupied until either:

(a) BR3 has been Practically Completed; or

(b) the payment of £250,000 of the Canal Enhancement Northern Contribution has been made by the Developer pursuant to paragraph 5(b) in Section T and, provided that the Developer has received notice from the Council in accordance with paragraph 6(b) in Section T, the payment of a further £275,000 of the Canal Enhancement Northern Contribution has been made by the Developer pursuant paragraph 6(b) in Section T.

4. Prior to Practical Completion of BR3 the Developer will pay to the Council £50,000 for tree planting, re-sculpting of site levels and other conservation works within CSNP to mitigate and compensate for any residual adverse effects of BR3.

5. Following the installation of green/brown roofs within the Development in accordance with Condition 46 of the Planning Permission the Developer having monitored the relevant issues shall share information with LWT regarding the design, installation and performance of such roofs to inform best practice and assist in regeneration projects elsewhere.

6. The Developer shall use reasonable endeavours to manage any residual land between the new gas governor enclosure in Development Zone V and the existing CSNP boundary in a manner consistent with urban nature conservation management principles. The Developer shall consult the LWT regarding any planting and management proposal for such residual land.

7. No later than the Opening of the Two Form Entry Primary School the Developer shall pay to the Council £100,000 to facilitate expansion by the LWT of its local public participation and educational work at CSNP to include for example new wildlife clubs for the Sure Start/Children's Centre and the Two Form Entry Primary School.

8. If the Developer has failed to make the payment referred to in paragraph 7 on or prior to the Opening of the Two Form Entry Primary School the Developer shall not carry out or permit to be carried out any further works of construction on the Site until such time as paragraph 7 has been complied with.

9. The Developer shall purchase corporate membership for a period of one (1) year of the LWT at CSNP for each of the first 50 occupiers who occupy more than 1,000 sq m B1 floorspace within the Development. The membership rate paid by the Developer will be £1,000 per annum for each full 1,000 sq m occupied, up to a maximum of £5,000 for a single occupier.

10. The Developer shall give reasonable co-operation to the LWT in :

    (a) raising the profile of CSNP and its urban ecological value alongside the Development:

    (b) establishing a productive relationship between CSNP and the Construction Training Centre; and

    (c) establishing CSNP as a beneficiary under the Business Volunteering Programme.

11. Subject to any alternative Threshold being agreed under clause 5 of Section T and subject to clause 21 and LWT having served a Lease Acceptance, the CSNP Centre shall be Practically Completed to a Category A finish and the existing study and visitor centre within CSNP shall be removed prior to the First Occupation of seventy five per cent (75%) of the permitted floorspace within the Development or more than 33 out of the 44 Development Plots shown on KXC005 Rev T.

12. No later than three (3) months following Practical Completion of the CSNP Centre the Developer shall grant to LWT the CSNP Centre Lease.

13. The Council shall forthwith upon receiving the sums referred to in paragraphs 4 and 7 pay such sums to LWT on condition and trust that LWT shall apply such sums towards the purposes stated in those paragraphs.

T: Canal and Waterspace Enhancement Works

Definitions

"Canal Enhancement Northern Contribution"	:	The sum of £5,250,000
"Canal Enhancement Southern Contribution"	:	The sum of £750,000
"Camley Street Steps Contribution"	:	The sum of £125,000
"Camley Street Steps Completion Date	:	The final date for the completion of those access improvement works of the Camley Street Steps listed at Schedule Z
"Camley Street Steps Plan"	:	A plan for the delivery of those access improvement works of the Camley Street Steps listed at Schedule Z, including the Camley Street Steps Completion Date
"Regent's Canal North Completion Date"	:	The final date for the completion of the works along the north side of the Regent's Canal listed at Schedule [Y]
"Regent's Canal North Plan"	:	A plan for the phased delivery of the works along the north side of the Regent's Canal listed at Schedule [Y], including the Regent's Canal North Completion Date
"Regent's Canal South Completion Date"	:	The final date for the completion of the works along the south side of the Regent's Canal listed at Schedule [X]
"Regent's Canal South Plan"	:	A plan for the phased delivery of the works along the south side of the Regent's Canal listed at Schedule [X], including the Regent's Canal South Completion Date

OBLIGATIONS

1. No more than 75,000 sq m GEA of buildings to the south of the Regent's Canal shall be First Occupied until:

   (a) (i) the Developer has demonstrated in writing to the reasonable satisfaction of the Council that the Developer has the necessary rights in land or other legal authority capable of exercise to implement those works along the south side of the Regent's Canal listed at Schedule [X] in accordance with the Regent's Canal South Plan; and

(ii) the Developer has submitted the Regents Canal South Plan to the Council and the Regent's Canal South Completion Date has been approved in writing by the Council;

in which case the Developer shall carry out the phased delivery of those works in accordance with the Regent's Canal South Plan.

or

(b) the Developer has paid to the Council the Canal Enhancement Southern Contribution

2. The Council shall apply the Canal Enhancement Southern Contribution towards the delivery of the works listed at Schedule [X] and shall deliver such works as soon as reasonably practicable.

3. No more than 100,000 sq m GEA of buildings to the north of the Regent's Canal shall be First Occupied until:

(a) (i) the Developer has demonstrated in writing to the reasonable satisfaction of the Council that the Developer has the necessary rights in land or other legal authority capable of exercise to implement those works along the north side of the Regent's Canal listed at Schedule [Y] in accordance with the Regent's Canal North Plan; and

(ii) the Developer has submitted the Regent's Canal North Plan to the Council and the Regent's Canal North Completion Date has been approved in writing by the Council;

in which case the Developer shall carry out the phased delivery of those works in accordance with the Regent's Canal North Plan

or

(b) the Developer has paid to the Council the Canal Enhancement Northern Contribution.

4. The Council shall apply Canal Enhancement Northern Contribution towards the delivery of the works listed at Schedule [Y] and shall deliver such works as soon as reasonably practicable.

5. If the Regent's Canal North Plan indicates that the programme for the Practical Completion of BR3 is likely to be later that the date on which seventy five per cent (75%) of the permitted floorspace within the Development or more than 35 out of the 44

Development Plots shown on KXC005 Rev T would be First Occupied the Council may either in its absolute discretion:

(a) agree an alternative date by which BR3 shall be Practically Completed and such agreed date may be conditional on the provision of such security as to the Developer's ability to Practically Complete BR3 as the Council may reasonably require; or

(b) require the immediate payment of £250,000 of the Canal Enhancement Northern Contribution to allow the Council sufficient funds to be able to negotiate with the relevant landowners and to secure the confirmation of any necessary powers of compulsory acquisition to acquire such rights in land or other legal authority as may be necessary to Practically Complete BR3, in which case paragraph 6 shall apply.

6. If the Council opts in accordance with paragraph 5(b) then:

(a) the Council shall use reasonable endeavours to acquire (which shall include use of powers of compulsory acquisition) such rights in land or other legal authority as may be necessary to Practically Complete BR3;

(b) when such rights or legal authority have been acquired and notice of such acquisition has been served on the developer, the Developer will pay to the Council the sum of £275,000, (being the balance of the Canal Northern Enhancement Contribution attributable to BR3); and

(c) the payment made by the Developer pursuant to sub-paragraph 6(b) shall be applied by the Council towards the construction and Practical Completion of BR3 as soon as reasonably practicable.

7. No more than 250,000 sq m GEA of buildings to the north of the Regent's Canal shall be First Occupied until:

(a) (i) the Developer has demonstrated in writing to the reasonable satisfaction of the Council that the Developer has the necessary rights in land or other legal authority capable of exercise to implement those access improvement works at the Camley Street Steps listed at Schedule [Z] in accordance with the Camley Streets Steps Plan; and

(ii) the Developer has submitted to the Council the Camley Street Steps Plan and the Camley Streets Steps Completion Date has been approved in writing by the Council;

in which case the Developer shall carry out the phased delivery of those works in accordance with the Camley Street Steps Plan .

or

(b) the Developer has paid to the Council the Camley Street Steps Contribution

8. The Council shall apply the Camley Street Steps Contribution towards the delivery of the works listed at Schedule [Z] and shall deliver such works as soon as reasonably practicable.

9. If the Developer is able to confirm, to the reasonable satisfaction of the Council and prior to the due date for payment, the legal authority capable of immediate exercise and a delivery plan for some but not all of the works listed at Schedule [X], [Y] or [Z]], then the sum(s) to be paid under paragraphs [1(b), 3(b) and 7(b)] will be reduced commensurately, to reflect the cost of the works that have been confirmed in which case the Developer shall carry out the phased delivery of those identified works in accordance with the relevant plan. The Developer and the Council shall both use reasonable endeavours to agree the commensurate reduction.

Schedule X – Canal and Waterspace Enhancement Works Along the South Side of the Regent's Canal

- Provision of new steps and ramps in accordance with Plan KXC006
- Provision of new and refurbished moorings and access to those moorings in accordance with Plans KXC006 and LPP106A
- Provision of new surface finishes in accordance with Plans KXC006 and LPP106A
- Provision of tree planting and other soft landscaping along the canal edge in accordance with Plan LPP106A
- Provision of aquatic planting in accordance with Plan LPP106A
- Provision of new canal-side lighting
- Site preparation works to facilitate the above

Schedule Y – Canal and Waterspace Enhancement Works Along the North Side of the Regent's Canal

- Provision of new steps and ramps in accordance with Plan KXC006
- Provision of new bonded gravel surfaces to the canal towpath in accordance with Plans KXC006, LPP106A, LPP106B and LPP109
- Provision of tree planting and other soft landscaping along the canal edge in accordance with Plans LPP106A, LPP106B and LPP109
- Native species planting in accordance with Plan KXC006
- Provision of new canal-side and under-bridge lighting
- Provision of new street furniture along the canal towpath in accordance with Plans LPP106A, LPP106B and LPP109
- Provision of the vehicle and pedestrian bridge BR1 on KXC007
- Provision of the pedestrian bridge BR2 on KXC007
- Provision of the Camley Street Bridge BR3 on KXC007
- Site preparation works to facilitate the above

Schedule Z – Access Improvement Works At Camley Street Steps

- Provision of improvements to existing steps between Camley Street and the Canal towpath alongside the Oblique Bridge, to include the removal of the existing steps and the provision of new railings
- Provision of new ramped and gateway access between Camley Street and the Canal towpath alongside the Oblique Bridge

U: Support for Implementation Panels

DEFINITIONS

"Consultative Design Group"	:	A forum to be convened in accordance with the Consultative Design Group Terms of Reference
"Consultative Design Group Terms of Reference"	:	The terms of reference for the Consultative Design Group, to include its formation, roles, membership, meeting cycle and procedures.

OBLIGATIONS

1. The Council shall use reasonable endeavours to propose within three (3) months of the grant of Planning Permission draft Consultative Design Group Terms of Reference, following consultation with relevant design, community safety, access and inclusivity and heritage organisations.

2. The Council and the Developer shall thereafter use reasonable endeavours to agree the Consultative Design Group Terms of Reference, such that:

   (a) the Consultative Design Group can be first convened on or prior to submission of the First Reserved Matters Application or, if that is not achieved, as soon as practicable thereafter; and

   (b) the Consultative Design Group can make recommendations on emerging designs and proposals within the Development prior to the Developer's formal submission of details for approval by the Council.

3. The Council and the Developer shall contribute equally to the costs of running the Consultative Design Group unless otherwise agreed between the parties.

4. The Developer shall be responsible for providing at its own cost administrative support for the Consultative Design Group.

5. The Council and Developer shall hold, attend and conduct meetings of the Consultative and Design Group in accordance with the Consultative Design Group Terms of Reference, subject to such variations as the Council and the Developer may agree from time to time

6. The Council and the Developer shall review twelve (12) months following its first meeting (or other such period as shall be agreed between the Council and the Developer) and thereafter every twelve (12) months (or such said other period) the effectiveness of the Consultative Design Group.

7. The Council and the Developer shall both use reasonable endeavours to agree how the Consultative Design Group should properly fit into wider arrangements for partnership working, such arrangements to integrate where relevant and appropriate existing structures such as the King's Cross Access Forum referred to in Part V. The Council and Developer shall thereafter both use reasonable endeavours to implement the agreed partnership working arrangements.

V: Access and Inclusivity

ACCESS AND INCLUSIVITY

DEFINITIONS

"Access Statement"	:	The statement to be submitted by the Developer for approval of Reserved Matters in accordance with Condition 19 of the Planning Permission
"King's Cross Access Forum"	:	The existing forum convened by the Council and managed in accordance with the King's Cross Access Forum Terms of Reference to provide informal advice and feedback on access and inclusivity policies and practice within the King's Cross Opportunity Area
"King's Cross Access Forum Terms of Reference"		The terms of reference for the King's Cross Access Forum, to include its formation, roles, membership, meeting cycle and procedures
"Inclusive Design Champion"	:	A suitably qualified person to carry out the following functions at the design stage of the Development to apply Inclusive Design Principles:- (a) to actively consider and integrate access issues at all stages of the design process through the application of the Inclusive Design Principles ; (b) to convert the access requirements of the design briefs for the Site into appropriately designed and constructed buildings;
"Inclusive Design Principles"	:	The principle of designing environments so that they create an environment where

		everyone can access and benefit from the full range of opportunities available to members of society by removing barriers that create undue effort, separation or special treatment and enables everyone regardless of disability age or gender to participate equally confidently and independently in mainstream activities with choice and dignity
"Lifetime Homes Standards"	:	The specifications and standards which meet the Lifetime Homes Standards as set out in the document published by the Joseph Rowntree Foundation in 1999 entitled "Meeting Part M and Designing Lifetime Homes" (as amended from time to time) in order to provide accessible housing in the Development or such other alternative standard as may be agreed between the Parties

OBLIGATIONS

1. When preparing the detailed design of buildings within the Development the Developer shall:

   (a) retain as part of the design team an Inclusive Design Champion to inform and monitor the emerging detailed designs; and

   (b) commission, at appropriate stages of the detailed design process, specialist consultants to undertake accessibility audits in relation to such designs

   with a view to the Inclusive Design Principles informing the design of each proposed building and the public realm.

2. In carrying out their responsibilities the Inclusive Design Champion shall consult with and have due regard to the advice and/or response received from the Consultative Design Group (defined in Part U of this Agreement) and the King's Cross Access Forum.

3. The Developer shall use reasonable endeavours to incorporate within the relevant Reserved Matters application appropriate disabled parking for public, residential and

office buildings within the footprint of such buildings, typically within basements or undercroft levels or in street spaces immediately adjacent to the relevant building.

4. The Developer shall review and evaluate the delivery of buildings and related projects within the Development upon their completion and use any lessons learned for enhancing the delivery of future buildings and public realm.

5. The Developer shall undertake the detailed design of all residential development (including Affordable Housing) with the aim of meeting the Lifetime Homes Standards.

6. If one or more of the Lifetime Home Standards cannot be achieved on any units the reasons shall be highlighted and explained to the Council's reasonable satisfaction within the relevant Access Statement but in presenting such reasons the Developer shall be entitled to rely upon (and in considering such reasons the Council shall recognise) the high density nature of the development and the design constraints which thereby arise.

W: Environmental Sustainability

OUTSTANDING ISSUES

DEFINITIONS

"Energy Assessment"	:	The Energy Assessment dated September 2005 submitted under the Main Site Application.
"Environmental Management System"	:	A system to cover estate management activities within the Development modelled on ISO 14001 which shall include an energy reduction strategy, a sustainable waste strategy, a sustainable water strategy and a materials and purchasing strategy.
"Environmental Sustainability Strategy"	:	The Environmental Sustainability Strategy dated April 2004 submitted under the Main Site Application.

OBLIGATIONS

1. The Developer shall have due regard in carrying out, managing and maintaining the Development to the contents of the Environmental Sustainability Strategy and the Energy Assessment to the extent they provide guiding principles and suggest mechanisms for how the Developer shall fulfil the obligations in Sections W to BB.

2. The Developer shall ensure that all submissions made in accordance with conditions attached to the Planning Permission which relate to Sections W to BB in this section provide the Council with sufficient information for the Council to understand the way in which the Developer has carried out its reasonable endeavours obligations in relation to such paragraphs.

3. Prior to First Occupation of 100,000 sq m GEA of floorspace within the Development the Developer shall implement and thereafter maintain an appropriate Environmental Management System.

4. Following the implementation of the Environmental Management System the Developer shall use reasonable endeavours to promote the adoption of the sustainability strategies within the said system by other parties who commission, purchase and/or occupy new buildings within the Development.

5. The Developer shall use reasonable endeavours to obtain independent accreditation of the Environmental Management System under ISO 14001 within twelve (12) months following its implementation or as soon as reasonably practicable thereafter and shall use reasonable endeavours to maintain such accreditation after it has been obtained.

6. The Developer shall notify the Council forthwith on the accreditation of the Environmental Management System and of any lapse or qualification to the accreditation.

7. If the Developer does not obtain accreditation or the accreditation lapses then the Council may on request (such request to be made no more often than once in any twelve (12) month period) require the Developer to provide :

   (a) a report of the actions taken to comply with the obligation to implement and to maintain the Environmental Management System over the period since the last such report (or the date of First Occupation of 100,000 sq m GEA of floorspace within the Development if there has been no such report);

   (b) a report of the actions taken to comply with paragraph 4 over the period since the last such report (or the date of First Occupation of 100,000 sq m GEA of floorspace within the Development if there has been no such report)

X: Environmental Sustainability - Energy

"CHP"	:	Combined heat and power.
"Trigeneration"	:	The incorporation of absorption chillers to provide cooling, using the heat generated by CHP systems.

OBLIGATIONS

1. In carrying out the Development the Developer shall use reasonable endeavours to ensure that it does not do so in a way that would materially prejudice the prospects of the Development achieving by 2050, if market and other conditions so allow, the sixty per cent (60%) reduction in carbon emissions from 2000 levels identified in the Energy Assessment.

2. The Developer will carry out its obligations in this [Section] with the objective of :

   (a) achieving significant savings in carbon emissions compared with current 'business as usual' benchmarks through

      (i) energy efficient building design and technology;

      (ii) supplying energy efficiently through a site wide approach to district heating, incorporating tri-generation from distributed Combined Heat and Power (CHP); and

      (iii) using renewable energy technologies.

   (b) achieving upon the Completion Date carbon emissions from the buildings in the Development will be 11,315,945 kgC/year or less, being at least thirty two per cent (32%) lower than the 'business as usual' benchmark of 16,645,500 kgC/year identified in the Energy Assessment.

   (c) using renewable energy technologies such that the carbon emissions from buildings within the Development identified above (11,315,945 kgC/year) are reduced by a further ten per cent (10%) with the objective that upon the Completion Date carbon emissions from the buildings within the Development will be 10,217,765 kgC/year and at least thirty nine per cent (39%) lower than the "business as usual" benchmark of 16,645,500 kgC/year identified in the Energy Assessment.

3. Where measures are proposed as part of the Reserved Matters with the aim of meeting the objectives in paragraph 2 they shall be implemented as part of the implementation of the Reserved Matters unless otherwise agreed with the Council

4. Where measures are installed or taken with the aim of meeting the objectives in paragraph 2 they shall not be removed or materially altered without the prior agreement of the Council

Energy Efficient Building Design and Technology

5. The Developer shall use reasonable endeavours to incorporate energy efficient building design and technology measures as an integral part of the detailed design of all buildings such reasonable endeavours shall include consideration of the following issues:

   (a) the physical form of the building;

   (b) the building envelope, the specification of cladding and glazing systems and their thermal performance;

   (c) the scope for passive solar design/control of solar gain, taking account of the building's orientation;

   (d) the scope for using thermal mass;

   (e) the choice and design of building systems;

   (f) the scope for natural ventilation;

   (g) the scope for intelligent lighting systems and other techniques to optimise the use of natural light;

   (h) the sizing and specification of plant, glazing and other equipment;

6. The Developer shall use reasonable endeavours to ensure that, for each new building within the Development, the measures incorporated achieve a reduction in carbon emissions of at least five per cent (5%) compared with the emissions permitted under the national Building Regulations prevailing at the time of submission to the Council of the relevant application for approval of reserved matters in relation to such building,

7. Such five per cent (5%) reduction (or greater if applicable) shall be achieved against the building and its associated systems, disregarding:

   (a) any systems installed by occupiers that are not covered by the said Building Regulations and are not within the direct control of the Developer

   (b) any efficiency improvement/carbon reductions made through the application of the CHP, biofuel and other renewable energy technology measures referred to in paragraphs [9 – 20] inclusive below.

8. The Developer shall make available for inspection by the Council copies of submissions made by the Developer under the Statutory Building Regulations Part L carbon assessment, in respect of proposed designs of buildings within the Development.

A Site-Wide Approach to District Heating Incorporating Tri-generation from Distributed Combined Heat and Power (CHP)

9. The Developer shall use reasonable endeavours to :

   (a) install distributed CHP/energy centres;

   (b) incorporate absorption chillers within the Development to provide cooling for buildings, using the heat generated by CHP systems to achieve tri-generation.

10. The Developer shall install within development zones A, B, J, K, L, N, P, Q, R, S and T the infrastructure necessary for district heating/distributed CHP systems. No building within these zones shall be First Occupied unless the pipework infrastructure necessary to connect to that building has been Practically Completed.

11. Buildings within development zones A, B, J, K, L, N, P, Q, R, S and T shall be connected to district heating networks/zones prior to First Occupation unless the Developer can demonstrate that there is no significant low pressure hot water demand.

12. The CHP systems installed within the Development shall include at least one 250 kw fuel cell to show-case such technology. No more than eighty per cent (80%) of the Development as measured by permitted floor space or 35 of the 44 Development Plots shown on Drawing KXC005 shall be First Occupied until the fuel cell has been Practically Completed and is operational.

13. The district heating pipework infrastructure installed within the Development shall be specified and sized to enable a connection to the district heating pipework within the adjacent Triangle Site development, as indicated on Figure 3 of the Energy Assessment.

Renewable Energy Technologies

14. The Developer shall install at roof level the 14 wind turbines shown on Parameter Plan KXC020 Rev E each installation to take place before Practical Completion of the building upon which the turbine is to be mounted.

15. No more than fifty per cent (50%) of any building on which a wind turbine is to be installed shall be First Occupied until the wind turbine has been Practically Completed and is operational.

16. Subject to paragraph 19 the Developer shall install photovoltaic cell arrays at the appropriate locations within the Development as shown on Figure 8 of the Energy Assessment.

17. Subject to paragraph 19 the Developer shall install ground source heat pumps within Cubitt Square and other appropriate Public Realm Areas, as set out in Section 6 and Figure 8 of the Energy Assessment.

18. Subject to paragraph 19 the Developer shall install solar thermal systems for generating hot water within buildings providing student accommodation, as set out in Section 6 and Figure 8 of the Energy Assessment.

19. The obligations in paragraphs 16, 17 and 18 are subject to the Developer having first obtained the necessary planning and other consents for the installation of the relevant items provided that the Developer has :

    (a) lodged applications for such consents in sufficient time for their approval by the relevant authority; and

    (b) if the initial applications are refused and the relevant items are capable of being approved through the submission of amended details, submitted and pursued such amended details as soon as reasonably practicable thereafter;

    (c) if the amended details are not approved, alternative approaches for delivering the photovoltaics, ground source heat pumps and solar thermal systems have been thoroughly explored and applications made for any alternative approaches that are practicable.

20. From the date at which the Developer should properly regard the supply chain for biofuels to be as reliable and cost-effective as gas, having regard to:

    (a) whether the cost of supplying a unit of heat through the district heating system utilising biofuels (taking into account fuel costs; plant capitalisation including storage; and operating and maintenance costs) is no more than ten per cent (10%) higher than the cost of supplying the same unit of heat through the district heating system utilising gas;

    (b) whether there are more than 3 commercially stable suppliers for biofuels capable of meeting the needs of the development; and

    (c) whether opportunities exist to enter into medium-term contracts for at least five (5) years for the secure supply of biofuels.

    the Developer shall install biofuel boilers/biofuel CHP within the Development, to supplement the energy supplied through any district heating infrastructure. The Developer

shall as part of the materials supporting Reserved Matters submission provide the Council with an analysis of the then present position in relation to the three factors identified above.

21. After installation of biofuel boilers/biofuel CHP the Developer shall use reasonable endeavours to implement the use of biofuel technologies.

Y: Environmental Sustainability - Construction Materials/Construction Waste

Definitions

"BREEAM" : the prevailing Building Research Establishment's Environmental Assessment Method

"Construction Materials and Purchasing Strategy" : A strategy that seeks to:

(a) reduce materials usage, for example by reviewing the structural loading criteria for each building

(b) minimise waste, for example through purchasing to precise specifications and the collection of waste in segregated containers, for subsequent recycling on or off site

(c) use recycled materials, for example materials from those buildings, structures and other surfaces which are to be demolished may be salvaged for re-use or recycled

(d) promote sustainable techniques and principles, for example by designing buildings for adaptability and flexibility and eventual deconstruction/re-use

(e) apply a material selection hierarchy based on sustainability criteria, for example BREEAM assessment, life cycle analysis and/or the UK Ecopoints scheme.

"Construction Targets" : The following targets:

(a) eighty per cent (80%) of all high mass elements to attain an "A" rating under BREEAM

(b) eighty per cent (80%) of all medium mass elements to attain an "A" rating under BREEAM

(c) eighty per cent (80%) of all other elements to attain an "A" rating under BREEAM

(d) All other elements forming the twenty per cent (20%) within each category to attain a "B" rating under BREEAM

(e) fifty per cent (50%) of all aggregate used on site to come from reclaimed materials

and sources

(f) All paints, sealants and flame retardants to be water based, non toxic and not contain VOCs

(g) All timber products to be from sustainable sources and recognised under a registered eco scheme such as the Forestry Stewardship Council scheme or equivalent

(h) No ozone depleting chemicals to be used

(i) All textile based floor finishes and covering to use natural fibres sourced from sustainable sources.

OBLIGATIONS

1. Upon Implementation the Developer shall implement the Construction Materials and Purchasing Strategy.

2. The Developer shall apply the Construction Materials and Purchasing Strategy in agreeing specifications and targets in contracts with contractors, designers and suppliers of services in relation to construction of buildings within the Development.

3. The Developer shall use reasonable endeavours to minimise packaging waste associated with the delivery of construction materials for the buildings within the Development.

4. The Developer shall:

   (a) use reasonable endeavours to re-use, as part of the works to be carried out within the Public Realm Areas, historic surfaces which are reclaimed during the construction of the Development and which are suitable for such re-use; and

   (b) shall not dispose of any such historic surfaces which are reasonably capable of recycling or re-use and are not used as part of such works unless it can demonstrate that it has used reasonable endeavours to market and sell such historic surfaces to third parties and has failed to do so.

5. The Developer shall use reasonable endeavours to produce topsoil and subsoil within the Development using subsoil and crushed rubble from the Site combined with organic composts, green composts and organic waste streams for use in areas of landscaping in order to avoid where practicable importing soils.

6. The Developer shall use reasonable endeavours to achieve the Construction Targets during the construction of the Development.

7. The obligations upon the Developer in paragraphs 21-26 shall cease upon the Completion Date

8. On request the Developer shall provide details of the CEMP audits referred to in Appendix 1 of the CoCP.

Z: Environmental Sustainability - Waste

Definitions

"Waste Information Packs" : Information (including appropriate information provided to the Developer by the Council) regarding recycling, and reuse of materials and sustainable purchasing, including:

(a) advice on waste avoidance through purchasing

(b) re-use of unwanted items either directly or indirectly through charity shops

(c) unwanted goods exchange

(d) junk mail prevention measures

(e) recycling services available

(f) home composting

(g) waste watch business network

(h) educational visits to schools, residential groups and businesses.

OBLIGATIONS

1. The Developer shall provide occupiers of the Development with Waste Information Packs and use reasonable endeavours to obtain feedback regarding the success or popularity of the initiatives contained within such Packs.

2. The Developer shall use reasonable endeavours to incorporate within the detailed design of the buildings within the Development best practice design solutions to assist occupiers of the Residential Units segregate and store waste and recycling materials into the various streams collected by the Council and will use reasonable endeavours to maintain such solutions as are implemented.

3. The Developer shall use reasonable endeavours to incorporate within the detailed design of commercial and leisure buildings within the Development best practice design solutions

that provide for waste segregation and storage areas and will use reasonable endeavours to maintain such solutions as are implemented.

4. The Developer shall provide and maintain segregated waste containers within the Public Realm at suitable locations and in appropriate numbers.

AA: Environmental Sustainability - Water

"BREEAM"	:	The prevailing Building Research Establishment's Environmental Assessment Method
"EcoHomes"	:	The prevailing BREEAM for NEW homes
"SUDS"	:	Sustainable Urban Drainage Systems

OBLIGATIONS

1. The Developer shall use reasonable endeavours to incorporate within the detailed design of the Development water efficiency measures such that those designs secure at least forty per cent (40%) of the potable water consumption credits available under the BREEAM/EcoHomes methodologies which represents a reduction of approximately twenty to thirty per cent (20-30%) against typical water consumption.

2. The Developer shall use reasonable endeavours to incorporate within each phase of the Development one or more of the following alternative water supplies to meet five per cent (5%) or more of the non-potable needs of such phase:

   (a) groundwater abstraction

   (b) greywater and blackwater recycling

   (c) rainwater harvesting.

3. The Developer shall use reasonable endeavours to ensure that the design for the treatment of storm water run off within the Development incorporates, where practicable, filtration, attenuation and other techniques that are consistent with the then best practice advice on SUDS, to control the timing and volume of flows.

BB: Carbon Fund

"Carbon Fund"	:	A fund set up in a single account to provide money for the investigation and delivery of ongoing reductions in carbon emissions through the application of new technologies, including capital or seed funding for specific renewable energy ventures within King's Cross Central, direct provision of renewable energy in buildings or infrastructure and direct provision of permanent energy-saving measures in buildings or infrastructure.

OBLIGATIONS

1. The Developer shall pay £100,000 to the Council upon each of the 7th, 8th, 9th, 10th and 11th anniversaries of the First Occupation for B1 purposes of 10,000 sq m GEA of floorspace.

2. The Council shall pay all such payments into the Carbon Fund.

3. The Developer and the Council shall use reasonable endeavours to agree no later than twelve (12) months prior to the date of the first payment under paragraph 1 the criteria and decision making process pursuant to which payments shall be made from the Carbon Fund and shall review those criteria at the request of either party at intervals of no less than twenty four (24) months.

4. The Developer, its tenants and occupiers shall be entitled to obtain payments from the Carbon Fund for work properly related to the purposes of the Carbon Fund where such works fulfil the criteria agreed between the Council and the Developer.

5. The Council and the Developer will use reasonable endeavours to work together to leverage in any grant funding that is available to further the effectiveness of the Carbon Fund.

6. In no circumstances will any money paid into the Carbon Fund which is attributable to revenues from the Indoor Sports Hall and the Leisure Facility be repaid to the Developer.

CC: Gas Holder Guide Frames

Definitions

Obligations

1. The Developer shall ensure that prior to their re-erection neither the ownership nor the control of Gas Holder Number 8 and the Linked Triplet Gas Holders is not transferred outside the Parties to this Agreement without the consent of the Council (which consent may be given subject to conditions).

2. Prior to commencing the re-erection of Gas Holder Number 8 the Developer shall prepare and submit to the Council for approval in accordance with Condition 2 of the Listed Building Consent details of how the future maintenance of Gas Holder Number 8 would be funded and delivered and, if maintenance would not be part of a commercial arrangement, the proposed mechanism for securing such maintenance.

3. Prior to commencing the re-erection of Linked Triplet Gas Holders the Developer shall prepare and submit to the Council for approval in accordance with Condition 54 of the Planning Permission details of how the future maintenance of the Linked Triplet Gas Holders would be funded and delivered.

4. Following the re-erection of Gas Holder Number 8 and the Linked Triplet Gas Holders the Developer shall implement the proposals for future maintenance in accordance with the details approved by the Council.

5. The Developer shall use reasonable endeavours to place contracts for:

   (a) the dismantling, refurbishment (including repair) and re-erection of the Gas Holder Number 8 in accordance with the method statements and programmes approved pursuant to Condition 24 of the Planning Permission; and

   (b) the movement and secure storage of the Linked Triplet Gas Holder in accordance with the method statements and programmes approved pursuant to Condition 24 of the Planning Permission

   within three (3) years of Implementation.

6. The Developer shall use reasonable endeavours to secure approval of all Reserved Matters and any other necessary planning approvals in respect of the scheme shown on drawing KXC 020 Rev E providing for there-erection and re-use of the Linked Triplet Gas Holder and for all necessary works of repair within three (3) years of Implementation or such other period as may be approved by the Council.

7. Subject to paragraph 8, no more than 1,000 residential units shall be First Occupied unless the repair and re-erection of the Linked Triplet Gas Holder in respect of the scheme shown in drawing KXC 020 Rev E has been completed.

8. The Developer shall be entitled to allow the Occupation of more than 1,000 residential units provided that:

   (a) applications for all consents required to carry out the works of repair, re-erection and re-use were submitted within three (3) years of Implementation;

   (b) the Developer has demonstrably used reasonable endeavours to secure consents for all the works of repair, re-erection and re-use prior to the Occupation of 1,000 residential units;

   (c) the Developer agrees to continue to use reasonable endeavours to secure consents for such works of repair, re-erection and re-use; and

   (d) an alternative threshold or form of security ensuring the repair, re-erection and re-use of the Linked Triplet Gas Holder is agreed between the Developer and the Council.

9. Until the Developer completes the repair and re-erection of the Linked Triplet Gas Holder guide frames:

   (a) the Developer shall continue to maintain the Linked Triplet Gas Holder guide frame components in secure storage; and

   (b) the Developer may not use the site shown on drawing KXC020 Rev E for any development purpose which would preclude the re-erection of the Linked Triplet Gas Holder forthwith upon the later of :

      (i) 1,000 residential units being First Occupied;

      (ii) such other threshold as may be agreed in accordance with paragraph 8(b); or

      (iii) the relevant consents necessary for the repair, re-erection and re-use of the Linked Triplet Gas Holder being granted.

10. Until the Developer completes the repair and re-erection of Gas Holder Number 8 the area shown for Gas Holder Number 8 on drawing KXC005T shall not be used for any development purpose which would preclude or materially delay the re-erection of Gas Holder Number 8 within that area.

11. Having placed a contract for the re-erection of Gas Holder Number 8 the Developer shall ensure that such re-erection is completed within ten (10) years of the works of re-erection having been commenced.

DD: Code of Construction Practice

Definitions

"CEMP" : The Construction Environmental Management Plans meeting the minimum requirements of Appendix 1 of the COCP.

"COCP" : The Revised Code of Construction Practice dated September 2005 attached which sets out how the Developer will implement construction activities throughout the phased implementation of the Development together with such amendments for which there may from time to time be agreed between the Developer and the Council.

"Environmental Health Officer" : A suitably qualified and/or experienced person employed by the Council whose terms of employment shall include (but not be limited to) the following:

(a) to ensure the Developer's compliance with the COCP on the Site and also for any parts of the London Borough of Camden and the London Borough of Islington outside the Site affected by the Development;

(b) to assist the Developer in implementing the COCP and in remedying any breaches of the COCP;

(c) to attend the Construction Impact Group meetings; and

(d) to carry out any of the normal functions required by an officer holding a post as an environmental officer within the Council.

"Environmental Health Officer Contribution" : The sum of £360,000 (three hundred and sixty thousand pounds) to be applied by the Council for the establishment of the Environmental Health Officer.

Obligations

1. Subject to paragraph 2 the Developer shall carry out the Development having due regard to the COCP.

2. Best practice from time to time in the management of the environmental impacts of construction will be used by the Developer as a guiding principle to inform decisions taken during the construction process for the Development.

3. In the carrying out of the Development the Developer shall, in the manner set out in the COCP:

   (a) maintain an individual with overall responsibility for implementing the COCP;

   (b) make the COCP part of each contractor's contract documents;

   (c) use reasonable endeavours to ensure that the same terms are set out in the terms of appointment of statutory undertakers and other utility providers;

   (d) form a community relations team;

   (e) procure the preparation of and make available and review as appropriate the CEMPs prepared in consultation with the Council;

   (f) prepare method statements setting out the way in which the objectives of the COCP and CEMP will be addressed in relation to particular tasks and in particular locations;

   (g) identify a focal point for the dissemination of information and handling of any complaints about construction issues and the administering of a helpline and website;

   (h) implement a public relations strategy;

   (i) set on site working hours and advance notification procedures for activities likely to generate high levels of noise that meet the objectives of the COCP and CEMP;

   (j) apply a good housekeeping standard to site layout and site appearance;

   (k) address site security and evacuation arrangements;

   (l) carry out works in such a way that inconvenience to the public arising from increases in traffic flows and the disruptive effects of construction traffic on local and main roads is limited;

(m) use best practicable means to control and limit noise and vibration levels so that residential properties and other sensitive receptors are protected from excessive or unnecessary noise and vibration levels arising from the construction activities;

(n) use best practicable means to minimise the emissions to air of pollutants (particularly dust, fine particles and nitrogen dioxide);

(o) carry out the works in such a way as to prevent, contain or limit, as far as reasonably practicable, any adverse impacts arising from the presence of contaminated material encountered during the construction activities;

(p) manage the disposal of waste, including surplus spoil, to maximise the environmental and development benefits from the use of surplus spoil and to minimise any adverse effects of disposal, as far as practicable, through the Control Measures specified;

(q) protect surface and groundwater from pollution and other adverse impacts including changes to water levels, flows and quality, through the Control Measures specified;

(r) contain disturbance to landscape and townscape;

(s) carry out construction works so as to ensure that disturbance to Camley Street Natural Park and Regent's Park is controlled and that appropriate measures are adopted to protect the ecology of these areas and avoid impacts on protected species;

(t) carry out construction works in such a way that any adverse impact on historic structures, surfaces, other Conservation Area features and areas of archaeological interest are limited;

(u) carry out construction works in such a way as to minimise any detrimental effects to the health of local residents, visitors to the area and construction workers, through the Control Measures specified;

(v) ensure the provision of information to local authorities and the wider public;

(w) consult with local residents and businesses particularly at the start of or during major civil and infrastructure works and where particular or local effects may be anticipated;

(x) implement the suggested approach to workforce opportunities consistent with the requirements of the Section of this Agreement addressing Employment and Training-Construction;

(y) report the results of the monitoring of noise and air quality, and of the effect of the COCP and CEMP, to the Construction Impacts Group for review.

4. The Developer shall resubmit an updated COCP to the Council for further approval no later than three (3) years from the Implementation date and thereafter once every five (5) years and once approval has been granted the Developer shall thereafter comply with the amended COCP and in relation to existing contracts shall use reasonable endeavours to procure compliance with the amended COCP.

5. The Developer shall pay to the Council the Environmental Health Officer Contribution in accordance with paragraphs 6 and 7.

6. Not to Implement or permit Implementation of the Development until such time as the Developer has paid to the Council £48,000 (forty eight thousand pounds).

7. The Developer shall make the further following payments:

(a) a further payment of £48,000 (forty eight thousand pounds) on the first anniversary of the date in which the payment in paragraph 6 properly fell due; and

(b) a further payment of £48,000 (forty eight thousand pounds) on the second anniversary of the date in which the payment in paragraph 6 properly fell due; and

(c) a further payment of £48,000 (forty eight thousand pounds) on the third anniversary of the date in which the payment in paragraph 6 properly fell due; and

(d) a further payment of £48,000 (forty eight thousand pounds) on the fourth anniversary of the date in which the payment in paragraph 6 properly fell due; and

(e) a further payment of £24,000 (twenty four thousand pounds) on the fifth anniversary of the date in which the payment in paragraph 6 properly fell due; and

(f) a further payment of £24,000 (twenty four thousand pounds) on the sixth anniversary of the date in which the payment in paragraph 6 properly fell due; and

(g) a further payment of £24,000 (twenty four thousand pounds) on the seventh anniversary of the date in which the payment in paragraph 6 properly fell due; and

(h) a further payment of £24,000 (twenty four thousand pounds) on the eighth anniversary of the date in which the payment in paragraph 6 properly fell due; and

(i) a final payment of £24,000 (twenty four thousand pounds) on the ninth anniversary of the date in which the payment in paragraph 6 properly fell due.

8. The Council shall ensure that the Environmental Health Officer provides the Developer with a dedicated single point of contact in relation to the implementation of the COCP and

related environmental health matters within the London Borough of Camden and shall use reasonable endeavours to procure the same in relation to the London Borough of Islington.

EE: Existing car parking rights and controlled parking zones

DEFINITIONS

"Camden CPZ Contribution"	:	The sum of £75,000 (seventy five thousand pounds)
"CPZ"	:	A controlled parking zone created to restrict the ability for those without a parking permit to park their vehicles within a defined street area during prescribed hours
"CTRL Act 1996"	:	The Channel Tunnel Rail Link Act 1996
CTRL St Pancras Station Site	:	The site shown shaded yellow on Plan [*]
"Islington CPZ Contribution"	:	The sum of £300,000 (three hundred thousand pounds)
"Islington CPZ"	:	The London Borough of Islington's controlled parking zones A B S (Thornhill) and D (Holloway West) shown on Plan [*]
"Multi Storey Car Park"	:	A car park provided on more than one level within Development Zone T

OBLIGATIONS

1. As a condition of the Implementation of the Development LCR hereby warrants and undertakes that it shall not build or permit to be built or at any time allow the use of more than 385 car parking spaces pursuant to the CTRL Act 1996 within the CTRL St Pancras Station Site.

2. No more than 150,000 square metres GEA of buildings in the Development shall be First Occupied until the Developer has paid to the Council the Camden CPZ Contribution.

3. No more than 150,000 square metres GEA of buildings in the Development shall be First Occupied until the Developer has paid to the Council the Islington CPZ Contribution.

4. The Council shall apply the Camden CPZ Contribution towards the proper costs (including costs already incurred) of consulting upon and implementing (if appropriate) a CPZ within the Development within three (3) years of receipt.

5. The Council shall apply the Islington CPZ Contribution towards the proper costs (including costs already incurred) of consulting upon and implementing (if appropriate) the variation of hours of operation of the Islington CPZ within three (3) years of receipt.

6. The Developer shall ensure that parts of King's Cross Central not yet developed are not used for parking for visitors or commuters unless otherwise agreed in writing with the Council.

7. [To support the early establishment within the Development of a successful cluster of retail (Classes A1-A5), leisure and visitor attraction (Classes D1 and D2) uses, the Developer may construct and utilise for operational, visitor and customer parking in relation to such uses up to 250 of the car parking spaces within the Multi Storey Car Park always provided that:

   (a) No part of the Multi Storey Car Park shall be brought into use until a management plan for that car park is submitted and approved under Condition 50 of the Planning Permission, the approved management plan to include hours of opening and other measures to ensure that the 250 car parking spaces referred to above are not used for commuter parking; and

   (b) upon the Completion Date the Development shall be constructed in accordance with Condition 49 of the Planning Permission.]

FF: GREEN TRAVEL INITIATIVES

DEFINITIONS

"Travel Plan" : The Green Travel Plan dated April 2004 annexed hereto at schedule [x] setting out a package of measures to be adopted with a view to :

(a) reducing the need for travel

(b) promoting and encouraging the use of sustainable modes of transport

(c) understanding how people travel to, from and with in the Kings Cross development as it develops over time

(d) improving the quality of travel information available to occupiers and their staff, residents and visitors

(e) developing initiatives in partnership with incoming businesses and residential communities

(f) promoting the Multi Storey Car Park for car storage as opposed to car use, establishing city car club facilities and marketing these facilities to car users

"Travel Plan Benchmark" : The benchmark against which any review of the Travel Plan will be assessed will be based upon a reasonable benchmark drawing upon a representative selection of those travel plans agreed in relation to permitted development within Camden over the twenty four (24) months prior to the review with the aim that the updated Travel Plan shall be up to date in its initiatives having regard to the objectives contained in those other plans

"Travel Co-ordinator" : An appropriately qualified and/or experienced individual appointed by the Developer to work with the Council, TfL and other appropriate bodies to deliver the objectives of the Travel Plan and in particular to :

(a) deliver travel plan initiatives across the Development, for example by playing an active role in organisations in the area and providing support and ideas on travel initiatives

(b) encourage new occupiers of the Development either to:

(i) adopt and comply with the Travel Plan insofar as it relates to their operations and premises; or

(ii) prepare their own travel plan with the

and in both cases establishing a mechanism for the dissemination of information to the occupier's own staff, visitors and other users of the occupiers' buildings

(c) establish, manage and facilitate the Bicycle User Group and provide a forum for users of the Bicycle User Group

(d) co-ordinate and provide to the Developer and the Council regular monitoring to confirm how effective the Travel Plan has been in meeting the objectives and to provide up to date travel pattern data

(e) monitor the travel behaviour of staff, companies and others within the Development (with their support)

(f) review existing data sources (for example pedestrian footfall counts, car park usage, automatic traffic counts)

(g) collect data for specific user groups, for example shopper surveys (which may include quantitative and attitudinal surveys)

(h) carry out or procure surveys focused on a particular Travel Plan measure or initiative, for example travel diaries for a sample of residents and web-based surveys of occupiers and their staff

(i) co-ordinate with other surveys of traffic patterns in the area, for example entry and exit counts at the mainline stations undertaken by the station operators.

(j) facilitate and monitor proposals for car sharing and for Car Clubs

(k) arrange the submission of an updated Travel Plan as required under paragraph 6 of this part with a view to securing an ongoing process of continuous improvement

"Bicycle User Group" : A bicycle user group to be open to any occupier, employee or resident of the Development and to provide a forum for those who regularly commute to work by cycle and/or use their bicycle during working hours to provide advice on tax incentives to cycling employees; cycling routes; discounts available within local cycle shops; new cycling facilities provided within the Development as they become available and safety

and maintenance.

"Camden Shopmobility Scheme" : The Council scheme to provide personal electric vehicles (PEV) and manual wheelchairs to local residents and visitors with mobility impairments with provision for storage premises alongside the city car club(s) at the Multi Storey Car Park

"City Car Club Scheme" : A scheme to provide cars available on short term hire to those living and working at and visiting King's Cross Central and which shall:

(a) identify the location and number of car parking spaces provided to run the car club;

(b) identify the mechanisms for ensuring that any car parking spaces provided for car club use are not used for other purposes

(c) ensure that the car club is operated in a manner that prevents any person being given anything other than short term use of the car

"Multi Storey Car Park" : A car park provided on more than one level within Development Zone T

"Estate Servicing Strategy" : A strategy for the management of the deliveries and servicing to the Development with the objective of reducing the number of servicing trips in peak hours to the Development which shall include, but not be limited to, consideration of and where practicable the adoption and promotion of the following:

(a) joint ordering systems

(b) provision of facilities to encourage internet shopping/home deliveries

(c) promoting co-ordinated deliveries

(d) estate-wide recycling schemes

(e) encouraging the use of low-emission vehicles

provision for monitoring and further review of servicing within and to the site and updating the servicing strategy at least every five (5) years to accord with then established practice for similar strategies in Camden and other similar boroughs in Central London

OBLIGATIONS

1. From First Occupation of the Development the Developer shall use reasonable endeavours to implement and thereafter secure compliance with the Travel Plan by undertaking steps including the following:

   (a) it will work with and after appointment will ensure that the Travel Co-ordinator works with occupiers and residents of buildings within the Development (or those contractually committed to so occupy or reside) to implement the Travel Plan

   (b) it will encourage and after appointment will work with the Travel Co-ordinator to encourage occupiers of the Development either (i) to prepare and implement their own travel plan which should be consistent with the Travel Plan as it relates to the building being occupied, or (ii) adopt and implement the Travel Plan as it relates to the building being occupied;

   (c) it will advertise and promote the measures to facilitate the Development's accessibility including through text being incorporated into brochures and other appropriate information relating to the Development and into publicity material as appropriate and by making copies of the Travel Plan available to occupiers and residents of the Development.

2. On or prior to first Occupation of the Development the Developer shall use reasonable endeavours to implement and thereafter comply with the Travel Plan in respect of its own site-wide services and operations by carrying out, but not limited to, the following steps:-

   (a) it will purchase and use appropriate low-emission vehicles for activities that cannot reasonably be performed using public transport

   (b) it will encourage walking through the provision of information on the best pedestrian routes to, from and within the Development

   (c) it will use reasonable endeavours to recruit locally

   (d) it will provide secure cycle parking, shower and changing facilities within any management offices

   (e) it will offer permanent staff interest free loans for bicycle and safety equipment purchases in accordance with its normal employment policy

   (f) it will offer permanent staff interest free annual season ticket/travel card loans for travel on buses the underground trains and trams in accordance with its normal employment policy.

3. The Developer shall use reasonable endeavours to promote, encourage and facilitate co-operation and action to influence the travel behaviour and choices made by businesses

and occupiers within the Development and to assist them implement their own travel plan by using mechanisms including the following:-

(a) through the provision of information and shared experience

(b) through the use of web-based information

(c) through the use of the Travel Co-ordinator

4. The Developer shall ensure that the Travel Plan is monitored and shall prepare a report for submission to the Council, in an agreed format, every two (2) years on the anniversary of First Occupation of the Development providing information on the implementation of the Travel Plan and the success achieved in achieving objectives.

5. The Developer shall ensure that the Travel Plan is reviewed to meet the Travel Plan Benchmarks and resubmit an updated Travel Plan to the Council for further approval no later than once every five (5) years from the date of the original Travel Plan and once approval has been granted the Developer shall thereafter use reasonable endeavours to implement and thereafter secure compliance with the updated Travel Plan by undertaking appropriate steps including those identified in paragraph 1.

6. From First Occupation of the Development the Developer shall use reasonable endeavours to ensure that all occupiers, employees, residents of and visitors to the Development are well informed about the travel choices and facilities available to and from the Development, including but not limited to the following:-

(a) no later than First Occupation for B1 purposes of more than 50,000 sq m GEA of floorspace the setting up and maintenance of web pages providing information (including links to real-time information) about means of travel to and from the Development

(b) the establishment of travel information points within the Development where occupiers, employees, residents of and visitors to the Development can access travel information.

7. No later than First Occupation for B1 purposes of 50,000 sq m GEA floorspace the Developer shall appoint or nominate and thereafter retain at its own expense the Travel Co-ordinator.

8. The Developer shall incorporate and maintain secure cycle parking within the Development, such cycle parking to be lit and to offer protection from the weather and which shall not be removed without the agreement of the Council.

9. The Developer shall use reasonable endeavours to incorporate access to and maintain cycle storage within the detailed design of all residential buildings within the Development and such facilities shall not be removed without the agreement of the Council.

10. The Developer shall incorporate and maintain public cycle parking within the Development having particular regard to the requirement for public cycle parking in the vicinity of buildings and community facilities and such facilities shall not be removed without the agreement of the Council.

11. the Developer shall use reasonable endeavours to:

    (a) facilitate the introduction of the Bicycle User Group ; and

    (b) support the ongoing functions of the Bicycle User Group including, without limitation, the provision of meeting space and administrative support (including web management)

12. The Developer shall provide incoming residents to the Development with a public transport welcome pack containing inter alia information on local bus routes and service patterns, train and underground information, cycle routes and facilities.

13. No later than the later of:

    (a) Practical Completion of 75,000 sq m GEA of B1 floorspace, and

    (b) Practical Completion of 750 residential units (excluding Student Housing)

    within the Development the Developer will use reasonable endeavours to facilitate:

        (i) the setting up of Car Club Scheme within the Development, which Car Club shall then be monitored in accordance with the submitted details

        (ii) the setting up of the extension within the Development of the Camden Shopmobility Scheme through the provision by the Developer of capital equipment/maintenance funding for the extension of the said Camden Shopmobility scheme provided that the Developer shall not be obliged to spend more than £10,000 per annum for ten (10) years from the later of the dates in (a) and (b) above

14. On or prior to the later of (i) Practical Completion of 75,000 sq m GEA of B1 floorspace, and (ii) Practical Completion of 750 residential units (excluding Student Housing) the Developer shall submit to the Council for its approval the Estate Servicing Strategy. Thereafter the Developer shall use reasonable endeavours working with site occupiers to implement the Estate Servicing Strategy as approved.

15. If the Developer has not submitted the Estate Servicing Strategy in accordance with paragraph 14 the Developer shall not carry out or permit to be carried out any further works of construction on Site until such time as the said Strategy has been submitted.

GG: Bicycle Storage Facility

DEFINITIONS

"Bicycle Storage Facility"	:	Accommodation of not less than 810 sq m GIA in the lower ground floor of Plot B1 as shown on Parameter Plan KXC005 Rev T for use as a public bicycle interchange/ storage facility
"Bicycle Storage Facility Lease"	:	A lease of the Bicycle Storage Facility between the Developer and TfL in accordance with the heads of terms annexed at Schedule [ ].

OBLIGATIONS

1. Subject to Clause 21 and TfL having served a Lease Acceptance, no more than fifty per cent (50%) of the B1 floorspace within Development Plot B1 shall be First Occupied until the Developer has Practically Completed the construction of the Bicycle Storage Facility to Shell and Core.

2. No later than 3 months following the Practical Completion of the building within Development Plot B1 the Developer shall grant the Bicycle Storage Facility Lease to TfL.

3. TfL shall provide and maintain within the Bicycle Storage Facility bicycle storage racks.

4. TfL shall fit out and operate the Bicycle Storage Facility to a standard commensurate with (i) the importance of the King's Cross/ St. Pancras interchange as one of the most important both in London and in the country and (ii) the importance of maintaining a high quality environment within this new urban quarter predicated on mixed-use, sustainable, high-density development.

HH: Improvements to Bus Services

DEFINITIONS

"Bus Shelters"		Bus shelters and associated road markings to serve the Route Improvements within the Development.
"Bus Stands"	:	Bus stands to be provided for four buses along access route T3 shown on drawing KCX007 Rev S, to support the Route 63 Improvements and Route 394 Improvements and other routes serving that part of the Development to the north of the Regent's Canal. Each bus stand to be 14 metres in length (if single stand for one bus) or 28 metres (if double stand for two buses).
"Driver Facilities"	:	Premises of not less than 38 square metres NIA provided to a Category A Finish providing mess room facilities for bus drivers to take rest breaks. The premises to include a mess room with fixed tables and chairs; a kitchen area with a stainless steel sink and drainer inset into a worktop with a cupboard under and ceramic tile splash back; a male toilet, a female toilet; and a cleaning cupboard. The location of the mess room to provide users with privacy from the public and allow in natural daylight.
"Net Costs"	:	the Gross Cost of a Route Improvement minus the additional revenue generated to the London bus network as a result of such Route Improvement, calculated in accordance with the Standard Revenue Calculation set out in Annex A to the TfL document "Route Sponsorship Agreements General Information for Developers and Planning Authorities"

		dated November 2005
"Route 214 Contribution"	:	The sum of £915,000 (nine hundred and fifteen thousand pounds) to be paid by the Developer to the Council, such sum being the full gross cost of the Route 214 Improvements for three (3) years.
"Route 214 Improvements"	:	Improvements within the "Camden and beyond" bus sector identified by TfL London Buses to convert the existing TfL bus route no 214 service to double-deck bus operation.
"Route 390 Contribution"	:	The sum of £1,620,000 (one million six hundred and twenty thousand) to be paid by the Developer to the Council, such sum being the full gross cost of the Route 390 Improvements for three (3) years.
"Route 390 Improvements"	:	Improvements within the "Islington north" and "West End and beyond" bus sectors identified by TfL London Buses to enhance bus frequencies on the TfL bus route no 390 including at least an additional 2 buses per hour in the am peak.
"Route 394 Contribution"	:	The sum of £1,215,000 (one million two hundred and fifteen thousand pounds) to be paid by the Developer to the Council, such sum being the full gross cost of the Route 394 Improvements for three (3) years.
"Route 394 Improvements"	:	Improvements within the "Islington Hackney and East" bus sector identified by London Buses to extend the TfL bus route no 394 into the site to serve the

		northern part of the Development on the basis of the same service pattern serving the rest of Route 394 during the 12 months leading up to the date that the first part of the Route 394 Contribution is paid.
"Route 63 Contribution"	:	The sum of £498,000 (four hundred and ninety eight thousand pounds) to be paid by the Developer to the Council, such sum being approximately half of the full gross cost of the Route 63 Improvements for three (3) years.
"Route 63 Improvements"	:	Improvements within the "City and south of Thames" bus sector identified by TfL London Buses to extend the existing route 63 into the site to serve the northern part of the Development on the basis of the same service pattern serving the rest of Route 63 during the 12 months leading up to the date that the first part of the Route 63 Contribution is paid.
"Route Contributions"	:	The combination of the Route 63 Contribution the Route 214 Contribution the Route 390 Contribution and the Route 394 Contribution
"Route Improvements"	:	The combination of the Route 63 Improvements the Route 214 Improvements the Route 390 Improvements and the Route 394 Improvements or any of them

IMPROVEMENTS TO BUS SERVICES

OBLIGATIONS

Route 390

1. The Developer shall pay the Council the Route 390 Contribution in accordance with paragraphs 2 and 3.

2. No more than 60,000sq m GEA of B1 office floorspace in the Development shall be First Occupied until the Developer has paid £540,000 (five hundred and forty thousand pounds).

3. The Developer shall make the further following payments

   (a) a further payment of £540,000 (five hundred and forty thousand pounds) on the first anniversary of the date on which the payment in paragraph 2 properly fell due; and

   (b) a final payment of £540,000 (five hundred and forty thousand pounds) on the second anniversary of the date on which the payment in paragraph 2 properly fell due.

Route 63

4. The Developer shall pay the Council the Route 63 Contribution in accordance with paragraphs 5 and 6:-

5. Prior to the later of:

   (a) 100,000 sq m GEA of floorspace for uses within the B1 (offices), C1 (hotels), A1 - A5 (shopping, food and drink) and D1 and D2 (community and leisure) Use Classes in buildings within the Development to the north of the Regent's Canal; and

   (b) 1,000 residential units (excluding Student Housing) within the Development to the north of the Regent's Canal

   the Developer shall pay to the Council the sum of £166,000 (one hundred and sixty six thousand pounds) and no more than 100,000 sq m of development or 1,000 residential units (whichever is the later to occur) shall be First Occupied unless the payment has been made.

6. The Developer shall make the following further payments

   (a) a further payment of £166,000 (one hundred and sixty six thousand) on the first anniversary of the date on which the payment in paragraph 5 properly fell due; and

(b) a final payment of £166,000 (one hundred and sixty six thousand) on the second anniversary of the date on which the payment in paragraph 5 properly fell due.

Route 394

7. The Developer shall pay the Council the Route 394 Contribution in accordance with paragraphs 8 and 9.

8. No more than 175,000 sq m GEA of floorspace for uses within the B1 (offices), C1 (hotels), A1 - A5 (shopping, food and drink) and D1 and D2 (community and leisure) Use Classes in buildings to the north of the Regent's Canal shall be First Occupied until the Developer has paid to the Council the sum of £405,000 (four hundred and five thousand pounds);

9. The Developer shall make the following further payments

(a) a further payment of £405,000 (four hundred and five thousand pounds) on the first anniversary of the date on which the payment in paragraph 8 properly fell due; and

(b) a final payment of £405,000 (four hundred and five thousand pounds) on the second anniversary of the date on which the payment in paragraph 8 properly fell due.

Route 214

10. The Developer shall pay the Council the Route 214 Contribution in accordance with paragraphs 11 and 12.

11. No more than 219,825 sq m GEA of floorspace to the south of the Regent's Canal (being 90% of the total of such floorspace) shall be First Occupied until £305,000 (three hundred and five thousand pounds) has been paid to the Council.

12. The Developer shall make the following further payments:

(a) a further payment of £305,000 (three hundred and five thousand pounds) on the first anniversary of the date on which the payment in paragraph 11 properly fell due; and

(b) the final payment of £305,000 (three hundred and five thousand pounds) on the second anniversary of the date on which the payment in paragraph 11 properly fell due.

Contributions towards Services

13. The Council and the Developer recognise that TfL has a duty to consult with the various persons and bodies listed in section 183 of the Greater London Authority Act 1999 before implementing any changes to bus services and that the results of such consultation may oblige TfL to seek the agreement of the Council to alternative service improvements in accordance with paragraph 19.

14. The Developer shall provide to the Council at least 6 months advance notice of the anticipated date that each of the first payments in paragraphs 2, 5, 8 and 11 is anticipated by the Developer to properly fall due.

15. The Council shall within one (1) month of receipt pay the Route Contributions to TfL. TfL shall following receipt of the Route Contributions apply them only towards the provision of the Route Improvements or otherwise in accordance with paragraph 19.

16. Following receipt of the sums paid under paragraphs 2, 5, 8 and 11 TfL shall use its reasonable endeavours to commence the relevant Route Improvements as soon as reasonably practicable and in any event within two years of the date of receipt. Following such commencement, TfL shall provide the relevant Route Improvements for a continuous period of not less than three (3) years.

17. Within 42 days following the third (3rd) anniversary of TfL commencing each of the Route Improvements, TfL shall submit to the Council and the Developer for agreement by the Developer an account of the actual Net Costs of the Route Improvements.

18. Following the agreement of such account by the Developer, if the Net Costs in the account are less than the Route Contributions then the sum representing the difference between the two shall be returned to the Developer within 2 months of approval of the account by the Developer.

Contributions towards other Services

19. TfL may apply the Route Contributions towards alternative bus service improvements provided that:

    (a) the Council has agreed and TfL has demonstrated to the Developer as part of the consultation required under sub-para (b) that the proposed alternative service improvements would deliver a level of transport capacity and functionality for the Development within the “Camden and beyond”, “Islington north”, “West End and beyond” “Islington Hackney and East” and “City and south of Thames” bus sectors which is at least equivalent to the Route Improvements specified in this Agreement;

    (b) at least 28 days before seeking the Council’s agreement to the proposed alternative service improvements TfL shall consult with the Developer and shall

provide to the Council a copy of any comments made as a result of such consultation and the Council shall give due regard to such comments in considering whether to agree to the proposed alternative service improvements; and

(c) TfL shall demonstrate and use reasonable endeavours to ensure that that the proposed alternative service improvements will not result in higher Net Costs than the Route Improvement specified in this Agreement.

Bus Stands

20. The Developer shall agree with the Council and TfL the design and location of the Bus Stands and shall provide such Bus Stands at the same time as completion of construction of route T3.

21. If the Developer has not provided the Bus Stands prior to TfL commencing the Route 63 Improvement or the Route 394 Improvement then the Developer shall agree with TfL the design and location of and shall provide temporary (interim) Bus Stands.

Driver Facilities

22. The Developer shall provide the Driver Facilities at the same time as completion of construction of Route T3.

Bus Shelters

23. The Developer shall agree with the Council and TfL the number, location and design of the Bus Shelters taking into TfL's accessible bus stop guidance [TfL to provide a proper document reference] and shall use reasonable endeavours erect such Bus Shelters in advance of the introduction of the relevant Route Improvement which they serve, always provided that TfL provides to the Developer at least 6 months advance notice of the anticipated commencement of the relevant Route Improvement.

24. At the request of the Developer TfL shall use its rights as a statutory undertaker under the General Permitted Development Order 1995 to construct the Bus Shelters at the Developer's expense or to allow the Developer to construct the Bus Shelters as TfL's agent on such terms as shall be agreed by the parties.

Use of Unadopted Roads

25. Where it has been agreed between the Developer and TfL that a Route Improvement requires the use of a road completed by the Developer but which has not been adopted by the Council, the Developer shall grant to TfL an easement or license to use such road for the provision of the relevant Route Improvement on such terms as shall be agreed by the Developer and TfL.

II: Cross River Tram

OBLIGATIONS

1. The Developer shall not, without TfL's consent (such consent to be provided in accordance with the Review Procedure), submit any details required for the following Development Zones and Principal Public Realm Areas under the Planning Permission and attached conditions that would prejudice the delivery of the Cross River Tram route, terminus location and emergency evacuation platform indicated on CRT drawing number 221214/58 Rev [P2] in accordance with the Spatial Parameters listed thereon:,

   (i) Development Zone A;

   (ii) Development Zone B Plot [X];

   (iii) Goods Way West (Landscape Proposals Plan LPP105 shows the broad disposition and layout);

   (iv) Canal Square (Landscape Proposals LPP105 shows the broad disposition and layout);

   (v) Goods Way East (Landscape Proposals Plan LPP105 shows the broad disposition and layout) including its junction with York Way;

   (vi) The Boulevard (Landscape Proposals Plan LPP103 shows the broad disposition and layout).

2. The Developer shall not require TfL's consent to submit details required under the Planning Permission and attached conditions (including but not limited to those required for the Development Zones and Principal Public Realm Areas in clause 1) that would not prejudice the delivery of the Cross River Tram route, terminus location and emergency evacuation platform indicated on CRT drawing number 221214/58 Rev [P2] by the Developer conforming in such submitted details to the Spatial Parameters listed thereon.

3. TfL and the Developer shall provide each other with the information and assistance as is reasonably required to assist the Developer in discharging its obligations under clause 1. The Parties shall seek to minimise any floor space loss that may arise from such accommodation of the Cross River Tram and its safe and efficient operation.

4. TfL shall work with the Developer and the Council with the intent of agreeing, prior to the Developer submitting its first set of details under the Planning Permission and attached conditions in relation to the Development Zone and Public Realm Areas identified in clause 1(i) to 1(vi), landscaping design guidelines for such areas, such guidelines to be in accordance with the Spatial Parameters listed on CRT drawing number 221214/58 Rev [P2] and consistent with TfL's technical requirements and world class terminus and public realm design, provided that the Developer shall not be precluded from submitting such details to the Council for approval if agreement has not been reached by the time of submission.

5. The Developer will not object at the Transport and Works Act stage to the principle of any of the Cross River Tram routes and options shown on Parameter Plan KXC019. The Developer will also not object to TfL's selected route shown in the TWA Application on the basis that in the Developer's view, better alternative routes are available provided that such selected route is consistent with CRT drawing number 221214/58 Rev [P2]) and/or Parameter Plan KXC019 provided that TfL has worked closely with the Developer and used its reasonable endeavours to reach final agreement on those details of TfL's selected route which have not been finally agreed between the Parties at the date of this Agreement. The Developer retains the legal right to make and pursue future third party representations at the Transport and Works Act stage on future detailed design matters.

JJ: Maiden Lane Station on North London Line

DEFINITIONS

"Maiden Lane Station Contribution" : The sum of £30,000 (thirty thousand pounds)

OBLIGATIONS

1. No later than three (3) months after the Implementation Date the Developer shall pay to the Council the Maiden Lane Station Contribution.

2. If the Maiden Lane Station Contribution has not be paid in accordance with paragraph 1 the Developer shall not carry out or permit to be carried out any further works of construction on the Site until such time as paragraph 1 has been complied with.

3. The Council shall apply the Maiden Lane Station Contribution towards a feasibility study into the provision of a new Maiden Lane Station on the North London line railway within three (3) years of receipt including the reimbursement or repayment of costs already properly incurred at the date of receipt of the contribution.

KK: Nightclubs and Casino

OBLIGATIONS

1. No more than 1,500 square metres GEA of floorspace within the Development Site shall be used as a casino.

2. There shall be no more than one casino within the Development Site at any one time.

3. No casino or nightclub use shall be commenced within any building unless the Council has approved the use of the building for that purpose pursuant to this paragraph following the submission by the Developer of the proposed location together with information on the impact of the proposed use in the proposed location addressing the matters specified at paragraph 5(a) and (b).

4. The Council shall respond to such submission within forty two (42) days of receipt in accordance with the Review Procedure:

5. In considering whether to approve a proposed use or location pursuant to paragraph 3 the Council shall be entitled to refuse approval if it has not been demonstrated to the reasonable satisfaction of the Council that :

   (a) the use of the proposed location will not materially and adversely impact the users or occupiers of existing or proposed buildings within the Development or then existing buildings in the vicinity of the Development ;

   (b) those accessing the proposed location for such use will not materially and adversely affect the users or occupiers of existing or proposed buildings within the Development or then existing buildings in the vicinity of the Development;

   provided that when deciding whether to approve a proposed use or location pursuant to paragraph 3 the Council shall recognise and accept that planning permission has been granted for casino and nightclub uses.

LL: Retail

DEFINITIONS

"Class A Floorspace"	:	Any floorspace for the uses set out in Class A1, A2, A3, A4 and A5 of the Town and Country Planning (Use Classes) Order 1987 as amended together with all other retail uses
"Retail Framework"	:	The details set out in Schedule [ ] entitled Retail Framework

OBLIGATIONS

1. No more than 45,925 sq m gross floorspace shall be built out or First Occupied within the Development for Class A Floorspace (less any Class A Floorspace built or First Occupied within the Triangle Site) of which:

   (a) no more than 32,500 sq m gross floorspace shall be for uses within Classes A1 and A2; and

   (b) no more than 15,000 sq m gross floorspace shall be for uses within Classes A3 to A5.

2. Save where the use, location and size of any unit of Class A Floorspace is consistent with the Retail Framework, as soon as practicable and in any event prior to First Occupation, the Developer shall submit the proposed use, location and size of such unit of Class A Floorspace for the Council's approval together with information addressing the matters specified at paragraph 4(a), (b) and (c).

3. The Council shall respond to such submission in accordance with the Review Procedure.

4. In considering whether to approve a proposed use and/or location pursuant to paragraph 2 the Council shall only be entitled to refuse approval if it has not been demonstrated to the Council's reasonable satisfaction that the mix and location of unit sizes and classes :

   (a) meets the needs of the phased development, its residents, workers and visitors;

   (b) delivers benefits to surrounding communities;

   (c) does not materially adversely affect residential amenity

provided that when deciding whether to approve a proposed use and/or location pursuant to paragraph 2 the Council shall recognise and accept that planning permission has been granted for the overall scale of Class A Floorspace and for its distribution into Development Zones as set out in Table 1 and Annex B attached to Condition 33 of the Planning Permission.

With respect to any matters that require the prior approval of the Council, the works thereby approved shall be carried out in accordance with that approval unless subsequently otherwise approved in writing by the Council.

5. The Developer shall have due regard to clauses 6.6 "*Meeting the Needs of Cinema Goers*" and 6.7 "*A Role for Cinema at Kings Cross Central"* of the King's Cross Central Retail Impact Assessment (March 2004) when bringing forward any proposal for a cinema within the Development.

SCHEDULE []

RETAIL FRAMEWORK

Zone/Plot	Obligation
General	
No more than 45,925 sq m GEA within the Development shall be first occupied for retail, financial services and food and drink uses within Classes A1 to A5 (less the Classes A1 to A4 floorspace permitted or constructed within the Triangle Site), unless otherwise approved in writing by the local planning authority.	
No more than 32,500 sq m GEA within the development shall be first occupied for uses within Classes A1 and A2, unless otherwise approved in writing by the local planning authority	
No more than 15,000 sq m GEA within the development shall be first occupied for uses within Classes A3, A4 and A5, unless otherwise approved in writing by the local planning authority.	
NB Condition 16 requires the submission of urban design reports addressing the Design Guidelines at Annex 1 to the conditions. Many of these are specifically concerned with the street scene at ground floor level (e.g. General 1).	
NB Condition 36 requires the development to be carried out in accordance with the individual development zone maxima set out in Annex B.	
NB Condition 57 states that there shall be no restriction on the hours of opening or use of any of the buildings within the development, unless otherwise specified by the local planning authority in Reserved Matters approval in response to the detailed disposition and relationship of uses in the buildings.	
South of Regent's Canal	
A1-A5	Use – At least sixty per cent (60%) of the total floorspace taken up for retail use within development plots A1 to A5 inclusive shall be first occupied for retail uses within Class A1, unless otherwise approved in writing by the Council. Unit Size – No more than three retail units shall each exceed 1,500 sqm GEA unless otherwise approved in writing by Council.
B2, B4, B5 and B6 fronting onto the Boulevard and Goods Way	Use – At least fifty per cent (50%) of the total floorspace taken up for retail use within development plots B2, B4, B5 and B6 and fronting onto the Boulevard and Goods Way shall be first occupied for uses within Class A1, unless otherwise approved in writing by the Council. Unit Size - No more than one retail unit to exceed 2,000sqm GEA unless otherwise approved in writing by Council.

B1, B2, B3, B4 and B5 fronting onto Pancras Square	Use – At least thirty per cent (30%) of the total floorspace taken up for retail use within development plots B1, B2, B3, B4 and B5 and fronting onto Pancras Square shall be first occupied for uses within Class A3, unless otherwise approved in writing by the Council.
	North of Regent's Canal
L (Granary Complex)	Use - No more than 4000sqm GEA of A1 supermarket floorspace unless otherwise approved in writing by the Council.
M (Coal Drops)	Use – At least twenty five per cent (25%) of the total floorspace taken up for retail use within development zone M shall be first occupied for uses within Class A1, unless otherwise approved in writing by the Council. Unit Size – No more than four retail units may each exceed 200 sq m and the total GEA of such retail units shall not together exceed 2,000 sq m. All other retail units shall not exceed 200 sq m GEA unless otherwise approved in writing by the Council.
P	Use - No units to be first occupied within Plot P1 for uses within Classes A4 and A5 unless and until the Council has approved in writing the size and location of such units, having regard to the need to protect residential amenity. Unit Size – No A3 unit shall exceed 250 sq m GIA unless otherwise approved in writing by the Council
R	Use – No units to be first occupied within Class A4 and A5 unless and until the Council has approved in writing the size and location of such units, having regard to the need to protect residential amenity. Unit Size – No A3 unit shall exceed 250 sq m GIA unless otherwise agreed in writing by the Council
S	Use – No units to be first occupied within Class A4 and A5 unless and until the Council has approved in writing the size and location of such units, having regard to the need to protect residential amenity. Unit Size – No A3 unit shall exceed 250 sq m GIA unless otherwise agreed in writing by the Council
T	Use – No units to be first occupied within Class A4 and A5 unless and until the Council has approved in writing the size and location of such units, having regard to the need to protect residential amenity. Unit Size – No A3 unit shall exceed 250 sq m GIA unless otherwise agreed in writing by the Council

HOUSING AND AFFORDABLE HOUSING

DEFINITIONS

"Affordable Housing"	:	Low cost housing provided to those households who cannot afford to occupy homes available in the open market comprising Social Rented Housing and Intermediate Housing
"Affordable Housing Transfer Price"	:	The minimum transfer price which shall apply to the transfer of all completed units of Affordable Housing from the Developer to an AHP in accordance with the Affordable Housing Transfer Prices table in Schedule NN subject to incremental increases linked to Index (TPI) up to the date of transfer and aggregate Affordable Housing Transfer Price means the overall price achieved across any tendered tranche of Affordable Housing.
"Affordable Housing Floorspace"	:	A minimum of 53,670 square metres GEA of Affordable Housing floorspace to deliver 42,936 square metres NIFA, such floorspace to provide 750 units of Affordable Housing under the Baseline Mix
"Affordable Housing Provider" ("AHP")	:	An organisation delivering Affordable Housing including a Registered Social Landlord and any other appropriate bodies that the Council has approved as meeting the following qualifying criteria: (i) It must be able to acquire funding from the Housing Corporation or its

		successor or other sources to pay the Affordable Housing Transfer Prices; (ii) it must be able to demonstrate excellence in estate management; (iii) it must be able to demonstrate excellence in tenant management.
Affordable Housing Units	:	The Social Rented units and the Intermediate Housing Units
"Baseline Mix"	:	The provision of the Affordable Housing Floorspace as 750 Affordable Housing Units within the Site in accordance with the Baseline Mix table in Schedule NN
"Child Density"	:	The density of child population (such children aged between nought and seventeen) within the Residential Units forming part of the Development, the projected calculation for the Baseline Mix being 23% in accordance with the Population and Child Yields table in Schedule NN .
"Delivered"	:	Either: (a) Practically Completed; or (b) Transferred to an AHP subject to a contract for the construction of the Affordable Housing within 24 months And "Delivery" shall be construed accordingly.
"Designated Account"	:	An account maintained by the Developer into which certain staircasing receipts from Shared Equity and certain Right to Buy Discounts shall be paid.
"Estate Management Charges"	:	The reasonable and proper costs incurred by the Developer in the estate management of the Development and attributable to Affordable Housing Units such costs to include (but not be limited to) provision of the following services:

		(a) Cleaning of the estate, including operations such as sweeping, mopping, jet-washing and de-greasing; (b) Litter picking; (c) Emptying of external litter bins; (d) Cleaning of compactor areas; (e) Repairs and maintenance (including planned preventative maintenance) within the estate including water features, railings, bollards, bins, lamp-posts, grilles, louvers and lanterns; (f) Checking and replacement of lamps; (g) Checking and cleaning of drains and gulleys; (h) Seasonal grounds maintenance including trees, grass and planters and weed control (i) Pest control; (j) Public safety warden patrols; (k) CCTV; and (l) Traffic management where required.
"General Needs Social Rented"	:	Social Rented housing available to meet housing needs of those unable to occupy homes available in the open market to be let at rents which are in accordance with Target Rents
"Government Right to Buy Scheme"	:	The Right to Buy Rules under Part V of the Housing Act 1985 as amended by the Housing Act 2004 and as described in 'Your Right to Buy your home: a guide for tenants of councils, new towns and registered social landlords including housing associations' published by the Office of the Deputy Prime Minister in

		March 2006
"Homebuy"	:	A form of Intermediate Housing to be provided by the Developer whereby a Homebuy Loan is offered to the purchaser towards the purchase of a Homebuy unit
"Homebuy Loan"	:	An interest-free loan from the Developer to the purchaser towards the purchase of a Homebuy unit on the following basis:- (a) in relation to the 37 units being 29x1-bed Homebuy units of 42 square metres NIFA and the 8x2-bed Homebuy units of 51 square metres NIFA the loan shall be 25% of the Open Market Value (b) in relation to the 13x2-bed Homebuy units of 61 square metres NIFA the loan shall be 30% of the Open Market Value
"Housing Delivery Plan":	:	A housing plan including details for each tranche of Residential Units which includes Affordable Housing Units brought forward by the Developer in the delivery of the Development to include the following information (subject to the specific requirements of (h)): (a) the details required under Condition 24 attached to the Planning Permission, such details being those set out in (b) to (g) below; (b) the number of units, size, dwelling and tenure mix; (c) the stage reached in the tendering/procurement of the Social Rented, Shared Ownership

		and Key Worker Sub-Market Rented units; (d) the confirmed or anticipated (as appropriate) dates for the start of construction and Practical Completion of the relevant units; (e) the confirmed or anticipated ownership and management arrangements for each tenure of the relevant Affordable Housing units; (f) the number, unit size and mix of Wheelchair Accessible Homes and their storey level; and (g) the quantity and type of private residential amenity space to be provided for the relevant units. (h) for each tranche of Residential Units after the first 1,000 Residential Units have been brought forward, an illustrative housing distribution plan which demonstrates that the mix of the Affordable Housing Units remaining to be brought forward within the Development can properly be delivered; (i) details of the design of the Affordable Housing Units with a view inter alia to show the following: (i) if the relevant tranche contains the provision of a lower percentage of Wheelchair Accessible Homes than required for the scheme as a whole, that the balance of Wheelchair Accessible Homes remaining to be brought forward within the

		Development can properly be delivered having regard to design considerations in relation to such balance of the Development (ii) that the Affordable Housing Units have been designed with the aim of keeping as low as reasonably practicable Service Charge costs to the Affordable Housing Units
"Intermediate Housing"	:	Affordable Housing which is not Social Rented Housing and which is made available at a discount from Market Housing to households who would not otherwise have been able to afford adequate housing on the open market
"Intermediate Housing Units"	:	The 250 units of Intermediate Housing comprised of the following:- (a) 30 Shared Ownership units; (b) 84 Key Worker Sub-Market Rented units; (c) 40 Shared Equity units; (d) 50 Homebuy units; and (e) 46 Right to Buy Homebuy units and such other forms of Intermediate Housing tenure as may be substituted subject to the Developer or AHP (as appropriate) demonstrating to the Council's satisfaction that the housing is similarly affordable
"Key Worker"	:	The categories of workers set out in the Key Worker Living Programme published by Housing Corporation dated April 2006 (as amended from time to time) and to include the following:- (a) all clinical NHS staff;

		(b) teachers in schools, further education and sixth form colleges; (c) police officers and community support officers; (d) uniformed staff in fire and rescue services; (e) prison and probation service staff; (f) social workers; (g) occupational therapists; (h) educational psychologists; (i) speech and language therapists; (j) qualified nursery nurses; (k) local authority employed clinical staff; (l) local authority planners; and (m) such other categories of workers as may from time to time be agreed in writing by the Council or the Regional Housing Board
"Key Worker Sub-Market Rented"	:	A form of Intermediate Housing available for rent to Key Workers at a rental price 20% below the Open Market Rent
"Local Lettings Plan"	:	A plan setting out a sensitive lettings policy for the lettings of Affordable Housing Units within the Development the underlying objectives of which shall be to: (a) establish and sustain a mixed, stable and sustainable community at the development; (b) foster a sense of ownership and community; (c) learn from the profile of successful high density developments that have matured over a number of years; and (d) facilitate effective management of the development
"Market Housing"	:	Residential Units within the Development

		(excluding Student Accommodation) which are not Affordable Housing
"NIFA"		The internal floor area of residential units including bedrooms, bathrooms, living and other rooms and internal divisions but excluding all shared/party walls between units and external walls or parts thereof.
"Offer Level Housing Register Applicants"	:	People on the housing register in LB Camden who have a sufficient level of points to enable them to be eligible for re-housing and likely to be able to secure accommodation.
"Open Market Rent"	:	The rent calculated in accordance with the definition of "Market Rent" at Practice Statement 3.4 of the Royal Institution of Chartered Surveyors Appraisal and Valuation Standards (5th Edition) or such amended definition as may replace it from time to time.
"Open Market Value"	:	A price to be calculated in accordance with the definition of "Market Value" at Practice Statement 3.2 of the Royal Institution of Chartered Surveyors Appraisal and Valuation Standards (5th Edition) or such amended definition as may replace it from time to time.
"Preferred AHP"	:	The AHP who best meets the Qualifying Terms and who is selected by the Developer to deliver the Affordable Housing Units (excepting and excluding the Shared Equity, Homebuy and Right to Buy Homebuy units)
"Qualifying Terms"	:	Terms for a contract for the transfer of Social Rented, Shared Ownership and Key Worker Sub Market Rented units such that the purchasing AHP: (a) commits to meet or exceed the aggregate Affordable Housing Transfer Price for completed

		units; (b) commits to complete the purchase within a reasonable period following exchange of contracts; (c) commits to enter into the appropriate nominations agreement that adheres to the Local Lettings Plan and complies with the Sustainable Estates Policy . (d) commits to deliver Affordable Housing within the relevant definitions as set out in this Agreement and complies with other relevant terms of this Agreement insofar as they affect the property being transferred (e) commits to meeting any qualifying terms included in any Housing Delivery Plan which has been approved at the time of the tender for that tranche of Affordable Housing.
“Registered Social Landlord”	:	A registered social landlord registered as such by the Housing Corporation under Section 1 of the Housing Act 1996 or under such statutory regime as may replace it from time to time and "RSL" shall be construed accordingly
“Residential Floorspace”	:	A minimum of 137,200 square metres GEA of residential floorspace including Affordable Housing and Market Housing (but excluding any Student Accommodation) to be used for purposes within Class C3 of the Use Classes Order
“Residential Units”	:	The 1,700 units of residential accommodation, including Market Housing and Affordable Housing (but excluding any Student Accommodation) to be provided

		on the Site as part of the Development for purposes within Class C3 of the Use Classes Order and the phrase "Residential Unit" shall be construed accordingly
"Right to Buy Homebuy"	:	A form of Intermediate Housing, to be delivered by the Developer to be made available to the existing tenants of Council owned housing who are eligible to purchase under the Government Right to Buy Scheme and to be offered to the purchaser by the Developer with a Right to Buy Homebuy Loan towards the purchase of a Right to Buy Homebuy unit.
"Right to Buy Discount"	:	The value of any right to buy discount referred to in clause 6.1 not taken up. The value of the discount shall be a proportion of the maximum discount available (£16,000 (subject to incremental increases linked to Index (TPI))), such proportion to be agreed by reference to the average discount exercised on right to buy sales within LB Camden under the Government Right to Buy Scheme, during the previous 2 years.
"Right to Buy Homebuy Loan"	:	An interest-free loan from the Developer to the purchaser towards the purchase of a Right to Buy Homebuy unit on the following basis: (a) in relation to the 26x1-bed Right to Buy Homebuy units of 42 square metres NIFA and the 8x2-bed Right to Buy Homebuy units of 51 square metres NIFA the loan shall be 25% of the Open Market Value (b) in relation to 12x2-bed Right to Buy Homebuy units of 61 square metres NIFA the loan shall be 30%

		of the Open Market Value
"Service Charges"	:	The reasonable and proper costs incurred by the Developer and/or AHP in the maintenance management and upkeep of the common areas and general fabric of the buildings containing Affordable Housing within the Development
"Shared Equity"	:	A form of Intermediate Housing, to be delivered by the Developer on the following terms: (a) a minimum average equity element of 60% across all first sales of shared equity units delivered; (b) a minimum equity element of 30% on any first sale and a maximum equity element of 80% on any first sale; and (c) after a period of 5 years, commencing from first sale of the unit, occupiers will have the right to staircase up to 100% of the equity.
"Shared Ownership"	:	a form of Intermediate Housing provided on a part equity (ie owned) part rented basis on the following terms: (a) a minimum average equity element of 50% across all first sales of shared ownership units delivered; (b) a minimum equity element of 25% on any first sale and a maximum equity element of 75% on any first sale; (c) occupiers will have the right to staircase up to 100% of the equity.

"Social Rented"	:	Affordable Housing including General Needs Social Rented and Specialist Social Rented to meet the housing needs of those eligible for nomination through the Council's housing allocation scheme (with provision for sub-regional arrangements as appropriate) available at Target Rents
"Social Rented Floorspace"	:	A minimum of 41,175 square metres GEA of Social Rented Housing floorspace, to deliver 32,940 square metres NIFA, such floorspace to provide 500 units of Social Rented Housing under the Baseline Mix, of which 412 units will be General Needs Social Rented and 88 units will be Specialist Social Rented
"Specialist Social Rented"	:	Accommodation for frail elderly persons who require on-site attendance of support staff to be available for their everyday needs let at rents which are in accordance with Target Rents
"Student Accommodation"		The 650 units of accommodation comprising 150 studio flats and 500 "cluster" flats to be specified in accordance with Condition 40 of the Planning Permission and used primarily by Students in accordance with Condition 41 of the Planning Permission.
"Sustainable Estates Policy"	:	A policy adopted by the Council in the management of certain housing within the borough of the nature adopted at Maiden Lane, Durdans House, King's Cross

		including Flaxman Court, 25 Gresse Street and 38-40 Grafton Way and other estates to enable the achievement of a balanced and stable mix of residents
"Target Rents"	:	Rents calculated in accordance with the formula set out in the Guide to Social Rent Reforms in the Local Authority Sector published by the Department of the Environment, Transport and the Regions in March 2001 or such amended formula published by the Government from time to time
"Use Classes Order"	:	The Town and Country Planning (Use Classes) Order 1987 as amended
"Wheelchair Accessible Homes":	:	Housing that: (a) meets the minimum requirements of the Wheelchair Housing Design Guide 1997 published by the National Wheelchair Housing Association Group (NATWHAG) and as amended from time to time as set out in Appendix 5 of the GLA Supplementary Planning Guidance "Accessible London: achieving an inclusive environment" dated April 2004 as amended from time to time; or (b) is easily adaptable at a reasonable cost for residents who are wheelchair users.

HOUSING AND AFFORDABLE HOUSING

OBLIGATIONS

1. **Delivery of Affordable Housing**

1.1 Subject to paragraph 2.3 which provides for agreed variation to the Baseline Mix and unless otherwise agreed in writing with the Council, the Developer shall deliver the Affordable Housing Floorspace as follows:-

(a) no more than 125 Market Housing units shall be occupied until construction contracts have been placed for 100 Affordable Housing Units;

(b) no more than 280 Market Housing units shall be occupied until at least 220 Affordable Housing Units have been Delivered;

(c) of the 220 Affordable Housing Units referred to in (b) above at least 110 units shall be Social Rented units;

(d) of the 110 Social Rented units referred to in (c) above at least 35 units shall be three or four bedroom family units;

(e) no more than 560 Market Housing units shall be occupied until at least 440 Affordable Housing Units have been [Delivered];

(f) of the 440 Affordable Housing Units referred to in (e) above, 220 shall be Social Rented units and 220 shall be Intermediate Housing Units;

(g) of the 220 Intermediate Housing Units referred to in (f) above 40 shall be Shared Equity units; and

(h) no more than 1,625 Residential Units shall be occupied until at least 675 Affordable Housing Units have been Delivered

1.2 Subject to paragraph 2.3 which provides for agreed variation to the Baseline Mix, no more than 1,400 Residential Units shall be occupied until the Developer and the Council have agreed a mechanism to ensure the Delivery of the final 75 Affordable Housing Units under the Baseline Mix.

2. **Baseline mix**

2.1 Subject to paragraph 2.3 the Developer shall provide the Affordable Housing Floorspace in accordance with the Baseline Mix.

2.2 Following the third anniversary of the date of this Agreement and thereafter at intervals of not less than 12 months the Council may provide to the Developer a housing statement, such statement to:

(a) identify any proposed variation of the Baseline Mix Social Housing provision within the Social Rented Floorspace of 32,940 square metres NIFA (to the extent that such floorspace is not already provided or the subject of an ongoing procurement/tendering process); and

(b) identify whether there is likely to be a need for Specialist Social Rented units and whether the capital and revenue funding for such housing is likely to be in place.

2.3 The Developer and the Council shall both use reasonable endeavours to agree any variation to the Baseline Mix and the consequential amendments to the thresholds in clause 1.1, always provided that any agreed variation must meet the following criteria:

(a) the variation achieves a mix of unit sizes preferred by the Council;

(b) the variation is consistent with the funding priorities of the Housing Corporation (or its successor), such that eligibility for Housing Corporation grant will not be affected;

(c) the variation is consistent with the projected Child Density calculation not exceeding 23%;

(d) the number of Social Rented units will not exceed 500; and

(e) the variation will not lead to a material reduction in the ratio between net internal floorspace and gross external floorspace compared with the Baseline Mix.

3. **Location/distribution and retention of affordable housing**

3.1 Affordable Housing Units will be located within at least three of the following Development Zones; J, P, R, S and T.

3.2 Subject to the terms of this Agreement, the Affordable Housing Units shall be used, occupied and retained for the purpose of providing Affordable Housing.

4. **Housing Delivery Plan**

4.1 For each tranche of Affordable Housing Units, the Developer shall submit a Housing Delivery Plan to the Council as part of but also amplifying the submission made in accordance with Condition 24 of the Planning Permission a response to such submission to be made in accordance with the Review Procedure.

4.2 The Developer shall deliver each tranche of Affordable Housing Units in accordance with the approved Housing Delivery Plan and the terms of this Agreement.

5. **Homebuy Units**

5.1 The Developer shall ensure that the Homebuy units are made available on the following terms:

(a) a Homebuy Loan shall be made available to the purchaser of a Homebuy unit;

(b) the Homebuy Loan will be repayable in full on sale of the Homebuy unit or earlier if chosen by the purchaser;

(c) the amount to be repaid is to be the same percentage of the sale price as the original Homebuy Loan was as a percentage of the purchase price, always provided that the sale price reflects the Open Market Value of the unit at the time of sale;

(d) if the purchaser chooses earlier repayment, the amount to be repaid will be the same percentage of the Open Market Value of the unit at the time of repayment as the original Homebuy Loan was as a percentage of the purchase price, always provided that the sale price reflects the Open Market Value of the unit at the time of sale; and

(e) For the avoidance of doubt following repayment of the Homebuy Loan, the housing product shall no longer be subject to any Affordable Housing obligations referred to under Section NN of this Agreement.

5.2 The Developer shall ensure that the Homebuy units are made available to purchasers in the following priority order, always provided that the Council complies with clause 8:

(a) Existing local authority or RSL tenants within Camden who are Key Workers employed in London;

(b) Existing local authority or RSL tenants within Camden;

(c) Offer Level Housing Register Applicants;

(d) Key Workers employed within Camden;

(e) Key Workers employed outside Camden but with a local connection to the Borough as defined within the Council's Homelessness Code of Guidance;

(f) Other Key Workers employed in London; and

(g) Other households requiring such accommodation who would not otherwise be able to afford adequate housing generally available on the open market.

6. **Right to Buy Homebuy Units**

6.1 The Developer shall ensure that the Right to Buy Homebuy units are made available to tenants of LB Camden owned housing who are eligible for right to buy under the Government Right to Buy Scheme on the following terms:

(a) Eligible purchasers will be given a discount from the purchase price equivalent to their right to buy discount under the Government Right to Buy Scheme, up to a maximum of £16,000 (subject to incremental increases linked to Index (TPI)). The discount is subject to repayment until the end of the discount payment period on terms that mirror those in place under the Government Right to Buy Scheme;

(b) a Right to Buy Homebuy Loan shall be made available to the purchaser of a Right to Buy Homebuy unit;

(c) the Right to Buy Homebuy Loan will be repayable in full on sale of the Right to Buy Homebuy unit or earlier if chosen by the purchaser;

(d) the amount to be repaid is to be the same percentage of the sale price as the original Right to Buy Homebuy Loan was as a percentage of the purchase price, always provided that the sale price reflects the Open Market Value of the unit at the time of sale;

(e) if the purchaser chooses earlier repayment, the amount to be repaid will be the same percentage of the Open Market Value of the unit at the time of repayment as the original Right to Buy Homebuy Loan was as a percentage of the purchase price, always provided that the sale price reflects the Open Market Value of the unit at the time of sale; and

(f) For the avoidance of doubt following repayment of the Right to Buy Homebuy Loan, the housing product shall no longer be subject to any Affordable Housing obligations referred to under Section NN of this Agreement.

6.2 The Developer having started construction of any Right to Buy Homebuy unit shall market the unit for six months exclusively for occupation as a Right to Buy Homebuy unit always ensuring that at least three months of marketing shall be by reference to a completed show flat on the Site and shall use reasonable endeavours to publicise the availability of the unit to eligible purchasers, such purchasers being tenants of LB Camden owned housing who are eligible for right to buy under the Government Right to Buy Scheme.

6.3 If at the end of the six months period specified in clause 6.2 the Developer has not secured a purchaser for the Right to Buy Homebuy unit (and can, if requested, provide evidence that it has used reasonable endeavours to publicise the availability of the unit to

eligible purchasers) then the Right to Buy Homebuy unit may be marketed on the same terms as Homebuy units.

7. **Shared Equity Units**

7.1 The Developer shall ensure that the Shared Equity units are made available to purchasers in the following priority order, always provided that the Council complies with clause 8:

(a) Existing local authority or RSL tenants within Camden who are Key Workers employed in London;

(b) Existing local authority or RSL tenants within Camden;

(c) Offer Level Housing Register Applicants;

(d) Key Workers employed within Camden;

(e) Key Workers employed outside Camden but with a local connection to the Borough as defined within the Council's Homelessness Code of Guidance;

(f) Other Key Workers employed in London; and

(g) Other households requiring such accommodation who would not otherwise be able to afford adequate housing generally available on the open market.

8. **Marketing of Intermediate Housing**

8.1 The Council will use reasonable endeavours to assist the Developer and any AHP in marketing and where appropriate promoting the availability of Intermediate Housing to its existing tenants, such reasonable endeavours to include (but not be limited to) the provision of appropriate non-sensitive data on households in housing need utilising information from the Council’s own waiting list and any data held at the Sub-Regional Level.

9. **Shared Equity Staircasing receipts**

9.1 The Developer shall ensure that none of the Shared Equity units are staircased to 100% before the expiry of a period being five years from First Occupation of each Shared Equity unit.

9.2 For each tranche of Shared Equity housing delivered within the Development, until the date which is 15 years following the First Occupation of any Shared Equity unit within that tranche, the Developer shall deposit all receipts from staircasing payments into the Designated Account which shall only be drawn upon for the purposes of improving the

affordability of other Intermediate Housing Units delivered by the Developer as part of the Development.

9.3 The Developer will use reasonable endeavours to use the monies in the Designated Account in priority order to:

(a) reduce the minimum average equity share required to be achieved at first sale of any subsequent tranches of Shared Equity units; and

(b) provide interest free loans greater than 25% of Open Market Value on any subsequent tranches of Affordable Housing containing Homebuy units or Right to Buy Homebuy units.

9.4 If at any time prior to the end of 15 years from First Occupation it appears that the Developer will not be able to use the monies in the Designated Account for purposes under (a) or (b) above it will use reasonable endeavours to agree with the Council a mechanism for using the sums to make the Affordable Housing products more affordable.

9.5 For each tranche of housing delivered within the Development, following the date which is 15 years following the date of First Occupation of any Shared Equity unit within that tranche:

(a) the Developer shall not be required to deposit receipts from staircasing payments and may retain these proceeds as capital receipts from the Development;

(b) the Developer may treat monies within the Designated Account that were received in relation to the applicable tranche as capital receipts from the Development always provided that it has shown to the Council's reasonable satisfaction that it has used reasonable endeavours to fulfil its obligations under clause 9.3 of this Agreement; and

(c) the Developer shall have a right of pre-emption to purchase, at Open Market Value, any equity in Shared Equity units within the completed Development, that is offered for sale by third parties and then sell those units as Market Housing units at 100% Open Market Value, with no further Affordable Housing restrictions.

10. **Homebuy Right to Buy Discount**

10.1 If the Right to Buy Homebuy units are used as Homebuy units in accordance with clause 6.3 of this Agreement, the Right to Buy Discounts shall be paid into the Designated Account and utilised in accordance with clause 9.3 of this Agreement.

11. **Specialist Social Rented**

11.1 In considering whether to include Specialist Social Rented units within a particular tranche which includes Affordable Housing Units, the Developer shall pay due regard to the Council's housing statements provided in accordance with clause 2.2.

11.2 Where the Specialist Social Rented units are intended to be included as part of an Affordable Housing tranche the Developer shall notify the Council at least 14 weeks prior to the date of issuing an invitation to tender under clause 19 or at least 14 weeks prior to entering into a contract under clause 23. Within 12 weeks of receiving this notification the Council shall confirm to the Developer whether there is a need for this type of housing within the Development and whether capital and revenue funding is likely to be in place. If the Council notifies the Developer that there is no such need and/or that such funding is not likely to be available the provisions in clause 11.3 shall apply.

11.3 In the circumstances set out in clause 11.2 the Council may as part of its notification under clause 11.2 propose for the approval of the Developer the replacement provision of the 88 units or the equivalent floorspace (4,224 square metres NIFA) (to the extent that such floorspace and units are not already provided or the subject of an ongoing procurement/tendering process) from a combination of the following options:

(a) the provision of a lesser number of Specialist Social Rented units and the provision of additional 1-bed General Needs Social Rented units; or

(b) the provision of an alternative mix of additional General Needs Social Rented units; or

(c) the use of the equivalent floorspace by increasing the size of other General Needs Social Rented units.

11.4 The Developer and the Council shall both use reasonable endeavours to agree the replacement provision under clause 11.3 of this Agreement, always provided that any agreed variation should meet the criteria specified at clause 2.3.

12. **Wheelchair Accessible Homes**

12.1 Subject to paragraph 12.2 the Developer shall provide 10% of the Social Rented units as Wheelchair Accessible Homes.

12.2 The Council will agree to a reduction in the percentage of Wheelchair Accessible Homes referred to in paragraph 12.1 if the Developer can demonstrate to the Council's reasonable satisfaction that:

(a) the lower percentage would meet the need for those units within the Borough at the time of delivery: or

(b) the relevant funding, design and other delivery mechanisms justify a lower percentage.

12.3 The Social Rented Wheelchair Accessible Homes shall be provided and accommodated within the Social Rented Floorspace of 32,940 sq m NIFA.

12.4 The Developer shall provide up to 10% of Market Housing and Intermediate Housing as Wheelchair Accessible Homes, the percentage to be derived from appropriate professionally undertaken local research into the likely take-up of such units within the Borough and consideration of the relevant funding, design and other delivery mechanisms such research to be undertaken to the reasonable satisfaction of the Council.

12.5 The Council will agree to a percentage of Wheelchair Accessible Homes referred to in paragraph 12.4 lower than 10% in circumstances where:

(a) the research referred to in clause 12.4 shows that the lower percentage would meet the likely take-up of such units within the Borough at the time of delivery; or

(b) the Developer can demonstrate to the Council's reasonable satisfaction that the relevant funding, design and other delivery mechanisms justify a lower percentage.

12.6 The Developer may provide Wheelchair Accessible Homes on upper floors provided that there is suitable lift access and the internal floor arrangements can accommodate wheelchairs/disabled persons.

13. **Car parking**

13.1 Car parking will be provided for Affordable Housing Units as follows:

(a) **Social Rented housing**: such that, taking account of the parking made available for Social Rented Wheelchair Accessible Homes the average car parking space ratio is 0.25 space per unit. Prioritisation shall be given to the Wheelchair Accessible Homes and also larger (3 and 4 bedroom) units; and

(b) **Intermediate Housing**: such that, taking account of the parking made available for Intermediate Housing Wheelchair Accessible Homes the average car parking space ratio is 0.335 space per unit overall. Studio units (25 sq m net) shall not have the benefit of car parking spaces and prioritisation shall be given to the Wheelchair Accessible Homes.

14. **Design and Delivery**

14.1 Shared Ownership, Social Rented and Key Worker Sub-Market Rented units will be provided in accordance with the Housing Corporation Scheme Development Standards

(or its replacement) as amended from time to time unless the Developer can demonstrate to the Council's reasonable satisfaction that no Housing Corporation Grant is required.

14.2 The Developer will design Affordable Housing Units in accordance with the requirements of this Agreement so that there is no significant difference between buildings of different tenures in terms of their generic design quality and workmanship with respect to the external envelope of such buildings always provided this will not limit:

(a) the Developer's scope to utilise external cladding materials for Affordable Housing Units commensurate with (i) the Transfer Prices at Schedule [NN] and (ii) the aim of keeping Service Charges affordable. The parties acknowledge that as an example there is scope for the Developer to utilise a higher solid:glazing ratio on Affordable Housing Units than marketing housing; and

(b) the Developer's scope to incorporate diversity in the design of the Residential Units at the Development in order to create a desirable urban environment.

14.3 The Developer shall carry out all works of construction, conversion and fitting out in a good and workmanlike manner using good quality materials to make the Affordable Housing Units suitable for occupation as Affordable Housing.

15. **Local Lettings Plan**

15.1 Lettings of Social Rented and Shared Ownership units within the Site will be subject to the operation of the Local Lettings Plan which shall set out how the Council's housing allocation scheme shall apply within the Development.

15.2 The Local Lettings Plan will prioritise those living in LB Camden wards located in the CIZ and thereafter shall apply to those living within the WIZ and thereafter borough-wide allowing for any sub-regional arrangements which may apply from time to time.

15.3 The Developer and the Council shall prepare jointly the first Local Lettings Plan and shall both use reasonable endeavours to agree its contents in consultation with any relevant AHP(s) before the Developer first commences the tendering/procurement process described in clause 19 .

15.4 The Local Lettings Plan will be reviewed thereafter at least every two years from the First Occupation of any Social Rented unit in the Development. The updated Plan shall be subject to the approval of the Developer, the Council and the relevant AHPs in order to achieve the underlying objectives of the Local Lettings Plan.

15.5 The first Local Lettings Plan and subsequent reviews will take into account inter alia the characteristics of the existing community and will be used to inform future lettings.

15.6 The issues that will be addressed within the first Local Lettings Plan and thereafter at each review will include:

(a) the need to achieve a balanced mix of incomes across all forms of Affordable Housing tenure and, to the extent it is appropriate to do so in order to achieve (b) to (g) below, within all forms of Affordable Housing tenure;

(b) the benefit of local connections: to include, wherever possible, households with local family or employment links;

(c) the contribution to community: to include, wherever possible, households that make an active contribution to community life always provided that any household who satisfies this criteria should not automatically take priority over a person and/or household in housing need;

(d) household characteristics: for example achieving a sustainable age profile having regard to occupancy levels and a balanced mix of household vulnerability;

(e) child density: Child Density within such a high density urban environment should not exceed 23% overall (excluding the student population) provided that meeting this criteria should not automatically take priority over a person and/or household in housing need;

(f) tenancy history: the attraction of households with a history of successfully maintaining a tenancy with no serious breaches normally within a two year period (or a longer time period if reasonably justified by the AHP) prior to the proposed Occupation date.

(g) prioritisation criteria to reflect the above, to encourage longevity of tenancies and to ensure households with specific needs are appropriately supported.

15.7 In recognition of the high density characteristics of the Development the provisions of the Local Lettings Plan shall reflect the Council's Sustainable Estates Policy and the importance of ensuring effective, proactive management.

15.8 The Council will use reasonable endeavours to afford the Development sustainable estate status under the Sustainable Estates Policy before the Developer first commences the tendering/procurement process described in clause 19.

16. **Service Charges**

16.1 Occupants of Affordable Housing Units shall be liable to pay Service Charges.

16.2 The Developer shall design buildings containing Affordable Housing in consultation with the relevant AHP (if applicable).

16.3 The Developer shall use reasonable endeavours to keep the Service Charges for Affordable Housing Units as low as reasonably practicable.

16.4 Subject to having complied with meeting the requirements of clause 16.3 the actual level of Service Charges shall be at the discretion of the Developer or AHP as appropriate.

17. **Estate Management Charges**

17.1 Occupants of Affordable Housing Units shall be liable to pay Estate Management Charges.

17.2 The Developer will use reasonable endeavours to keep the Estate Management Charges for Affordable Housing Units as low as reasonably practicable.

17.3 Estate Management Charges will only be payable by occupants of Social Rented and Key Worker Sub-Market Rented units on the following basis:

(a) Occupiers of the Social Rented units and Key Worker Sub-Market Rented units shall pay Estate Management Charges for estate management services provided within Development Zones R and S including streets S1-S4 and R1-R4 and within Cubitt Park, Handyside Park, York Square, North Square, Goods Street, Canal Street and York Street, provided that Estate Management Charges shall only be paid in respect of such areas that have been Practically Completed;

(b) Subject to the requirements of paragraph 17.4 below, occupiers of the Social Rented units and Key Worker sub-Market Rented units shall pay Estate Management Charges that represent a proportion of the costs properly incurred in the estate management of such areas. The proportion shall be calculated each year as follows:

The floorspace (GEA) of Social Rented and Key Worker Sub-Market Rented units that is Practically Completed / The total floorspace (GEA) to the north of the Regent's Canal that is Practically Completed.

(c) Occupiers of the Social Rented units and Key Worker Sub-Market Rented units shall not pay Estate Management Charges for estate management services provided elsewhere within the Site;

17.4 The Estate Management Charges paid by occupiers of the Social Rented units and Key Worker Sub-Market Rented units shall be benchmarked against and not exceed the estate management charges at mature and comparable estates in Central London.

17.5 The Developer shall provide to the Council for agreement details of the first Estate Management Charges in respect of the units referred to in paragraph 17.4 at least 3 months before any costs are levied, a response to such submission to be made in

accordance with the Review Procedure. Any subsequent increases shall be notified to the Council at least 3 months before any increased charges are levied and if the Council disputes such increase it shall forthwith provide to the Developer benchmarking information as set out in paragraph 17.4. In the event of a dispute in relation to the initial costs or a continuing dispute in relation to any increase in those costs, it will be determined in accordance with clause 16 [in Part 1] and the disputed element of any increase shall not be charged until the level has been either agreed or determined in accordance with clause 16.

18. **Affordable Housing Transfer Prices and Charges**

18.1 The parties acknowledge that the Affordable Housing Transfer Prices include the provision by the Developer of private residential amenity space for the Affordable Housing Units within the relevant Development Plot.

18.2 The Parties acknowledge that the Affordable Housing Transfer Prices do not include the provision by the Developer of kitchen "white goods" appliances and the Developer shall not be required to provide such appliances.

18.3 The Developer can amend any Affordable Housing Transfer Price to cover the additional reasonable and properly incurred costs incurred:

(a) in the provision of the Wheelchair Accessible Homes compared to the costs of General Needs Social Rented units;

(b) in the provision of Specialist Social Rented units compared to the costs of General Needs Social Rented units;

(c) in the provision of noise isolation or other building engineering solutions to secure the Council's approval of groundborne noise levels in accordance with Condition 61 of the Planning Permission; and

(d) as a result of accommodating changes in Housing Corporation Scheme Development Standards.

18.4 The Transfer Price for each car parking space provided for Social Rented Housing units, Shared Ownership units and Key Worker Sub Market Rented units in accordance with clause 13 and transferred with those units to an AHP shall be £10,000, as identified in the Schedule NN.

19. **Tendering/Procurement of Affordable Housing Units**

19.1 The Developer shall tender the Affordable Housing Units (excepting and excluding the Shared Equity, Homebuy and Right to Buy Homebuy units) in tranches for transfer to an

AHP on the Qualifying Terms. Where practicable, the Developer shall undertake the tender process before the relevant submission of Reserved Matters.

19.2 No later than two weeks prior to issuing an invitation to tender for any Affordable Housing Units the Developer shall provide to the Council a list of AHPs to be invited to tender for the Affordable Housing Units, such list to include all Registered Social Landlords on the Council's approved list and other AHPs nominated by the Developer.

19.3 The Developer shall issue the invitation to tender to such of the AHPs referred to in clause 19.2 as the Developer deems appropriate, provided that it must be issued to all Registered Social Landlords on the Council's approved list, with a requirement that the response to the invitation to tender must be received by the Developer within 3 weeks of the invitation to tender being issued.

19.4 Following receipt of replies to the invitation to tender, the Developer shall:

(a) provide the Council with the list of AHPs to whom it is intended the final tender documentation will be sent;

(b) issue the final tender documentation to all AHPs who replied to the invitation to tender requesting tender documentation and to any other AHP(s) at the Developer's discretion; and

(c) ensure that the final tender documentation shall instruct AHPs to prepare tenders on the basis that the total rental level across all Shared Ownership units within that tranche should not exceed 2 per cent per annum of the Open Market Value of the retained (unsold) equity.

19.5 The Developer shall ensure that the AHPs will have at least two months from the date of issuing the final tender documentation to respond and submit its tender to the Developer or its nominated agent before the tender submission deadline.

19.6 No more than two months following the tender submission deadline the Developer shall:

(a) review the tender submissions to identify whether any meet the Qualifying Terms; and

(b) select a Preferred AHP from those tender submissions which meet the Qualifying Terms ("Qualifying Offer") (if any).

19.7 If and only if none of the tender submissions meet the Qualifying Terms the Developer may trigger the first stage of the cascade mechanism in accordance with the terms of this Agreement.

20. **First stage of the cascade mechanism**

20.1 If and only if paragraph 19.7 hereof applies the Developer shall, in full consultation with the Council:

(a) negotiate with one or more of the AHPs that submitted a tender with the aim of delivering the relevant Affordable Housing Units on terms as close as possible to the original Qualifying Terms, provided that the aggregate Affordable Housing Transfer Price for the units is achieved; or

(b) invite the AHPs who received the final tender documentation to submit revised tender submissions within 1 month of such invitation, on terms as close as possible to the original Qualifying Terms, provided that the aggregate Affordable Housing Transfer Price is achieved. In the event that the Developer proceeds under this option it shall inform the Council as to the content of any revised tender submissions and shall further advise the Council of the outcome of this revised tender process within 10 working days of the known outcome.

20.2 If the Developer is successful in procuring a Preferred AHP under paragraph 20.1 above it shall obtain the Council's written approval of any necessary adjustments to the dwelling mix or other aspects of the Affordable Housing provision required as a direct result of the negotiations undertaken in accordance with clause 20.1(a) or the revised tender submission in accordance with clause 20.1(b) and the Council shall respond to any such request for approval in accordance with the Review Procedure.

21. **Transfer of the Affordable Housing**

21.1 The Developer shall use reasonable endeavours to enter into a contract for the transfer of the relevant tranche of Affordable Housing Units to the Preferred AHP referred to in paragraph 19.6 within 6 months of the tender submission deadline in clause 19.5 such transfer contract to be in accordance with the terms of the Preferred AHP's Qualifying Offer.

21.2 If the first stage of the cascade mechanism is triggered under paragraph 19.7, the Developer shall use reasonable endeavours to enter into a contract for the transfer of the relevant tranche of Affordable Housing Units to the AHP which has made an offer that (a) is acceptable to the Developer; and (b) delivers an outcome agreed by the Council, within 6 months of the tender submission deadline in clause 19.5 such transfer contract to be in accordance with the terms of the AHP's renegotiated offer (paragraph 20.1(a)) or revised tender submission (paragraph 20.1(b)), as appropriate.

21.3 If a contract has not been entered into within 3 months from the tender submission deadline referred to in clause 21.1 or 21.2 as appropriate the Developer shall notify the Council of the progress on the contract and consult with the Council regarding its proposals for exchange of the contract within the said 6 months.

21.4 If and only if the Developer has used reasonable endeavours to enter into the contract referred to in clause 21.3 above (and will, if requested by the Council, provide evidence to that effect to the Council's reasonable satisfaction) the Developer may trigger the second stage of the cascade mechanism in accordance with the terms of this Agreement provided that the Developer shall not trigger such second stage prior to the expiry of the 6 months period referred to in clause 21.3.

22. **Second stage of the cascade mechanism**

22.1 The Developer shall deliver the relevant tranche of Affordable Housing Units in accordance with an alternative housing package as follows:

(a) The Developer shall provide or transfer to an AHP for the Affordable Housing Transfer Prices any Key Worker Sub Market Rented units;

(b) The Developer shall provide or transfer to an AHP for the Affordable Housing Transfer Prices any Shared Ownership units;

(c) The Developer shall deliver 50% of the Social Rented units in accordance with the Alternative Housing Package for Social Rented units set in table in Schedule NN. The Developer shall transfer these units to an AHP for the Cascade Prices set out in such table, subject to incremental increases in Index (TPI) up to the date of transfer;

(d) The Developer may provide the remaining Social Rented units (50%) as Market Housing without restriction, in accordance with the unit mix in such table.

22.2 If the Developer realises a development profit on any tranche of units delivered in accordance with clauses 22.1(c) and 22.1(d) that exceeds a 20% return on the overall development costs of those Market Housing units delivered in accordance with clause 22.1(d), then the Developer shall pay to the Council 50% of any additional profits realised in excess of such return of 20% .

22.3 For the purposes of clause 22.2 the calculation of development profit shall exclude any allowance for land value, site infrastructure, planning obligations or profit/risk margin in relation to those Social Rented units delivered in accordance with clause 22.1(c).

22.4 The Council shall use any monies received under clause 22.2 to support the delivery of Affordable Housing within the Development.

23. **Expedited Procurement of Affordable Housing**

23.1 Subject to paragraph 23.2 the Developer shall not be required to undertake the obligations contained in paragraphs 19, 20, 21 or 22 in circumstances where the

Developer enters into a contract with an AHP for the transfer of the relevant tranche of Affordable Housing Units on the basis of the Qualifying Terms.

23.2 Prior to entering into a contract under the provisions of paragraph [23.1] the Developer must demonstrate to the Council's reasonable satisfaction that the proposed contract is based upon the Qualifying Terms.

Housing and Affordable Housing

Schedule NN: Population and Child Yields

Population Yields			
	Social Housing units	**Market Housing units**	**Intermediate units**
1 bed	1.30	1.50	1.50
2 bed	3.08	1.75	2.00
3 bed	3.50	2.25	3.00
4 bed	5.10	3.10	4.00

Child Yields			
	Social Housing units	**Market Housing units**	**Intermediate units**
1 bed	0	0.00	0
2 bed	1.58	0.10	0.30
3 bed	2.00	0.20	0.80
4 bed	3.60	0.70	1.30

Housing and Affordable Housing

Schedule NN: Baseline Mix

No. of Affordable Housing Units																		
750																		
Social Rented						Intermediate												
500						250												
General Needs Social Rented					Specialist Social Rented	KeyWorker Sub-Market Rented	Shared Ownership			Shared Equity			Homebuy			Right to Buy Homebuy		
412					88	84	30			40			50			46		
Unit Sizes (Net Internal)						Unit Sizes (Net Internal)												
1 bed	2 bed	2 bed	3 bed	4 bed	1 bed	Studio	1 bed	2 bed	2 bed	1 bed	2 bed	2 bed	1 bed	2 bed	2 bed	1 bed	2 bed	2 bed
48m2	61 m2	68 m2	84 m2	93 m2	48 m2	25 m2	42 m2	51 m2	61 m2	42 m2	51 m2	61 m2	42 m2	51 m2	61 m2	42 m2	51 m2	61 m2
No.	No.	No.	No.	No.	No.	No.	No.	No.	No.	No.	No.	No.	No.	No.	No.	No.	No.	No.
87	80	80	125	40	88	84	21	9	0	24	8	8	29	8	13	26	8	12

Housing and Affordable Housing:

Schedule NN: Affordable Housing Transfer Prices

	Specialist Social Rented		**General Needs Social Rented**		**Shared Ownership**		**Key Worker Sub Market Rented**	
	sq m	£	sq m	£	sq m	£	sq m	£
Studio							25	£62,332
1bed					42	£104,718 excluding parking		
1 bed	48	See Note 1	48	£119,677 excluding parking				
2 bed					51	£127,157 excluding parking		
2 bed			61	£152,090 excluding parking	61	£152,090 excluding parking		
2 bed			68	£169,543 excluding parking				
3 bed			84	£209,435 excluding parking				
4 bed			93	£231,875 excluding parking				
Car Parking		[£10,000] per car parking space						

Note 1: The Affordable Housing Transfer Price for a 1 bed Specialist Social Rented Housing unit shall be the same as a 1 bed General Needs Social Rented Unit (£119,677 excluding car parking) plus the additional reasonable and properly incurred costs as a result of the specialist nature of the provision. See para 18.3(b).

Housing and Affordable Housing

Schedule NN: [THESE FIGURES SUBJECT TO CHECKING BY LBC]

Second Stage of the Cascade: Alternative Housing Package for Social Rented units

Unit Size		**Min Size (NIFA)**		**%**	**Cascade Price**
1 bed	Social Rented	48.0	sq m	16%	£48,313
2 bed	Social Rented	61.0	sq m	8.0%	£58,977
2 bed	Social Rented	68.0	sq m	7.0%	£57,046
3 bed	Social Rented	84.0	sq m	14%	£63,042
4 bed	Social Rented	93.0	sq m	5%	£61,178
1 bed	Market	42.0	sq m	20%	
2 bed	Market	51.0	sq m	30%	
Total				**100%**	

OO: Nursing Home

DEFINITIONS

"Nursing Home"	:	a residential care home of a minimum of 3,000 sq m GEA
"Nursing Home Lease"	:	means a lease of the Nursing Home on the terms set out in Schedule [ ].

OBLIGATIONS

1. The Developer shall make a Lease Offer to the Council of the Nursing Home such offer to be made at least six (6) months prior to First Occupation of 1,250 residential units (excluding Student Housing).

2. Provided that the Council has served a Lease Acceptance within one (1) month of such offer the Developer shall not First Occupy more than fifty per cent (50%) of the residential units (excluding Student Housing) of the building within which the Nursing Home is located within the Development unless it has completed the construction of the Nursing Home to Shell and Core.

3. If following service by the Council of a Lease Acceptance the Developer and the Council agree prior to completion of the Nursing Home Lease that such lease should be granted to a third party, the Developer shall grant the Nursing Home Lease to such third party provided that such third party is willing to accept the lease.

4. Prior to making the Lease Offer in relation to the Nursing Home the Developer shall consult with the Council in relation to the proposed location of the Nursing Home and shall pay due regard to the Council's comments regarding such location.

5. The Nursing Home shall be treated as residential floorspace for the purposes of all Thresholds and obligations in this Agreement relating to the provision of such residential floorspace.

6. The Nursing Home shall be treated as the equivalent of 37 Residential Units, for the purposes of thresholds and obligations in this Agreement (including thresholds and obligations within Part NN on Housing and Affordable Housing) relating to the provision of such Residential Units.

The Common Seal of the Mayor)
and Burgesses of the London)
Borough of Camden was hereunto)
affixed in the presence of:)

Authorised Signatory

The Corporate Seal of **The**)
Secretary of State for Transport)
was hereunto affixed in the presence)
of:)

An Assistant Secretary

Executed as a Deed by **London &**)
Continental Railways Limited)
acting by:)

Director

Director/Secretary

Executed as a Deed by **National**)
Carriers Limited acting by:)

Director

Director/Secretary

Executed as a Deed by **Argent**)
(King's Cross) Limited acting by:)

Director

Director/Secretary

[**TfL** execution]

DATED 2006

The Mayor and Burgesses of the London Borough of Camden

- and -

THE SECRETARY OF STATE FOR TRANSPORT

- and -

LONDON & CONTINENTAL RAILWAYS LIMITED

- and -

NATIONAL CARRIERS LIMITED

- and -

ARGENT (KING'S CROSS) LIMITED

- and -

TRANSPORT FOR LONDON

DEED OF PLANNING OBLIGATIONS PURSUANT TO SECTIONS 106 OF THE TOWN AND COUNTRY PLANNING ACT 1990 AND OTHER POWERS RELATING TO KING'S CROSS CENTRAL LONDON

Draft 8

8 August 2006

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